

PIONEER IMPRINTS

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FROM FIFTY STATES

PIONEER IMPRINTS

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FROM FIFTY STATES

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*** START OF THE PROJECT GUTENBERG EBOOK PIONEER
IMPRINTS FROM FIFTY STATES ***

PIONEER IMPRINTS FROM FIFTY STATES

BY ROGER J. TRIENENS

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Preface

Pioneer Imprints From Fifty States will enable readers to view the Library of Congress collections from an unaccustomed angle. It takes for its subject the Library's earliest examples of printing from within present-day boundaries of each State in the Union, providing for each in turn 1) a brief statement about the origin of printing; 2) identification of the Library's earliest examples—among them broadsides, newspapers, individual laws, almanacs, primers, and longer works; and 3) information, if available, about the provenance of these rarities.

Each of the 50 sections may be consulted independently. To those who read it through, however, *Pioneer Imprints* will give some idea of the movement of printers and presses across the Nation, as well as insight into the nature and history of the Library's holdings.

The author wishes to express his indebtedness to Frederick R. Goff, Chief of the Library of Congress Rare Book Division from 1945 to 1972, who has been constantly helpful and encouraging; to Thomas R. Adams, Librarian of the John Carter Brown Library, Providence, R.I., who read the first 13 sections before their publication under the title "The Library's Earliest Colonial Imprints" in the *Quarterly Journal of the Library of Congress* for July 1967; and to Marcus A. McCorison, Director and Librarian of the American Antiquarian Society, Worcester, Mass., who read the manuscript of the later sections. These scholars cannot, of course, be held responsible for any errors or faults in this bibliographical investigation. The author's indebtedness to printed sources is revealed to some extent by notes appearing at the end of each section. He is obliged for much of his information to the staffs of the Library of Congress, the National Archives, and the Smithsonian Institution, as well as to the following correspondents: Alfred L. Bush, Curator, Princeton Collections of Western Americana, Princeton University Library; G. Glenn Clift, Assistant Director, Kentucky Historical Society; James H. Dowdy, Archivist, St. Mary's Seminary, Baltimore; Caroline Dunn, Librarian, William Henry Smith Memorial Library, Indianapolis; Joyce Eakin, Librarian, U.S. Army Military History

Research Collection, Carlisle Barracks, Pa.; Arthur Perrault, Librarian, Advocates' Library, Montreal; P. W. Filby, Librarian, Maryland Historical Society; Lilla M. Hawes, Director, Georgia Historical Society; Earl E. Olson, Assistant Church Historian, the Church of Jesus Christ of Latter-Day Saints, Salt Lake City; and Frank S. Richards, Piedmont, Calif.

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PIONEER IMPRINTS



***The Lapwai press,
brought to Idaho in
1839 to produce the
first book printed in the
Northwest—an Indian
primer. Courtesy of the
Oregon Historical
Society.***

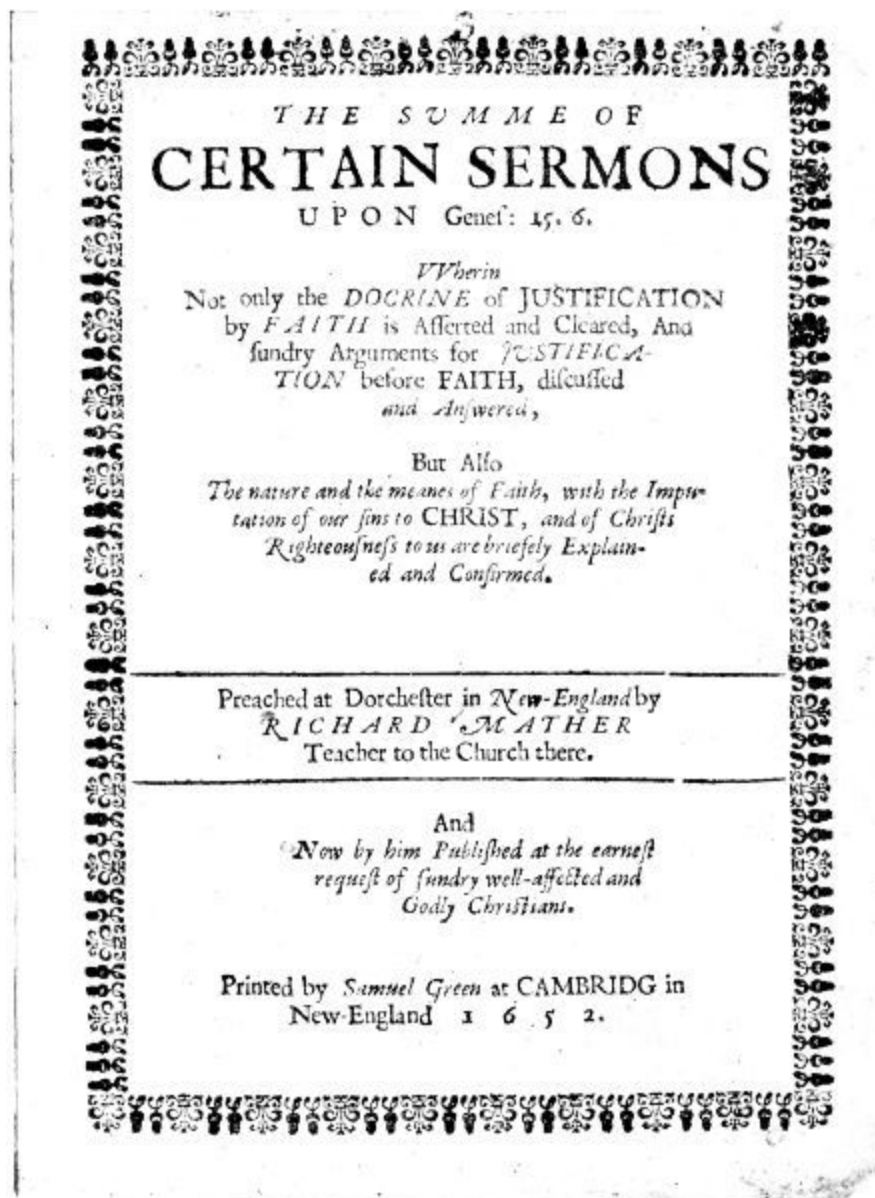
See page [63](#).

Massachusetts

Stephen Daye, the first printer of English-speaking North America, established his press at Cambridge late in 1638 or early in 1639 and printed the famed *Bay Psalm Book* there in 1640. This volume of 295 pages is the first substantial book and the earliest extant example of printing from what is now the United States. Mrs. Adrian Van Sinderen of Washington, Conn., deposited an original copy of the *Bay Psalm Book* in the Library of Congress at a formal ceremony held in the Librarian's Office on May 2, 1966. Mrs. Van Sinderen retained ownership of the book during her lifetime; it became the Library's property upon her death, April 29, 1968.

The book is properly entitled *The Whole Booke of Psalmes Faithfully Translated into English Metre*. Of 11 extant copies this was the last in private hands, and it filled the most serious single gap in the Library's collection of early American printing. It is an imperfect copy, lacking its title page and 18 leaves. Bound in calfskin, it is one of the five copies in an original binding.

Zoltán Haraszti's authoritative study *The Enigma of the Bay Psalm Book* (Chicago, 1956) includes information about all the surviving copies. Mrs. Van Sinderen's copy was one of five that were collected by scholarly Thomas Prince of Boston (1687-1758), who bequeathed his extensive library to Old South Church. It was from the church that the Cambridge wool merchant and Bible collector George Livermore obtained it in 1849. By an exchange agreement between Livermore and the prominent bookseller Henry Stevens, 12 leaves were removed from the volume to complete another copy, which Stevens sold to James Lenox in 1855 and which now belongs to the New York Public Library. Livermore's collection, deposited at Harvard after his death, was auctioned in 1894 in Boston, his *Bay Psalm Book* realizing \$425 and going to Mrs. Van Sinderen's father, Alfred Tredway White of Brooklyn.



(Richard Mather's *The Summe of Certain Sermons upon Genes: 15.6*, printed at Cambridge in 1652)

Before 1966 the earliest Massachusetts imprint, as well as the earliest imprint of the Nation, in the Library was Richard Mather's *The Summe of Certain Sermons upon Genes: 15.6*, printed at Cambridge in 1652. Its author was the progenitor of the powerful Mather family of New England divines, and he was among the translators contributing to the *Bay Psalm Book*. Its printer, Samuel Green, operated the first Massachusetts printing press after Stephen Daye's son Matthew died in 1649, Stephen having

retired from the press in 1647. Mather's book contains his revised notes for sermons preached at Dorchester.

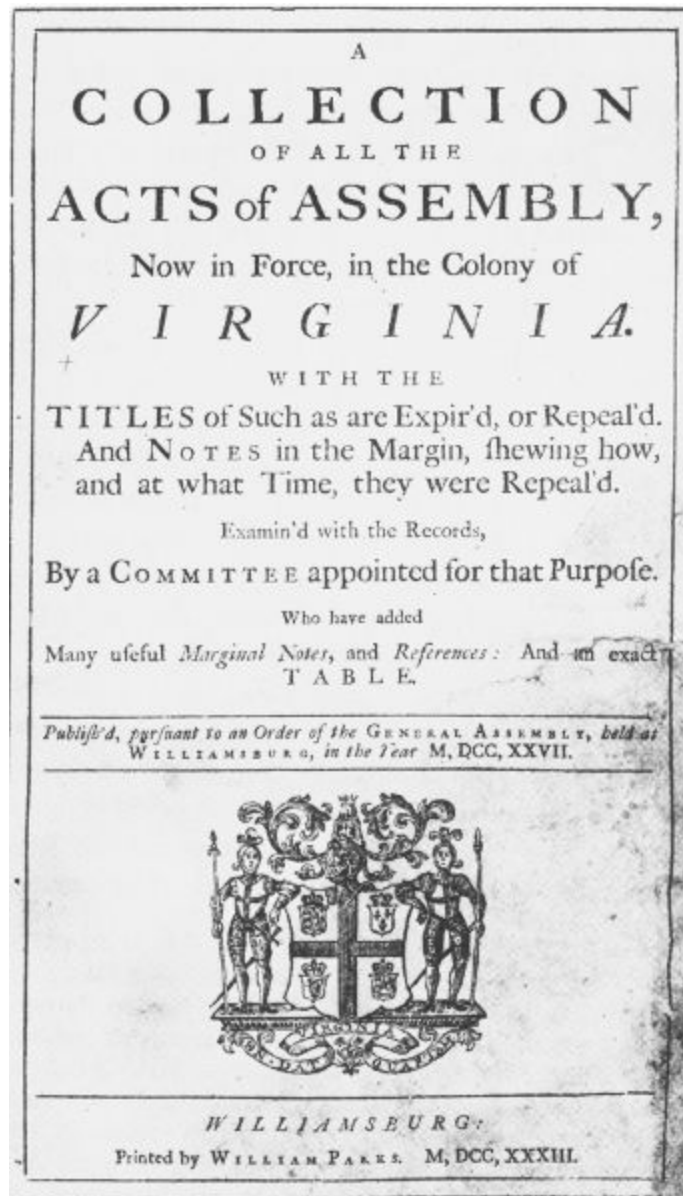


(Bay Psalm Book)

The Library of Congress copy—one of four extant—is inscribed by an early hand, "James Blake his Booke." In the mid-19th century this copy apparently came into the possession of Henry Stevens, whereupon it was bound in full morocco by Francis Bedford at London; and it presumably belonged to the extensive collection of Mather family books that Stevens sold in 1866 to George Brinley, of Hartford, Conn.^[1] The Library of Congress obtained the volume with a \$90 bid at the first sale of Brinley's great library of Americana, held at New York in March 1879.

[\[1\]](#) See Wyman W. Parker, *Henry Stevens of Vermont* (Amsterdam, 1963), p. 267-268.

Virginia



***(A Collection of All the Acts of Assembly
Now in Force, in the Colony of Virginia
(1733) printed by William Parks)***

A press that William Nuthead started at Jamestown in 1682 was quickly suppressed, and nothing of its output has survived. It was William Parks

who established at Williamsburg in 1730 Virginia's first permanent press. Here Parks issued the earliest Virginia imprint now represented in the Library of Congress: *A Collection of All the Acts of Assembly Now in Force, in the Colony of Virginia* (1733). Printing of this book may have begun as early as 1730. In a monograph on William Parks, Lawrence C. Wroth cites evidence "in the form of a passage from Markland's *Typographia*, which indicates that its printing was one of the first things undertaken after Parks had set up his Williamsburg press."^[2]

Two Library of Congress copies of this imposing folio—one of them seriously defective—are housed in the Law Library; while yet another copy, which is especially prized, is kept with the Jefferson Collection in the Rare Book Division since it belonged to the library which Thomas Jefferson sold to the Congress in 1815.^[3] The 1815 bookplate of the Library of Congress is preserved in this rebound copy, and Jefferson's secret mark of ownership can be seen—his addition of his other initial to printed signatures I and T. A previous owner wrote "Robert [?] Lewis law Book" on a flyleaf at the end, following later acts bound into the volume and extending through the year 1742. He may well have been the same Robert Lewis (1702-65) who served in the House of Burgesses from 1744 to 1746.^[4]

The Library possesses the only known copy of another early Virginia imprint bearing the same date: Charles Leslie's *A Short and Easy Method with the Deists. The Fifth Edition....* Printed and sold by William Parks, at his Printing-Offices, in Williamsburg and Annapolis, 1733. Inasmuch as an advertisement for this publication in the *Maryland Gazette* for May 17-24, 1734, is headed "Lately Publish'd," it was most likely printed early in 1734 but dated old style, and so it probably followed the publication of the *Acts of Assembly*. The Library purchased the unique copy for \$8 at the second Brinley sale, held in March 1880.

^[2] William Parks, *Printer and Journalist of England and Colonial America* (Richmond, 1926), p. 15.

^[3] No. 1833 in U.S. Library of Congress, *Catalogue of the Library of Thomas Jefferson, Compiled with Annotations by E. Millicent Sowerby* (Washington, 1952-59).

^[4] See Sarah Travers Lewis (Scott) Anderson's *Lewis, Meriwethers and Their Kin* (Richmond, 1938), p. 61-62.

Maryland

After departing from Virginia, William Nuthead set up the first Maryland press at St. Mary's City sometime before August 31, 1685. This press continued in operation until a few years after Nuthead's widow removed it to Annapolis about 1695; yet nothing more survives from it than a single broadside and some printed blank forms.

In 1700 Thomas Reading began to operate a second press at Annapolis, and his output in that year included a collection of laws which is the earliest Maryland imprint now represented in the Library of Congress. Since the Library's is the only extant copy, it is particularly regrettable that its title page and considerable portions of the text are lacking. Catalogers have supplied it with the title: *A Complete Body of the Laws of Maryland*.^[5]

The copy was formerly in the possession of the lawyer and diplomat John Bozman Kerr (1809-78). It might not have survived to this day were it not for his awareness of its importance, as shown in his flyleaf inscription:

? would this have been printed in M^d at so early a period as 1700—in M^d or elsewhere in the Colonies—It is dedicated to Mr Wm Bladen father, it is presumed, of Gov^r Tho^s Bladen, of whom *Pope*, the Poet, speaks so harshly—Having given much attention to M^d History I know no book—calculated to throw more light upon *manners & customs* than this printed copy of the body of M^d Law in 1700—The language of the early acts of assembly was much modified in 1715 & 1722—*Here* the Exact words are preserved as in the original acts—Unless in some old collection in England, five thousand dollars would not procure a like copy—Many years ago there was Extant, in MS, in Charles Co Court records, as I have been told, a similar collection—This *printed* copy is "the schedule annexed to 1699. c 46 & the act of 1700. c 8—

Sept 22^d 1858

John Bozman Kerr—of Easton, M^d
Law Office, no. 30. St. Pauls St. Balt^o

William Bladen, to whom the book is dedicated, was then clerk of the Upper House and had been instrumental in bringing Thomas Reading to Maryland. In fact, the records indicate that he assumed the role of publisher. If John Bozman Kerr had had access to the proceedings of the Lower House for the year 1700, he would have been most interested to find there Bladen's written proposal:

That if the house are desirous the body of Laws should be printed soe that every person might easily have them in their houses without being troubled to goe to the County Court house to have recourse thereto.

That the house made [sic] an Order for printeing thereof and that every County be Oblidged to take one faire Coppy endorsed and Titled to be bound up handsomely and that for the encouragement of the undertaker each County pay him therefore 2000^{lbs} of Tob^o upon delivery the said booke of Laws....

This was approved on May 9.^[6] The printing was not wholly satisfactory, for on May 17 of the next year an errata list was ordered printed.^[7]



John Bozman Kerr, from Genealogical Notes of the Chamberlaine Family of Maryland (Baltimore, 1880).

[5] It is no. 7 in Lawrence C. Wroth's *A History of Printing in Colonial Maryland* (Baltimore, 1922). Besides listing it in his bibliography, Wroth discusses the book at length on p. 22-26.

[6] *Archives of Maryland*, vol. 24 (1904), p. 83-84.

[7] *Ibid.*, p. 198.

Pennsylvania

Like William Nuthead, William Bradford introduced printing in more than one Colony, and he began his American career by establishing the first Pennsylvania press at Philadelphia in 1685. Here that same year he printed *Good Order Established in Pennsilvania & New-Jersey in America*, the earliest Pennsylvania imprint in the Library of Congress and the second known example of Bradford's press. The author, Thomas Budd, was a successful Quaker immigrant, who settled first at Burlington, N.J., and later at Philadelphia. He intended his description of the two Colonies to stimulate further immigration, and he printed this statement on the title page verso:

It is to be noted, that the Government of these Countries is so settled by Concessions, and such care taken by the establishment of certain fundamental Laws, by which every Man's Liberty and Property, both as Men and Christians, are preserved; so that none shall be hurt in his Person, Estate or Liberty for his Religious Perswasion or Practice in Worship towards God.

Because neither place nor printer is named in the book, it was long thought to have been printed at London, but typographical comparisons made during the latter part of the 19th century demonstrated conclusively that it issued from William Bradford's press.



The 19th-century bookseller Henry Stevens.

The Library of Congress copy was bound at London by William Pratt for the bookseller Henry Stevens. F. J. Shepard traces this much of its later provenance in his introduction to a reprint issued in Cleveland in 1902:

A copy in full levant morocco, by Pratt, belonging to John A. Rice of Chicago, was sold in March, 1870, to Sabin & Sons for \$155. The same copy fetched \$150 at the sale of the library of William Menzies of New York (1875),^[8] when it was described in Sabin's catalogue as "one of the rarest of books relating to

Pennsylvania." It was again, presumably, the same copy which at the sale in New York of S. L. M. Barlow's books in 1889 brought \$400, although it was still incorrectly described as printed in London. After passing through the hands of two dealers and one collector, it reached Dodd, Mead & Co., who advertised it in their November, 1900, catalogue for \$700, and sold it at that price to a private collector whose name is not given.

The copy was among several Americana from the library of C. H. Chubbuck, a Boston collector,^[9] which were sold at auction by C. F. Libbie & Co. on February 23 and 24, 1904, the Library of Congress obtaining it for \$600.

^[8] Sabin's catalog is dated 1875, but the sale did not occur until November 1876.

^[9] See *American Book-Prices Current*, vol. 10 (1904), p. vii.

New York

William Bradford moved from Pennsylvania to New York in the spring of 1693, but what was the first product of his New York press has not been established.^[10] The Library of Congress owns two Bradford imprints from this period, neither containing any indication of the place of publication. Nevertheless, both are listed in Wilberforce Eames' bibliography of early New York imprints.^[11] One of them, entitled *New-England's Spirit of Persecution Transmitted to Pennsylvania, and the Pretended Quaker Found Persecuting the True Christian-Quaker, in the Tryal of Peter Boss, George Keith, Thomas Budd, and William Bradford, at the Sessions Held at Philadelphia the Nineth, Tenth and Twelfth Days of December, 1692. Giving an Account of the Most Arbitrary Procedure of That Court*, has been conjectured to be the first New York imprint (Eames 1). Eames states that the work "seems to be the joint production of George Keith and Thomas Budd, including Bradford's own account of the trial. As it mentions the next Court Session of March, 1693, it could hardly have been printed before May...." He confesses that Bradford may have printed it at Philadelphia. The Library of Congress purchased its copy—one of six recorded in the National Union Catalog—for \$50 at the November 1876 auction of the library of Americana formed by a New York collector, William Menzies.

The other Bradford imprint conjecturally assigned to New York is Governor Benjamin Fletcher's proclamation of April 29, 1693, prohibiting "the *Breaking of the LORDS DAY, all Prophane Swearing, Cursing, Drunkenness, Idleness and unlawful Gaming, and all manner of Prophaneness whatsoever*" (Eames 9). Eames gives no reason why this broadside should be listed as a later imprint. An eminent New Yorker, Stuyvesant Fish, presented the unique copy to the Library of Congress in 1915 and in an accompanying letter to the Librarian told how it had come into his possession:

The broadside now sent you was given me by Mrs. Fish's mother, the late Mrs. William Henry Anthon, with the statement that she had found it among the papers left by her brother-in-

law, Professor Charles Edward Anthon (b. Dec. 6, 1823; d. June 7, 1885). The latter was much given to collecting coins, manuscripts, &c., but no effort of mine has enabled me to learn where, when or how he became possessed of the paper.

In view of the uncertain assignment of these two imprints to New York, the Library's earliest imprints naming New York as the place of publication should also be mentioned. *A Catalogue of Fees Established by the Governour and Council at the Humble Request of the Assembly* (New-York, William Bradford, 1693) is an 11-page work printed sometime after September 20, 1693. The Library's copy, like others, is appended to Bradford's printing of *The Laws & Acts of the General Assembly* (New-York, 1694), which in Eames' opinion was itself probably begun in 1693, perhaps as early as July or August. Among the owners of the volume containing these early imprints was the bibliographer Charles R. Hildeburn, who gave the following history in a note prefixed to an 1894 facsimile edition of *The Laws & Acts*:

This [copy], lacking a title-page, was formerly part of a volume of laws and other folio tracts printed by Bradford between 1694 and 1710, which was bought at a sale at Bangs's, in New-York, about ten years ago, by the late Dr. George H. Moore, for \$26. In 1890 Dr. Moore sold the volume as he bought it for \$1750 to the writer, who, having supplied the title-page in facsimile, sold so much of "the Laws of 1694 as issued" as it contained to the late Mr. Tower for \$600. The volume then passed by the gift of Mr. Towers's widow, with the Tower collection, to the Historical society of Pennsylvania, and, having been replaced by a perfect copy ..., was sold to Dodd, Meade & Company, of New-York for \$400. From the firm last mentioned it was purchased by Mr. [Abram C.] Bernheim.^[12]

Now in a full morocco binding by Bradstreet's, the volume contains the bookplates of Abram C. Bernheim, who lectured on New York history at Columbia College, Henry C. Bernheim, and Russell Benedict. At the New York auction of Judge Benedict's library in 1922 Halstead H. Frost, Jr., purchased it for \$3,000; yet in 1926 at an auction by the same house of "Rare Americana including the collection of the late A. R. Turner, Jr. and

selections from the collection of the late Charles A. Munn," the same copy drew only \$1,800. In 1931 the Library of Congress obtained it from the firm of Lathrop C. Harper for \$2,929.55, and it was duly noted in the subsequent annual report as "the most precious acquisition of the year by the law library."

A Catalogue of Fees

Established by the

Governour and Council

At the Humble Request of the

A S S E M B L Y

For the Governour.

F Or the great Seal to every Patent for and under 100 Acres,	<i>L.</i>	<i>S.</i>	<i>D.</i>
For 1000 Acres and upwards of Arable Land, for every 100 Acres.	00	12	00
For every License of Marriage	00	10	00
For his Hand and Seal to Letters of Administration,	00	10	00
For a Certificate of Denization,	00	10	00
For a Certificate of Naturalization,	00	10	00
For a Certificate That a Vessel was built, or belongs to their Majesties Subjects,	00	10	00
For every Certificate under the Governours Hand and Seal to go beyond Sea,	00	10	00
For every Hue - and - Cry,	00	03	00
For a License to purchase Land of the <i>Indians</i> ,	01	00	00
For a Bill of Health,	00	12	00
For the great Seal to a Confirmation for renewing a Patent,	00	12	00

*A Catalogue of Fees Established by the
Governour and Council at the Humble Request
of the Assembly (New-York, William Bradford,
1693)*

[10] Alexander J. Wall, Jr., "William Bradford, Colonial Printer," *Proceedings of the American Antiquarian Society*, 1963, vol. 73, p. 368.

[11] *The First Year of Printing in New-York* (New York, 1928).

[12] P. clvii. The facsimile was made from the Bernheim copy, which apart from its missing title page was considered to be the best preserved.

Connecticut

Thomas Short, who learned his trade at Boston, became Connecticut's first printer when he went to New London to do the official printing for the Colony in 1709.

The Library of Congress owns two Thomas Short imprints dated 1710, and one of them is believed to be the first book printed in Connecticut: *The Necessity of Judgment, and Righteousness in a Land. A Sermon, Preached at the General Court of Election, at Hartford in the Colony of Connecticut, on May 11th. 1710. By Eliphalet Adams, Pastor of the Church in New-London.* Eliphalet Adams was an influential clergyman whose 43 years of service at New London had just begun in 1709. The work is an election sermon, of a type delivered annually at the opening of certain New England legislatures. Although not especially worthy of remembrance, it manages to suggest the ceremony of the occasion. Adams closes his sermon by addressing the Governor, Deputy Governor, and magistrates, next turning to the assembled clergy, and finally concluding:

Shall I now turn my self to the *General Assembly of the Colony at present met together*. And even here I may promise my self an easie Reception, while I plead for *Judgment & Righteousness*. The welfare of the Country is in a great measure Intrusted in your hands and it is indeed a matter Worthy of your best Thoughts and chiefest cares. It should be Ingraven, if not upon the Walls of your House, yet upon each of your Hearts, *Ne quid Detrimenti Respublica Capiat, Let the Common-wealth receive no damage*. It is in your power partly to frame Laws for the Direction & Government of the people of the Land. Now too much care cannot be taken, that they may be strictly agreeable to the standing Rules of Justice & Equity, that they may not prove a grievance in stead of an advantage to the Subject; If the Rule be crooked, how shall our manners be Regular?...^[13]

The Library of Congress copy, in a 19th-century morocco binding, contains no evidence of provenance, but it was undoubtedly in the Library's possession by 1878, for the title is listed in the Library catalog published that year. Another copy sold at auction in 1920 for \$1,775, which was the largest amount ever paid for a Connecticut imprint. ^[14]

The Library's other Connecticut imprint with a date of 1710 is entitled *A Confession of Faith Owned and Consented to by the Elders and Messengers of the Churches in the Colony of Connecticut in New-England, Assembled by Delegation at Saybrook September 9th. 1708....* Herein is the historic Saybrook Platform, whereby individual congregations of the Colony submitted to the firmer control of synods. There exists documentary evidence that the printing of this book did not begin until late in 1710, and apparently it was not completed until 1711. ^[15] Elizabeth Short, the printer's widow, was paid £50 in 1714 for binding all 2,000 copies in calfskin and birchwood covers. ^[16] The Library's copy retains the original binding. Of further interest is the evidence supplied by the Library's bookplate that the volume formerly belonged to Peter Force, the American historian and archivist, whose notable collection was obtained through a special Congressional appropriation in 1867.



Peter Force. Lithograph from life by Charles Fenderich.

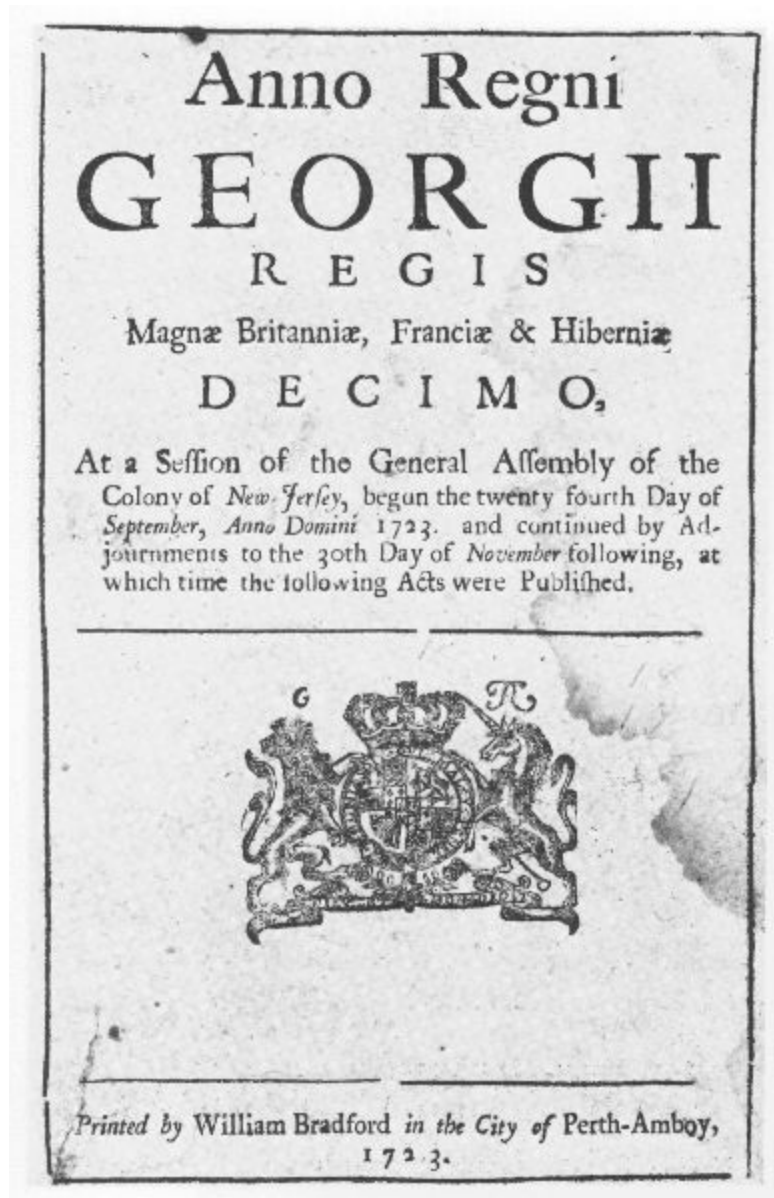
[\[13\]](#) P. 30-31.

[\[14\]](#) See *Papers of the Bibliographical Society of America*, vol. 27 (1934), p. 4.

[\[15\]](#) W. DeLoss Love, *Thomas Short the First Printer of Connecticut* ([Hartford] 1901), p. 35-38; Thomas W. Streeter, *Americana—Beginnings* (Morristown, N.J., 1952), p. 25-26.

[\[16\]](#) Love, p. 37-38.

New Jersey



Anno Regni Georgii Regis Magnæ Britannia, Franciæ & Hiberniæ decimo, at a Session of the General Assembly of the Colony of New Jersey, begun the twenty fourth Day of September, Anno Domini 1723. and continued by Adjournments to the 30th Day of November

***following, at which time the following Acts
were Published. Printed by William Bradford
in the City of Perth-Amboy, 1723.***

In 1723 William Bradford is thought by some to have transported a press from New York to Perth Amboy, then the capital of New Jersey, to print paper currency for the Colony.^[17] If this is true he was the first New Jersey printer, although printing was not established there on a permanent basis until three decades later. In any event, in 1723 Bradford produced the first book with a New Jersey imprint: *Anno Regni Georgii Regis Magnae Britanniae, Franciae & Hiberniae decimo, at a Session of the General Assembly of the Colony of New Jersey, begun the twenty fourth Day of September, Anno Domini 1723. and continued by Adjournments to the 30th Day of November following....*

Douglas C. McMurtrie distinguishes three variant issues of the edition in *A Further Note on the New Jersey Acts of 1723* (Somerville, N.J., 1935); but the Library of Congress copy, containing 30 numbered and four unnumbered pages, represents a fourth variant. It is one of two issues (the other bearing a New York imprint) in which the type for the later pages was reset.

In the section on paper money, which has a prominent place in the New Jersey laws, is an interesting sidelight on printing history: the text of an oath to be administered to the printer upon his delivery of the bills to those authorized to sign them, requiring him to declare

That from the time the Letters were set, and fit to be put in the Press for Printing the Bills of Credit now by me delivered to you, until the same Bills were printed, and the Letters unset and put in the Boxes again, I went at no time out of the Room in which the said Letters were, without Locking them up, so as they could not be come at, without Violence, a false Key, or other Art then unknown to me; and therefore to the best of my Knowledge no Copies were printed off but in my Presence; and that all the Blotters and other Papers whatever, Printed by the said Letters, which set for printing the said Bills, to the best of

my Knowledge are here Delivered to you together with the Stamps for the Indents, and Arms.

The Library of Congress copy is bound in the midst of a folio volume of early New Jersey laws and ordinances that C. S. Hook of Atlantic City, a dealer in old law books, sold to the Library in 1925 for \$2,337.50. Though dilapidated, the volume retains its original calf binding, and the names of two early owners are inscribed on its front flyleaf: "M^r Bard" and "John Wright Esq:^r" The former may well be the same Peter Bard, a Huguenot immigrant, who served as member of the Council from 1720 to 1734 and who was one of those authorized to sign the above-mentioned bills.

Some authorities doubt that Bradford would have moved a press to New Jersey for only a short time and think it more likely that he actually printed the acts of 1723 in New York.^[18] In that case the earliest New Jersey imprint in the Library of Congress would be an 18-page pamphlet containing an act passed on June 3, 1757, which James Parker printed at Woodbridge on the first permanent press in the Colony: ... *A Supplementary Act to the Act, Entitled, An Act for Better Settling and Regulating the Militia of this Colony of New-Jersey; for the Repelling Invasions, and Suppressing Insurrections and Rebellions; As [sic] also, for Continuing Such Parts and Clauses of the Said Laws, as are not Altered or Amended by This Act.* The Library's copy, inscribed "Capt. Monrow" on its title page, probably belonged originally to John Monrow, a resident of Burlington County.^[19] The Central Book Company of New York sold it to the Library for \$150 in 1939.

^[17] See Lawrence C. Wroth, *The Colonial Printer* (Portland, Maine, 1938), p. 34-36.

^[18] See Streeter, *Americana—Beginnings*, no. 21, where this view is attributed to R. W. G. Vail.

^[19] See *Archives of the State of New Jersey*, 1st series, vol. 10 (1886), p. 15 and 17; H. Stanley Craig, *Burlington County, New Jersey, Marriages*, Merchantville, N.J. (1937), p. 159.

Rhode Island

Beware of Poyfick and Blood-letting in the Dog-Days, if the Air be hot, otherwise, if Occasion require, you may safely make use thereof. Abstain from Punch and Core-Heels.

AUGUST hath xxxi Days.									
First Q	1 D.	at 4 Morn.	Full	8 D.	at Noon				
L. Q	16 D.	at 3 After N.	23 D.	8 Ni.	F. Q	30 D.	at Noon		
MW	C. Spr.	I. St.	D. At.	W. & c.	Pl.	R.	S. R.	S. F.	Sea
1	Lammas Day.	Some	thigh	11	01	04	702	36	
2	dirty Weather.		thigh	11	25	05	702	27	
3	A Fool is known by		knees	12	08	06	704	18	
4	7 aft. Trinity. looking		knees	12	44	08	705	09	
5	wife, As Men find Wood		knees	Morn	29	706	05		
6	locks by their Eyes.		legs	02	09	10	706	01	
7	Muggy hot		legs	03	18	12	707	43	
8	and some Thunder.		feet	04	18	13	708	34	
9	10 to Nehemiah Thump		feet	07	05	14	709	19	
10	the Disputant		feet	07	33	15	710	08	
11	8 aft. Trin. No Tides		head	08	00	17	710	55	
12	in Virgo.		and	08	29	18	711	41	
13	Sup. C. Bolton & Persf.		face	08	44	19	712	30	
14	Apoge. Rain.		neck	09	10	20	712	18	
15	Assump. V. Mary.		throa	09	47	21	712	05	
16	When Work is done		arms	10	10	22	712	52	
17	you need not fail,		thoul	10	43	23	713	40	
18	9 after Trinity.		breaf.	11	21	25	714	30	
19	To go and drink		stom.	12	43	26	715	14	
20	DOG DAYS end.		heart	Morn	27	716	01		
21	Glast of Ale		back	02	11	28	716	48	
22	Hot, with Thunder.		bowe	03	29	29	717	35	
23	High Tides this Change		and	05	15	31	718	19	
24	St. Barth. K. GEORGE II		belly	05	55	32	719	10	
25	(procl. at Newport, 1777)		elins	07	27	33	719	03	
26	Perage.		loyns	08	00	34	719	50	
27	Sup. C. Fairh. & Inf. Chere.		ecre.	08	33	35	719	43	
28	(Springh. Concord, Secre.		ecre.	09	08	36	712	30	
29	High Winds and Rain		thigh	10	00	37	719	23	
30	If you cannot bite, ne		thigh	10	47	39	720	10	
31	ver from some Teeth.		thigh	11	47	41	720	01	

Vents in his Den or Cave, the one towards the South, the other towards the North; look which of them he stops, thence will great Storms and Winds follow. If the Sun continue hot and scorching many Days together, it is a Token of winds to continue long. If the Bees fly

SEPTEMBER hath 30 Days.									
Full	7 D.	at 2 Morn.	Leaf	15 D.	at 7 Morn				
Ne	22 D.	at 5 Morn.	First Q	18 D.	at 8 Night				
MW	C. Spr.	I. St.	D. At.	W. & c.	Pl.	R.	S. R.	S. F.	Sea
1	11 after Trinity.		knees	12	00	43	703	50	
2	London Burnt, 1666.		knees	Morn	5	44	704	40	
3	Int. C. Newport, & Sup. C.		legs	01	52	45	705	31	
4	Rain (N. Hav.		legs	02	00	47	706	19	
5	Inf. C. Persf. mouth.		neck	03	58	49	707	11	
6	a Swell, and clears up		feet	04	55	50	708	00	
7	No Tides.		head	05	11	52	708	48	
8	12 aft. Trin. Nat. V.		and	06	34	54	709	35	
9	Apoge. (Mary.		free	07	00	55	710	27	
10	Sup. C. Bristol & Harf		neck	07	38	57	711	18	
11	COMMENC N Haven.		and	08	10	59	712	06	
12	in Libra.		throa	08	46	00	712	54	
13	Warm Wind		arms	09	24	01	713	42	
14	Money makes the Mare		thoul	10	10	03	714	31	
15	13 aft. Trin. to go,		breaf.	11	20	04	715	20	
16	And Fools to make a		horn.	12	36	05	716	10	
17	Inf. C. Prym. & Sup. C.		heart	Morn	06	06	716	08	
18	gaudy Slow. (Windham.		back	01	47	07	717	46	
19	Rain & c. at. Coen. 1 us		bowe	02	41	09	718	34	
20	Malton the Spoonmaker.		belly	03	40	10	719	22	
21	St. Matthew.		elins	04	46	11	719	10	
22	14 after Trinity.		loyns	05	10	12	719	55	
23	Perage. High Tides.		ecre.	06	46	13	720	44	
24	Sup. C. Springh. & New		feet.	07	00	14	720	33	
25	(Lon & Int. C. Newb.		elins	07	37	15	721	21	
26	Hoar Frost.		enig	08	10	16	721	11	
27	A merry Husking, but		thighs	09	08	18	721	01	
28	it proves fatal to Doly		knees	09	36	19	721	49	
29	St. Michael.		knees	10	00	20	722	38	
30	Mark the End on't.		legs	11	56	22	722	29	

Provide your Winter Garments, hang them on loosely, to prevent that you may after repent of. Good for Poyfick and Phlebotomy. Eat good Butter with your Tautang this Month.

fly far from their Hives, it is a Sign of foul weather. When Oxen bite their Fore Teeth, it is a manifest Token of foul weather to follow. If small Clouds dispersed and scattered abroad, appear in clear weather, it is a Token that foul weather following shall last long. The bluffering

(Benjamin Franklin's Rhode-Island Almanack for the Year 1728)

After a stay in prison resulting from his publishing activities in Boston, James Franklin, elder brother of Benjamin, chose to settle at Newport, where he established the first Rhode Island press in 1727.

When the Library of Congress acquired its unique copy of Franklin's *Rhode-Island Almanack for the Year 1728* in 1879, it was thought to be the earliest book printed in Rhode Island. Not until 1953, when copies of two religious tracts by John Hammett came to light, was it relegated to third

place. Those two tracts were printed before July 25, 1727, while Franklin's pseudonymous preface to his almanac is dated August 30 of that year.^[20]

Although it may no longer be regarded as the first Rhode Island book, this small almanac nevertheless is of exceptional interest. Four years before Benjamin Franklin inaugurated *Poor Richard's Almanack* his elder brother presented himself in this wise:

Tho' I have not given you my *proper Name*, yet I assure you I have had one the greatest part of half an hundred Years; and I know of no Necessity for parting with it at this Time, since I presume my Almanack will answer all the Ends design'd without that Expence. So, wishing you a happy new Year; bid you adieu.

Poor ROBIN

James Franklin strove to make his almanac entertaining, and he did not refrain from injecting anticlerical gibes or a bit of ribaldry. He obviously relished such pithy sayings as "More religion than honesty" and "If you cannot bite, never show your Teeth."

The Library of Congress purchased its unique copy for \$35 at the Brinley sale of 1879. It then had seven leaves and seemed to lack an eighth leaf at the end. Much later, George Winship, librarian of the John Carter Brown Library, reported a curious happening in an article that he contributed to *The Providence Sunday Journal*, November 19, 1911:

A few weeks ago some one noticed that a leaf which was bound at the end of a book in the Boston Public Library had nothing whatever to do with that book. It was apparently a leaf of an old almanac, and after some research Alfred B. Page of the Massachusetts Historical Society Library was successful in identifying it, not only as the last leaf of the almanac for 1728, which was printed in Newport toward the end of the preceding year, but as the identical leaf which originally formed a part of the copy now belonging to the Library of Congress.

The officials in Washington sent their book to Boston to make certain of the identification, and in return they have been presented with the missing member, so long separated from its proper body. On its way back to Washington, this precious little waif is making a visit to the State of its origin, and will be for a few days on exhibition at the John Carter Brown Library, in company with various of its contemporary rivals, predecessors and followers.

A reprint of the almanac with an introduction by Mr. Winship, signing himself as Philohistoricus, was published at this time. And while at Boston the copy was encased in a variegated morocco binding by the Hathaway Book Binding Company on Beacon Street.

[20] See *Rhode Island History*, vol. 12 (1953), p. 33-43, 105-109.

South Carolina

Printing commenced in South Carolina in 1731 when three competing printers migrated to Charleston: George Webb, Eleazer Phillips, Jr., and Thomas Whitmarsh. They were attracted by an offer of monetary aid that the government announced in order to secure a printer for the Colony.

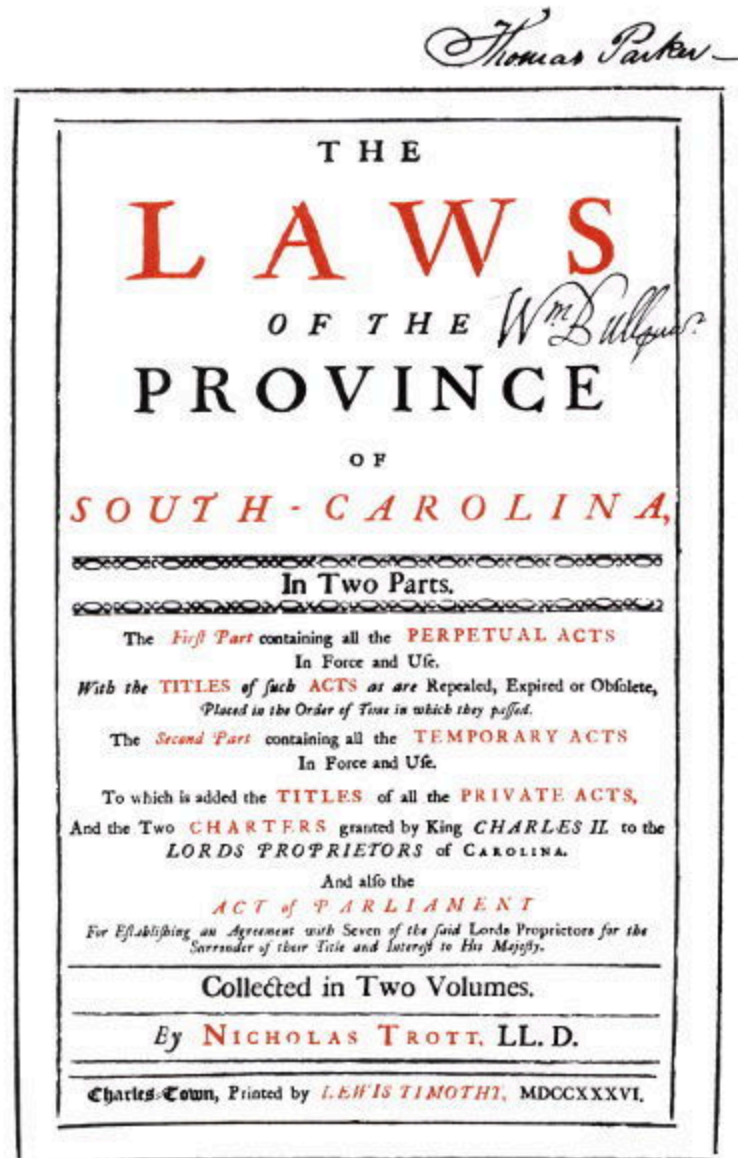
The earliest Library of Congress copies of South Carolina imprints issued from the press of Lewis Timothy (otherwise Louis Timothée), a Frenchman trained in Holland and subsequently employed by Benjamin Franklin at Philadelphia. Through an arrangement with Franklin he took over the press of Thomas Whitmarsh after the latter's death in 1733, Webb having either died or departed from Charleston and Phillips having died in 1732. The Library has three Lewis Timothy imprints dated 1736: Josiah Smith's sermon, *The Character and Duty of Minister and People*; the session laws for November 15, 1733-May 29, 1736, entitled *Acts Passed by the General Assembly of South-Carolina*; and Nicholas Trott's compilation of *The Laws of the Province of South-Carolina*. The sermon, advertised in *The South-Carolina Gazette* for May 22, 1736, as just published, was completed first. Still earlier printing, however, is contained in the first volume of Trott's *Laws*, though the volume was not completed until September 1736. Timothy began to print the laws shortly after November 15, 1734, and the first sheets were ready in May 1735.^[21]

This publication in two folio volumes is a landmark of Colonial printing; it was Timothy's most ambitious undertaking by far, one he carried out with remarkable taste and skill. The title page, printed in black and red, is particularly striking. Nicholas Trott, the editor, was a learned jurist who played a leading role in South Carolina's affairs, becoming chief justice in 1703. In the preface he sets forth his guiding purpose in compiling the *Laws*:

Thus I have endeavoured as much as in me lies, and have spared for no Pains, to make this Work not only useful, but plain and easy, even to the meanest Capacity, wherein if I have obtained

my End, I shall not think my Labour ill bestowed: For as every Man is a Debtor to his Country, and we are not born only for our selves, so I tho't I could not do a more useful Service for the Province in which it has pleased God to cast my Lot for several years past, than to make such an *Edition* of the Laws, as might be of general Use to all the Inhabitants thereof; that so every one being acquainted with the Laws of the Place, may readily give Obedience to the same; in which (next to their religious Duties to GOD) not only their Duty, but also their Safety and happiness doth consist.

The Library of Congress owns three copies of this rare book, all lacking some pages. The copy most distinguished in its provenance bears on its title page the signature of William Bull, Jr., five times Acting Governor of South Carolina between 1760 and 1775. Also on this title page is the late 18th-century signature of one Thomas Parker. Another copy is inscribed "Thomas Farr jun^r. [another hand:] of St. Andrew's Parish 12th. May 1773"; and in the following century it was given "With Edward Logan's kind regards to James Parker Esq. 18 Feb 1868." Thomas Farr can be identified as a merchant,^[22] but the later names have not been traced. The third Library copy retains no marks of previous ownership.



(Nicholas Trott's compilation of *The Laws of the Province of South-Carolina.*)

[21] Douglas C. McMurtrie, *The First Decade of Printing in the Royal Province of South Carolina* (London, 1933).

[22] A. S. Salley, ed., *Marriage Notices in The South-Carolina Gazette and Its Successors* (Baltimore, 1965), p. 21.

North Carolina

The first printer active in North Carolina was James Davis, a native of Virginia, who probably received his training from William Parks at Williamsburg.^[23] Davis settled at New Bern in 1749, and in the same year he began printing *The Journal of the House of Burgesses*.

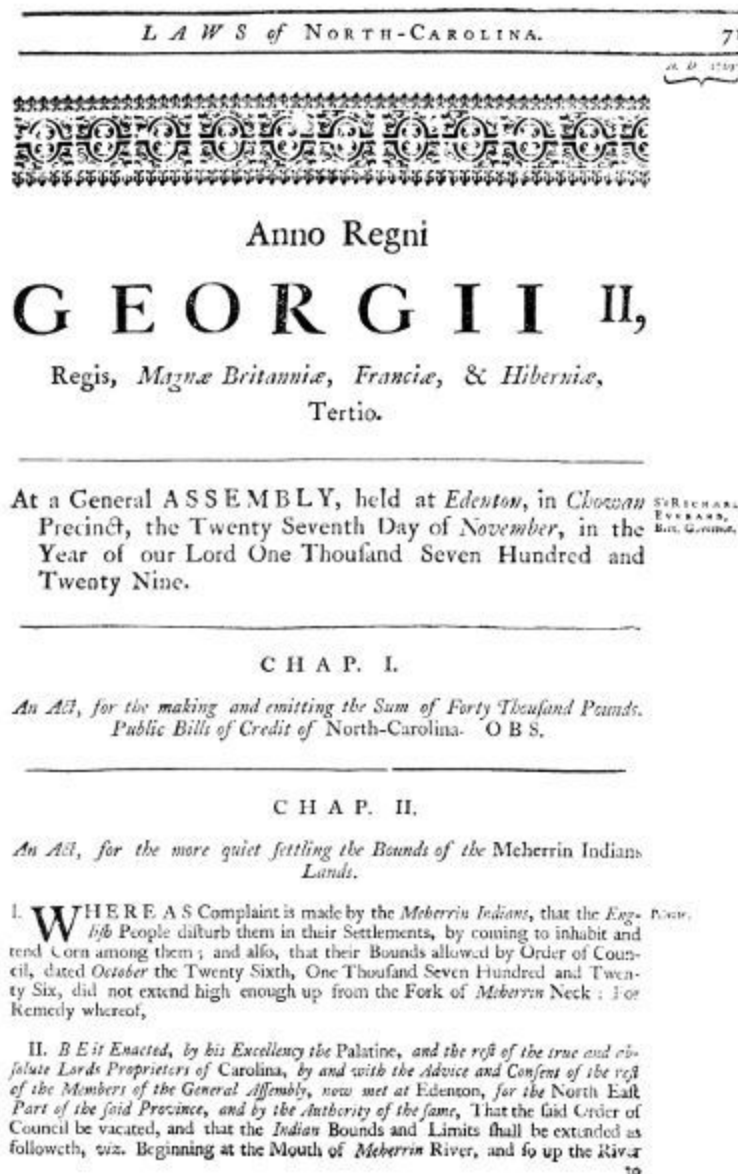
The earliest North Carolina imprint in the Library of Congress, printed by Davis in 1751, is carefully described in its title, *A Collection of All the Public Acts of Assembly, of the Province of North-Carolina: Now in Force and Use. Together with the Titles of all such Laws as are Obsolete, Expired, or Repeal'd. And also, an exact Table of the Titles of the Acts in Force, Revised by Commissioners appointed by an Act of the General Assembly of the said Province, for that Purpose; and Examined with the Records, and Confirmed in full Assembly*.

This collection is sometimes called "Swann's Revisal" after the commissioner William Swann, who did a major part of the editing and wrote the dedication to Governor Gabriel Johnston. One of the acts, passed on March 7, 1746, begins with the preamble, "Whereas for Want of the Laws of this Province being Revised and Printed, the Magistrates are often at a Loss how to discharge their Duty, and the People transgress many of them through Want of knowing the same...." These words reflect not only a shortage of copies, but also the need to rectify discrepancies in the manuscript copies by publishing a uniform text.

Davis did not complete the volume until about November 15, 1751, when he advertised it in his newspaper, *The North-Carolina Gazette*. Four distinct issues of the edition can be identified;^[24] and of these, the Library of Congress owns both the third, in which the laws of 1751 and 1752 (not shown in the table) are added, and the fourth, which is like the third but with a title page dated 1752 and a new table.

The Library's copy of the third issue bears on the title page the signature of Michael Payne, a resident of Edenton, N.C., who served in the State

legislature during the 1780's. The Library purchased it in 1936 from Richard Dillard Dixon of Edenton for \$500. The copy of the fourth issue is signed "Will Cumming" in an early hand, and it is inscribed to Samuel F. Phillips, who was Solicitor General of the United States from 1872 to 1885 and who appears to have been the latest owner of the book before its addition to the Library in 1876.



**(A Collection of All the Public Acts of
Assembly, of the Province of North-Carolina:
Now in Force and Use. Together with the
Titles of all such Laws as are Obsolete,**

***Expired, or Repeal'd. And also, an exact
Table of the Titles of the Acts in Force,
Revised by Commissioners appointed by an
Act of the General Assembly of the said
Province, for that Purpose; and Examined
with the Records, and Confirmed in full
Assembly. Printed by James Davis in 1751.)***

[23] See W. S. Powell's introduction to *The Journal of the House of Burgesses, of the Province of North-Carolina, 1749* (Raleigh, 1949), p. vii.

[24] Douglas C. McMurtrie, *Eighteenth Century North Carolina Imprints* (Chapel Hill, 1938), p. 50.

New Hampshire

1757. DECEMBER hath 31 DAYS.									
Pithes and Oaths, whene'er the Master's four'd, All largely on the Scape-goat Slave are pour'd. This drains his Rage; and tho' to JOHN so rough, Abroad you'd think him Complaisant enough. As									
Last Quart. 3 Day 4 Altern.					First Quart. 17 Day 7 Altern.				
New Moon 11 Day 3 Morn.					Full Moon 25 Day 4 Morn.				
M. W. Courts, Aspects, Weather, &c. O. S. R. O. S. F. Sea. D. i. p. i. s. O. S.									
1	5	8	D	h	6	U	♀	•	Apo.
2	6	h	16	☾	U	z	♂	♂	6
3	7	☉	16	♂	♂	21	♂	This	
4	8	♀	26	♂	♂	4	♂	Month	
5	2	begins with warm							
6	3	Inf. C. Barffable. Winds							
7	4	Now expect some							
8	5	Inf. C. Part. cloudy and							
9	6	* ☉ h wet Weather							
10	7	* ♀ followed with							
11	8	* h cold N. E. Winds							
12	2	something of Tides							
13	3	Inf. C. Char. Taunt &							
14	4	Snow • Peri. (Winds							
15	5	Δ ♂ ♀ but soon melts							
16	6	and grows warmer							
17	7	♂ ☉ ♀ S. Winds, and							
18	8	perhaps Rain, for a							
19	2	Day or two							
20	3	Inf. C. Plym & Provid.							
21	4	More Schemes projected,							
22	5	by the Fire Side, than							
23	6	h. ♀ can be good;—							
24	7	but much like the Winds							
25	8	and Weather, how							
26	2	variable? how unsettled?							
27	3	Inf. C. Salem How fast							
28	4	h. ☉ ♀ the Year • Apo							
29	5	has run! but who is bet							
30	6	ter now, than when it first							
31	7	h. ♀ stormy begun?							

(Nathaniel Ames' *An Astronomical Diary: or, An Almanack for the Year of Our Lord Christ, 1757* Printed by Daniel Fowle, 1756.)

The Boston printer Daniel Fowle felt himself unjustly punished by the Massachusetts Assembly for supposedly printing an objectionable pamphlet

in 1754. He consequently removed to Portsmouth in New Hampshire and started that Colony's first press in 1756.

The first New Hampshire book, preceded only by issues of *The New-Hampshire Gazette*, was printed by Fowle in the same year. It is Nathaniel Ames' *An Astronomical Diary: or, An Almanack for the Year of Our Lord Christ, 1757*. The Library of Congress owns one of four known copies of a singularly interesting later issue or state of the edition, featuring on its next-to-last page a historical note printed within an ornamental border: "*The first Printing Press set up in Portsmouth New Hampshire, was on August 1756; the Gazette publish'd the 7th of October; and this Almanack November following.*"

Almanacs written by Nathaniel Ames of Dedham, Mass., were bestsellers in mid-18th century America. This almanack for the year 1757, evidently reprinted from the Boston edition, is a somber one reflecting recent setbacks in England's conflict with France. A verse on the title page strikes the keynote:

MINORCA's gone! OSWEGO too is lost!
Review the Cause: or BRITAIN pays the Cost:
These sad EVENTS have silenced my Muse ...

The rebound Library of Congress copy, which bears no marks of previous ownership, is listed in the Library catalog of 1878 and presumably was obtained not long before then.

At about the same time the Library acquired and similarly rebound two other Daniel Fowle imprints of undetermined provenance, both of which are dated 1756 but were published later than the almanac. There is some question whether one of them, Jonathan Parsons' *Good News from a Far Country*, was begun at Boston or at Portsmouth. In any event, Fowle placed the following notice in the November 4, 1756, issue of his *Gazette*: "Good News from a far country: in seven discourses by Rev. Jonathan Parsons is soon to be published. Five of the sermons have already been set up and lack of paper prevents completion until a supply of paper arrives from London which is probable at an early date." Not until April 1757 did Fowle

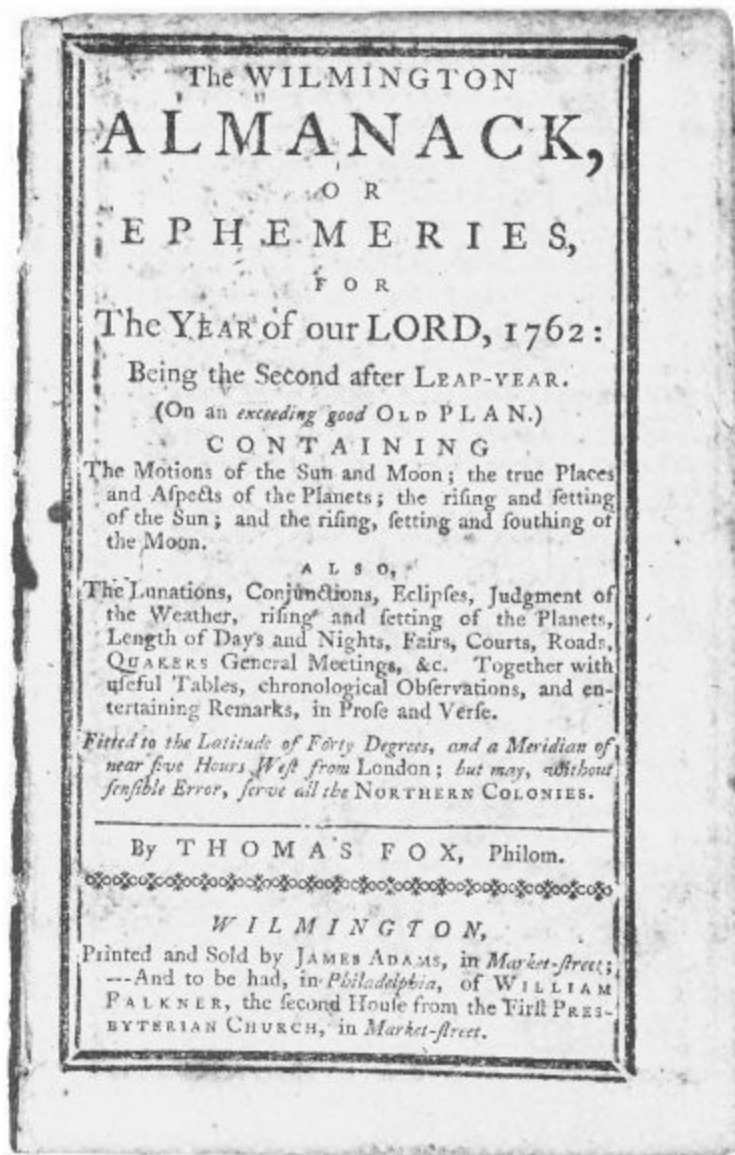
advertise the book for sale.^[25] The other imprint dated 1756 is Samuel Langdon's *The Excellency of the Word of God, in the Mouth of a Faithful Minister*,^[26] a sermon delivered on November 3 and also delayed in printing for lack of suitable paper. Both books were probably completed in the early months of 1757 but dated old style. There is a noticeable difference between the paper on which they are printed and the crude paper of the almanac, such as Fowle used for his newspaper.

^[25] See *Proceedings of the American Antiquarian Society*, 1915, new series, vol. 25, p. 329.

^[26] A Library of Congress stamp on this copy is dated 1876.

Delaware

James Adams of Londonderry, Ireland, after working more than seven years with Franklin and Hall in Philadelphia, established Delaware's first press at Wilmington in 1761.



(The Wilmington Almanack, or Ephemeris, for the Year of Our Lord, 1762. By Thomas Fox,

Philom.)

The Library of Congress possesses one of two extant imprints out of four that Adams is known to have issued at Wilmington in the latter part of that year: *The Wilmington Almanack, or Ephemeries* [sic], *for the Year of Our Lord, 1762 ... By Thomas Fox, Philom.*^[27] Copies, according to the title page, were also "to be had, in *Philadelphia*, of William Falkner." The publication is the first in an annual series of "Wilmington Almanacs," all printed by Adams, that were prepared for the years 1762 to 1794.

The otherwise unknown author, Thomas Fox (possibly a pseudonym), brings himself to the reader's attention in this statement:

Kind Reader,

Having for some Years observed those Almanacks published in America; and having formerly, in Europe, learned the Use of Mr. Thomas Street's Tables, with some others, and being willing to crowd in among the rest, I have calculated an Almanack for the Year 1762....

More interesting than the colorless prose and verse selections accompanying the astronomical tables are the printer's advertisements, such as the following notice near the end of the book:

BIBLES, Testaments, Psalters, Spelling-Books, Primers, Merchants blank Books, Writing-Paper, Ink, all Sorts of Blanks, viz., Bills of Lading, Kerry Bills, Penal Bills, Bills of Sale, Arbitration Bonds, Apprentices Indentures, Bonds with and without Judgment, to be sold at the Printing-Office in Wilmington.—Also, very good Lampblack.

* * * Ready money for clean Linen Rags, at the above Office.

The Library's copy of the almanac has been detached from a bound volume and bears no evidence of early ownership. It was acquired by exchange from Dodd, Mead & Company in 1908, at a valuation of \$15.

^[27] No. 3 in Evald Rink, *Printing in Delaware 1761-1800* (Wilmington, 1969).

Georgia

Anno Regni Tricesimo-secundo GEORGH II. Regis.

172

A N A C T

To prevent stealing of Horses and neat Cattle; and for the more effectual Discovery and Punishment of such Persons as shall unlawfully brand, mark, or kill the same.

WHEREAS no Law hath hitherto been provided in this Province, to prevent the great Evils of stealing Horses and neat Cattle, and of unlawfully branding, marking, or killing the same, whereby the said wicked Practices are become very common, to the great Discouragement and Detriment of the honest Inhabitants, for the Prevention of which for the future, and that proper Encouragement may be given for the Discovery of the same, We humbly pray your Most Sacred Majesty, that it may be enacted, **As** be it **Enacted**, by his Excellency HENRY ELLIS, Esquire, Captain-General and Governor in Chief of his Majesty's Province of Georgia, by and with the Advice and Consent of the Honourable Council and Commons House of Assembly of the said Province, in General Assembly met, and by the Authority of the same, That an Act of Parliament in the first Year of the Reign of King Edward the VI. intituled, *An Act for the Repeal of certain Statutes concerning Treason and Felonies*, in so far as the same relates to the felonious stealing of Horses, Geldings, or Mares, and also another Act of Parliament made in the second and third Years of the Reign of the said King, intituled, *A Bill for Horse and Horse Stealers*, are, and are hereby declared, immediately from and after the passing this Act, to be in full Force in this Province, to all Intents and Purposes whatsoever.

W

And be it further **Enacted**, by the Authority aforesaid, That the Justices assigned, or to be assigned, to keep the Peace in the several Districts in this Province, shall be, and are hereby appointed Toll-masters in their respective Districts, with full Power and Authority to exercise, within their several Districts, all and every the Powers given them as Toll-masters, by Virtue of this Act.

And be it further **Enacted**, by the Authority aforesaid, That the said Toll-masters appointed, or hereafter to be appointed, by Virtue of this Act, shall have Power to administer Oaths to the Persons avouching or tolling before them respectively, and are hereby declared to be sufficient Judges of the Proof of the Property of the Person so tolling; and, upon such Proof appearing sufficient, are hereby required and directed to toll or avouch any Horse, Mare, Gelding, Colt, or Filly, for that Purpose produced to them, or either of them; and, in a Book for that End to be kept, shall enter the Time of Sale, and the Name and Place of Dwelling of every Seller and Buyer of such Horse, Mare, Gelding, Colt, or Filly, and the burnt Mark, or other notable Flesh Mark thereof, and the Price of the Thing for which the same is sold or exchanged; and shall, under his Hand and Seal, give a Certificate of such Entry to every Person requiring the same, upon the Payment of One Shilling and Six-pence *sterling* for his Trouble therein, under

Preamble,

Enacted,

That certain Acts herein mentioned, in so far as they relate to the felonious stealing of Horses, Geldings, or Mares, are hereby declared, immediately after the passing hereof, to be in full Force in this Province, Justice of the Peace appointed Toll-masters in their respective Districts.

Said Toll-masters empowered to administer Oaths to Persons avouching before them, and declared to be sufficient Judges of the Proof of the Property of the Person so tolling, which appearing sufficient, are empowered to toll any Horse, &c. produced them, and shall enter in a Book the Time of Sale, and Name and Residence of the Seller and Buyer, and give

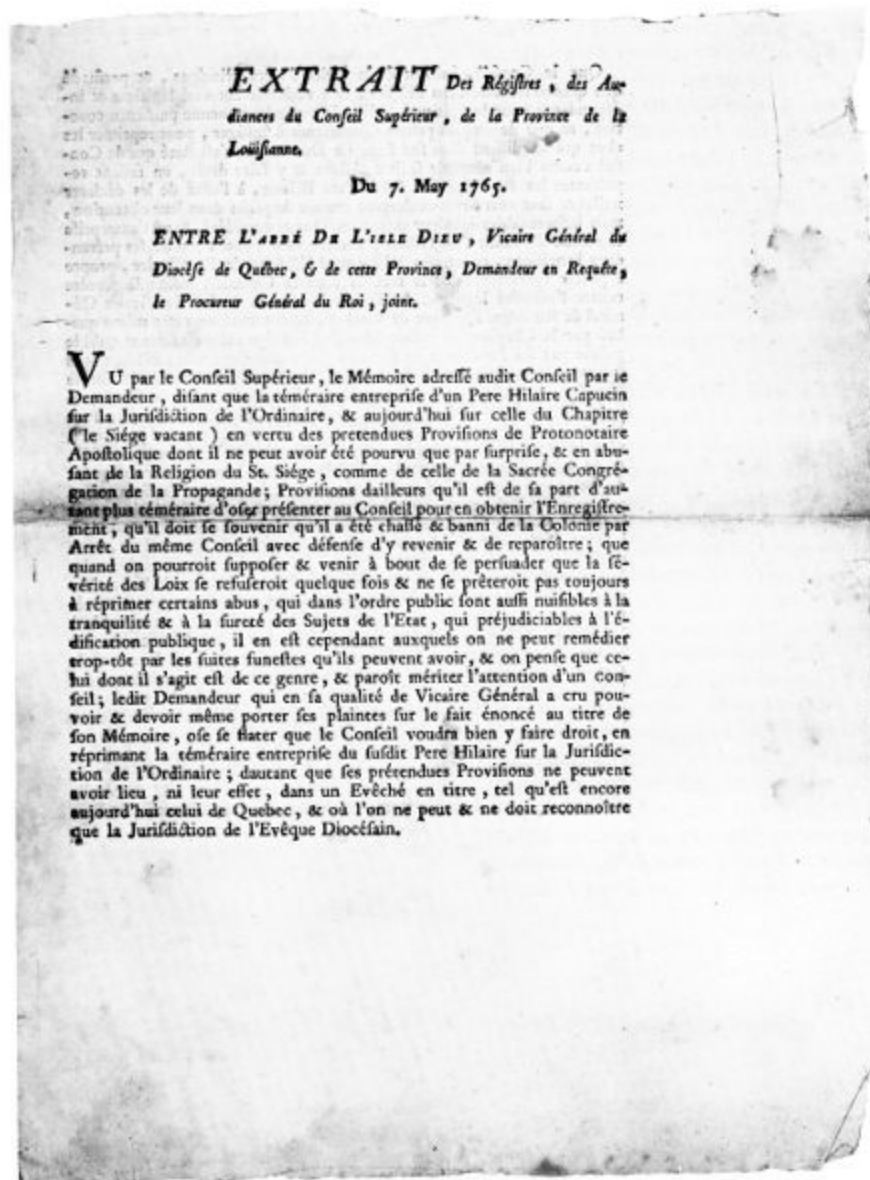
(An Act to Prevent Stealing of Horses and Neat Cattle; and for the More Effectual Discovery and Punishment of Such Persons as Shall Unlawfully Brand, Mark, or Kill the Same. Printed by James Johnston.)

An act for the provision of printing, passed by the Georgia Legislature on March 4, 1762, stated that "*James Johnston*, lately arrived in this province from *Great-Britain*, recommended as a person regularly bred to and well skilled in the art and mystery of printing, hath offered to set up a printing press in the town of *Savannah*." Employed to print the Colony's statutes, Johnston had readied the first Georgia press by April 7, 1763, when he began to publish his newspaper, *The Georgia Gazette*.

From the year 1763 the Library of Congress owns several official imprints bound up in a volume of Georgia laws enacted from 1755 to 1770 and one unofficial imprint, *The South-Carolina and Georgia Almanack, for the Year of Our Lord, 1764 ... By John Tobler, Esq.* This almanac, which the distinguished collector Wymberley Jones De Renne gave the Library in 1907, was published by December 8, 1763, and probably printed very shortly before. The earliest of Johnston's many official imprints, predating all his other work except *The Georgia Gazette*, are thought to be two acts advertised in that paper on June 2, 1763. They are entitled *An Act to Prevent Stealing of Horses and Neat Cattle; and for the More Effectual Discovery and Punishment of Such Persons as Shall Unlawfully Brand, Mark, or Kill the Same* and *An Act for Ascertaining the Qualifications of Jurors, and for Establishing the Method of Balloting and Summoning of Jurors in the Province of Georgia*. They had been passed on March 27, 1759, and April 24, 1760, and were printed in folio in four and six pages, respectively. Both acts are represented in the Library of Congress bound volume of early Georgia laws. Only two other copies of each are known to be extant.

Various owners inscribed their name in this book. Joseph Stiles, who operated the Vale Royal Plantation near Savannah from 1806 until his death in 1838, owned at least the latter part of it, where his signature and that of his son, the evangelist Joseph C. Stiles, may be seen. Another owner of the same part was John C. Nicholl (1793-1863), a prominent lawyer and jurist who served as mayor of Savannah in 1836 and 1837. A later owner of the entire volume was a certain S. H. McIntire, not known to have any Savannah connections, who inscribed it in June 1878. The Library of Congress purchased it in June 1909 from the Statute Law Book Company of Washington, D.C. for \$2,500.

Louisiana



(EXTRAIT De Registres, des Audiances du Conseil Supérieur, de la Province de la Louisiane. Du 7. May 1765. ENTRE L'ABBE DE L'ISLE DIEU, Vicaire Général du Diocèse de Québec, & de cette Province, Demandeur en Requête, le Procureur Général du Roi, joint.)

Only after printing penetrated the Thirteen Colonies did the French printer Denis Braud carry the art to Louisiana. His earliest known work, an official broadside concerning the transfer of Louisiana from French to Spanish ownership, was printed at New Orleans in 1764.

The earliest Louisiana imprint in the Library of Congress is the second extant example of Louisiana printing. The Library's unique copy is a four-page, folio-sized document signed by Garic, clerk of the Superior Council of Louisiana, and headed, "EXTRAIT De Régistres, des Audiances du Conseil Supérieur, de la Province de la Loüisiane. Du 7. May 1765. ENTRE L'ABBE DE L'ISLE DIEU, Vicaire Général du Diocèse de Québec, & de cette Province, Demandeur en Requête, le Procureur Général du Roi, joint." It is a decree restricting the activities of the Capuchin friar Hilaire Genoveaux and suppressing a catechism circulated by him which apparently had also been printed at New Orleans. The title of the catechism, as preserved in the text of the decree, is *Catechisme pour la Province de la Loüisianne, &c. Rédigé par le R. P. Hilaire, Protonotaire du St. Siège & Supérieur Général de la Mission des Capucins en ladite Province, pour être seul enseigné dans sadite Mission*. The contemporary importance of the surviving document lay in its connection with a far-reaching struggle between the Jesuit and Franciscan orders over ecclesiastical authority in Louisiana. Although it contains no imprint statement naming place of publication or printer, typographical features of the document serve to identify it as the work of Denis Braud.^[28]

That this unique copy belonged to an official archive—presumably that of the Superior Council of Louisiana—the following manuscript additions make apparent. There is first a notation: "Joint a la lettre de M. Aubry, Command. a la Louisianne du 7. May 1765." (Aubry had succeeded d'Abbadie as commandant, or governor, after the latter's death in February 1765.) A second column in manuscript contains the same date as a filing guide and this descriptive title: "Arrest du Conseil Superieur de la Louisianne portant deffense au Pere Hilaire Capucin de simississer [*i. e.* s'immiscer] dans aucune Jurisdiction Ecclesiastique autre que celle qui lui est permise par son seul titre de superieur de la mission des RR. PP. Capucins de cette Colonie." At the end of the column is a cross reference: "Voyez les lettres de M. l'Abbe de LIsle Dieu Vicaire g[e]n[er]al de M. de Quebec en 1759 et 1760 et sa Correspond. a ce sujet."

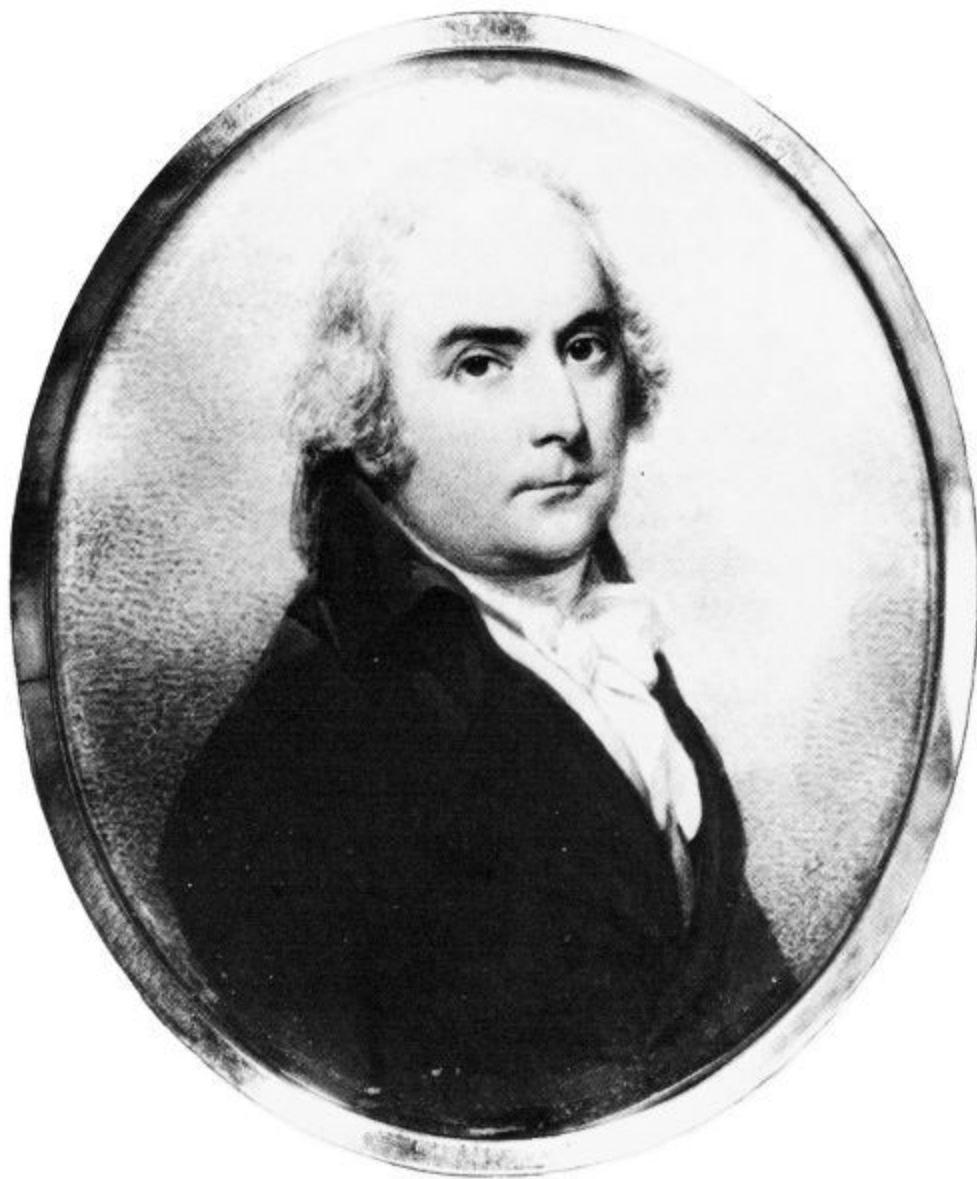
The subsequent history of this document has not been traced before October 17, 1905, when C. F. Libbie & Co auctioned it off with the library of Israel T. Hunt, a Boston physician. The Library of Congress was able to obtain it on that date for \$10.45.

[28] See Douglas C. McMurtrie, *Early Printing in New Orleans* (New Orleans, 1929), p. 25-26 and 88. McMurtrie mistakenly locates the original at the New York Public Library, which owns a photostat copy.

Vermont

Formed as an independent republic in 1777, Vermont in the next year appointed the brothers Alden and Judah Padock Spooner of Connecticut to be her official printers. Publications under their imprint were issued at Dresden, before and later named Hanover, in 1778 and 1779; but in February 1779 this town, along with 15 others east of the Connecticut River, returned to the jurisdiction of New Hampshire. The earliest printing from within the present borders of Vermont came from the town of Westminster, where Judah Padock Spooner and Timothy Green, son of the State Printer of Connecticut, undertook the official printing late in 1780.

The Library of Congress possesses three Dresden imprints dated 1779. The first two listed here name Alden Spooner as printer, while the third names both brothers. They are Ira Allen's *A Vindication of the Conduct of the General Assembly of the State of Vermont, Held at Windsor in October 1778, Against Allegations and Remarks of the Protesting Members, With Observations on Their Proceedings at a Convention Held at Cornish, on the 9th Day of December 1778*; Ethan Allen's *A Vindication of the Opposition of the Inhabitants of Vermont to the Government of New-York, and of Their Right to Form into an Independent State. Humbly Submitted to the Consideration of the Impartial World*; and *Acts and Laws of the State of Vermont, in America*. The earliest of the three would appear to be Ira Allen's 48-page *Vindication*, known from a printer's bill of February 10, 1779, to have been produced by then in 450 copies.^[29] The Library's rebound copy is inscribed "from y^e author" beneath its imprint statement, and at the head of the title page is written, "Nath^l Peabody^s Book." Nathaniel Peabody (1741-1823), a New Hampshire legislator, served as a delegate to the Continental Congress in 1779 and 1780. His book was ultimately listed in the *Catalogue of Books Added to the Library of Congress During the Year 1871*.



Ira Allen (1751-1814), miniature attributed to Edward G. Malbone, ca. 1795-1798. Courtesy of the Robert Hull Fleming Museum, the University of Vermont, Burlington.

The Library holds the other two Dresden imprints in duplicate. A copy of the *Acts and Laws* was formerly in the Hazard Pamphlets, acquired with the collection of Peter Force (see p. 8, above). Ebenezer Hazard (1744-1817) was an early collector of Americana. The two copies of Ethan Allen's *Vindication*, both printed on blue paper, are in the Hazard Pamphlets, volume 47, number 3, and in Colonial Pamphlets, volume 19, number 6.

The latter pamphlet volume originally formed part of Thomas Jefferson's library, obtained by the Congress in 1815 (see p. 3, above).^[30]

The earliest example of printing from present-day Vermont in the Library is a document printed by Judah Padock Spooner at Westminster in 1781^[31]: *Acts and Laws, Passed by the General Assembly of the Representatives of the State of Vermont, at their Session at Windsor, April 1781*. In four pages, it contains only "An Act for the Purpose of emitting a Sum of Money, and directing the Redemption of the same." The Act provides for a land tax, stating in justification that "The Land is the great Object of the present War, and receives the most solid Protection of any Estate, a very large Part of which has hitherto paid no Part of the great Cost arisen in defending it, whilst the Blood and Treasure of the Inhabitants of the State has been spent to protect it, who many of them owned but a very small part thereof."

The Library of Congress copy bears the following inscription: "Secry's Office 10th August 1785. The preceding is a true Copy of an Act passed by the Legislature of the State of Vermont April 14th 1781—Attest Micah Townsend, Secry." Although a loyalist, Micah Townsend served as secretary of state in Vermont from October 1781 until 1789.^[32] The Library's copy also bears the autograph of a private owner, Henry Stevens of Barnet, Vt., first president of the Vermont Historical Society. After his death in 1867, his son Henry Stevens, the bookseller, wrote that he left his home "full of books and historical manuscripts, the delight of his youth, the companions of his manhood, and the solace of his old age."^[33] To judge from its present library binding, this thin volume has been in the Library of Congress collections since the 19th century.

^[29] See no. 12 in Marcus A. McCorison's *Vermont Imprints 1778-1820* (Worcester, 1963).

^[30] No. 3146 in U.S. Library of Congress, *Catalogue of the Library of Thomas Jefferson, Compiled with Annotations by E. Millicent Sowerby* (Washington, 1952-59). See also no. 498.

^[31] Imprint information supplied in McCorison, no. 47.

^[32] See Chilton Williamson, *Vermont in Quandary* (Montpelier, 1949), p. 133. On Townsend's divulging secret intelligence to the British in April 1781, see J. B. Wilbur, *Ira Allen* (Boston and New York, 1928), p. 183-186.

[\[33\]](#) See W. W. Parker, *Henry Stevens of Vermont* (Amsterdam, 1963), p. 21.

Florida



FLORIDA GAZETTE. VOL. I. ST. AUGUSTINE, (E. F.) SATURDAY, JULY 28, 1821. No. 3.

Dr. William Charles Wells, one of many American loyalists who took refuge in Florida, introduced printing at St. Augustine in 1783. There he published a loyalist paper, *The East-Florida Gazette*, under the imprint of his elder brother, the Charleston printer John Wells, and with the assistance of a pressman named Charles Wright. Apart from two books of 1784 bearing John Wells' imprint and a document printed at Amelia Island in 1817 during the Spanish rule, no other Florida publications survive from the years preceding United States acquisition of the territory.^[34]

Richard W. Edes, grandson of the Boston printer Benjamin Edes, reestablished printing at St. Augustine, issuing the first number of his weekly paper, the *Florida Gazette*, on the day of the transfer of Florida's administration, July 14, 1821. The Library of Congress holds 10 issues, constituting the best surviving file of this paper. The earliest Florida printing in the Library is the third issue, published July 28 and the earliest issue extant. This happens to be a very curious example of printing. Of its four pages the second is half blank and the third is totally blank, the following explanation being given:

TO OUR PATRONS.

We are under the disagreeable necessity of issuing this number of the Gazette, in its present form, owing to a very lengthy advertisement, (occupying seven columns) being ordered out the moment the paper was ready for the Press. It being a personal

controversy between Mr. *William Robertson*, and Messrs. *Hernandez*, *Kingsley* and *Yonge*, Esquires, and a reply to Mr. Hernandez's publication of last week, our readers would not have found it very interesting. Its publication was countermanded on account of an amicable arrangement being made by the parties about one o'clock this day.

We hope this will be a sufficient apology to our subscribers for the manner in which the Paper appears, as it is impossible for it to be issued this day in any other way, being short of hands. We pledge ourselves another instance of the kind shall never occur—and assure the public we feel much aggrieved at the imposition. The advertisement of Mr. Wm. Robertson, headed "*Caution*" and the reply by J. M. Hernandez, Esq. will be discontinued after this week, and no further altercation between the parties will be permitted thro' the medium of this Press.

The printed portions of this early issue include an installment of a "Historical Sketch of Florida," extracts from various newspapers, and among others the printer's own advertisements: "COMMERCIAL BLANKS, For Sale at this Office. Also, Blank Deeds, Mortgages, &c. &c." "Blank Bills of Lading, For Sale at the Gazette Office" and "BOOK AND JOB PRINTING, Of every description, executed at this Office." In this century the Library bound the 10 issues into a single volume. Those dated November 24 and December 1 are addressed in ink to the Department of State at Washington.

From the same year the Library of Congress holds 13 issues of *The Floridian*, published at Pensacola beginning August 18, some of which are also addressed to the Department of State. From this year, too, the Library possesses *Ordinances, by Major-General Andrew Jackson, Governor of the Provinces of the Floridas, Exercising the Powers of the Captain-General, and of the Intendant of the Island of Cuba, Over the Said Provinces, and of the Governors of Said Provinces Respectively*, printed at St. Augustine by Edes. This pamphlet-sized volume was advertised as "just published" in the September 15 issue of the *Florida Gazette*; and the Library's copy, one of two extant,^[35] was autographed twice by "John Rodman Esquire" at St. Augustine. Since he once added the designation "Collector" to his name, he

is readily identified as the person who placed the following announcement in the November 24 issue of the *Gazette*: "JOHN RODMAN, Attorney & Counsellor at Law, May be consulted on professional business, at his Office in the Custom-House."

EXCHANGE COFFEE-HOUSE.
Marshall & Ruckman,
RESPECTFULLY inform their friends and the public in general, that they have opened the above establishment opposite the Custom-House, where their bar will be constantly supplied with the best of Malt and Spirituous Liquors.
 July 21.

ANN SCHELLING.
RESPECTFULLY informs the gentlemen of St. Augustine, that she has opened an establishment west of the store of Mr. Pablo Salate, called
THE COTTAGE,
 where they may pass their leisure hours in perfect harmony, under the shade of a refreshing grove. Every Sunday, Monday, Wednesday and Friday, green Turtle Soup will be served from 11 to 2 o'clock. Families can be supplied with any quantity by sending early.
 July 24.—26*

DR. C. N. MCCOSKRY,
OFFERS his professional services to the citizens of St. Augustine. He may be consulted at any time at the old government house in the square,
 July 1.—16

SURVEYS, either of city lots, or tracts in the country, will be made with accuracy by the subscriber. Orders left at the Post-Office will be attended to by
GEORGE K. GIBBS.
 July 23.—26

POST OFFICE.
THE Public are informed, that a regular Mail will be continued between this City and St. Mary's.—It will leave this, on Thursday mornings, and return the following Monday's. Letters intended to go by Mail, must be left at the Post-Office on Wednesdays.
 In future, all Captains of vessels, will be required to deposit all letters brought by them, in this office, except those addressed to Consignees.
D. COPP, acting Post-Master.
 July 17.—16

PROPOSALS
WILL be received by the Assistant Commissary of Subsistence, to furnish Fresh Beef to the United States Troops, stationed at Fort St. Marks.
SAMUEL WASHBURN,
Asst. Com'g. Subs.
 July 17.—16

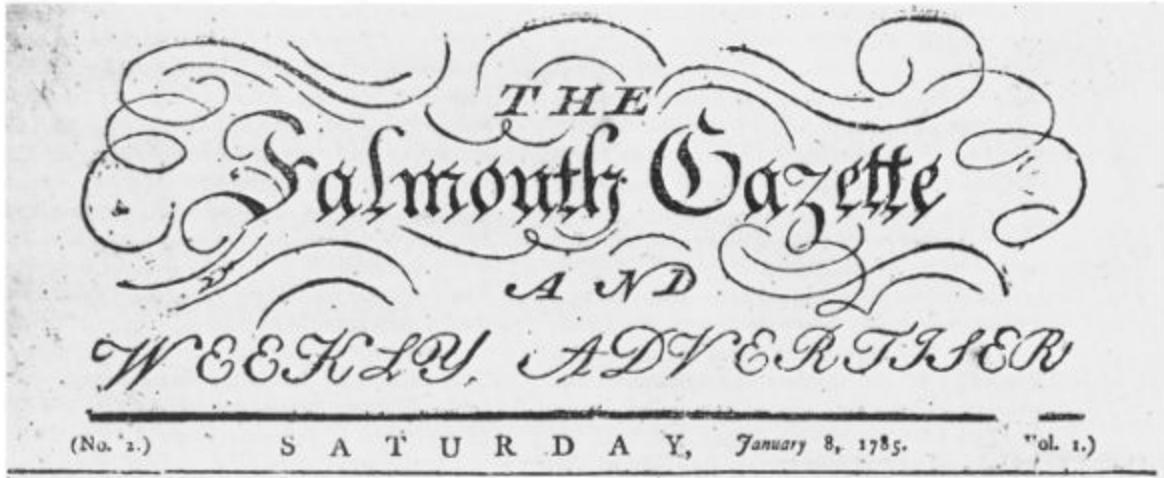
FOR SALE.
AN excellent BILLIARD TABLE, with Maces, Cues and Balls complete. It is in order for immediate use, and will be sold low if application be made to
THOMAS CAMPBELL,
At Don Fernando Arredondo's Store-House.
 July 21.

(Florida Gazette ads)

[34] See Douglas C. McMurtrie, "The Beginnings of Printing in Florida," in *The Florida Historical Quarterly*, vol. 23 (1944-45), p. [63]-96.

[35] See no. 36 in Thomas W. Streeter's *Americana—Beginnings* (Morristown, N.J., 1952).

Maine



***The Falmouth Gazette and Weekly Advertiser* (No. 2.) Saturday, January 8, 1785. (Vol. 1.)**

Benjamin Titcomb and Thomas B. Wait introduced printing in the District of Maine, then part of Massachusetts, with the first issue of *The Falmouth Gazette and Weekly Advertiser*, dated January 1, 1785. Titcomb was a native of Falmouth, now Portland, who had gained his experience at Newburyport, and Wait was formerly employed at Boston. ^[36]

The Library of Congress possesses nine issues of *The Falmouth Gazette* from this first year of printing in Maine. Of these the earliest is a partly mutilated copy of the second issue, dated January 8 and featuring a moralistic essay "On Entrance into Life, and the Conduct of early Manhood." This issue contains one piece of news, relayed from a Boston paper, that has importance for American printing history, namely, the arrival in this country from Ireland, "that land of gudgeons," of Mathew Carey, destined to become a leading printer and publisher at Philadelphia. Since the Library of Congress copy is inscribed "Mess^{rs} Adams & Nourse printers," it is interesting to note that one of the Falmouth news items was reprinted in their Boston paper, *The Independent Chronicle*, for January 20. Similarly, the Library's copy of the August 13 issue of the *Gazette* is

addressed in manuscript to the famous printer Isaiah Thomas at Worcester, and it retains his editorial markings for the reprinting of two sections—a news item and a poem on atheism—that subsequently appeared in the September 1 and September 8 issues of *Thomas's Massachusetts Spy; or, The Worcester Gazette*. It was largely by means of just such borrowing amongst themselves that most early American newspapers were put together.

Four of the Library's nine issues, including the Isaiah Thomas copy, were purchased from Goodspeed's Book Shop for \$13.50 in 1939. Four of the remaining five, including the very earliest, appear from their physical condition to have a common provenance. The five were listed initially in the 1936 edition of *A Checklist of American Eighteenth-Century Newspapers in the Library of Congress*.^[37]

^[36] See R. Webb Noyes, *A Bibliography of Maine Imprints to 1820* (Stonington, Maine, 1930), p. 7.

^[37] The preface to this edition is dated June 1, 1935. A sixth issue of the *Gazette* (March 5) listed here was later replaced by a better copy from the 1939 purchase.

Kentucky

The printing history of Kentucky begins with the August 11, 1787, issue of a Lexington newspaper, *The Kentucke Gazette*. John Bradford of Fauquier County, Va., established this paper in partnership with his younger brother, Fielding. They purchased their press at Philadelphia in the spring of 1787 and transported it to Lexington by way of Pittsburgh, where the first press to cross the Alleghenies had been active since the preceding summer.^[38]

The earliest Kentucky imprint in the Library of Congress is *The Kentucke Gazette* for March 1, 1788. Like five other issues of the paper, available at the Library in facsimile, this original issue opens with "Extracts from the journals of a convention begun and held for the district of Kentucky at Danville in the county of Mercer on the 17th day of September 1787." The extracts are resolutions looking towards the separation of Kentucky from Virginia, and the following one accounts for their publication in this paper:

[Resolved]^[39] That full opportunity may be given to the good people of exercising their right of suffrage on an occasion so interesting to them, each of the officers so holding elections, shall continue the same from day to day, for five days including the first day, and shall cause these resolutions to be read immediately preceeding the opening of the election at the door of the courthouse, or other convenient place; and that Mr. Bradford be requested to publish the same in his Kentucky Gazette, six weeks successively, immediately preceeding the time of holding said elections.

At a time for important decisions *The Kentucke Gazette* served as a means of airing different opinions on statehood, independence, and constitutional questions. A long second portion of this March 1 issue is an essay on liberty and equality signed by "Republicus." Critical of certain sections of the proposed Federal Constitution, he opposes a bicameral legislature, fears undue influence of the Congress over State elections, and denounces any condoning of slavery. The remainder of the issue includes an announcement

of the ice breaking up on the Ohio River, a report of an Indian raid, and an advertisement in this vein: "I have been told that a certain Jordan Harris asserted in a public and very positive manner, that I had acknowledged myself a liar and a scoundrel in a letter to maj. Crittenden." The writer, Humphrey Marshall, concludes that if said letter is published, "the public will then see who is the liar and the scoundrel." This early issue bears the name of the subscriber Richard Eastin, one of the first justices of the peace in Jefferson County.^[40]

The Library's only other examples of Kentucky printing from 1788 are eight additional issues of the *Gazette*, for November 8 through December 27, which have been detached from a bound volume and are still joined together. These belonged to Walter Carr, who was serving as a magistrate in Fayette County by 1792 and who in 1799 attended the convention to form the second constitution of Kentucky.^[41] Nothing more can be ascertained about the acquisition of these holdings than that the March 1 issue is first listed in the 1912 edition and that the later issues are first listed in the 1936 edition of *A Checklist of American Eighteenth-Century Newspapers in the Library of Congress*.



(THE KENTUCKE GAZETTE, March 1,
1788.)

[Click image for larger view.]

[38] See J. Winston Coleman, Jr., *John Bradford, Esq.* (Lexington, Ky., 1950).

[39] Brackets in text.

[40] J. Stoddard Johnston, *Memorial History of Louisville* (Chicago and New York [pref. 1896]), vol. 2, p. 3.

[41] C. R. Staples, *The History of Pioneer Lexington* (Lexington, 1939), p. 78 and 151.

West Virginia

Late in 1790 Nathaniel Willis, grandfather of the writer Nathaniel Parker Willis, established at Shepherdstown the first press within the present boundaries of West Virginia. For some years he had published *The Independent Chronicle* at Boston, and earlier in 1790 he had been printing at Winchester, Va. At Shepherdstown Willis published *The Potowmac Guardian, and Berkeley Advertiser* from November 1790 at least through December 1791.^[42] By April 1792 he had moved to Martinsburg, where he continued publishing his newspaper under the same title.

The earliest example of West Virginia printing in the Library of Congress is a broadside printed at Martinsburg in 1792. Entitled *Charter of the Town of Woodstock* [Pa.], it consists of the printed text of a legal document in the name of one John Hopwood and dated November 8, 1791. The preamble of the document reveals its nature:

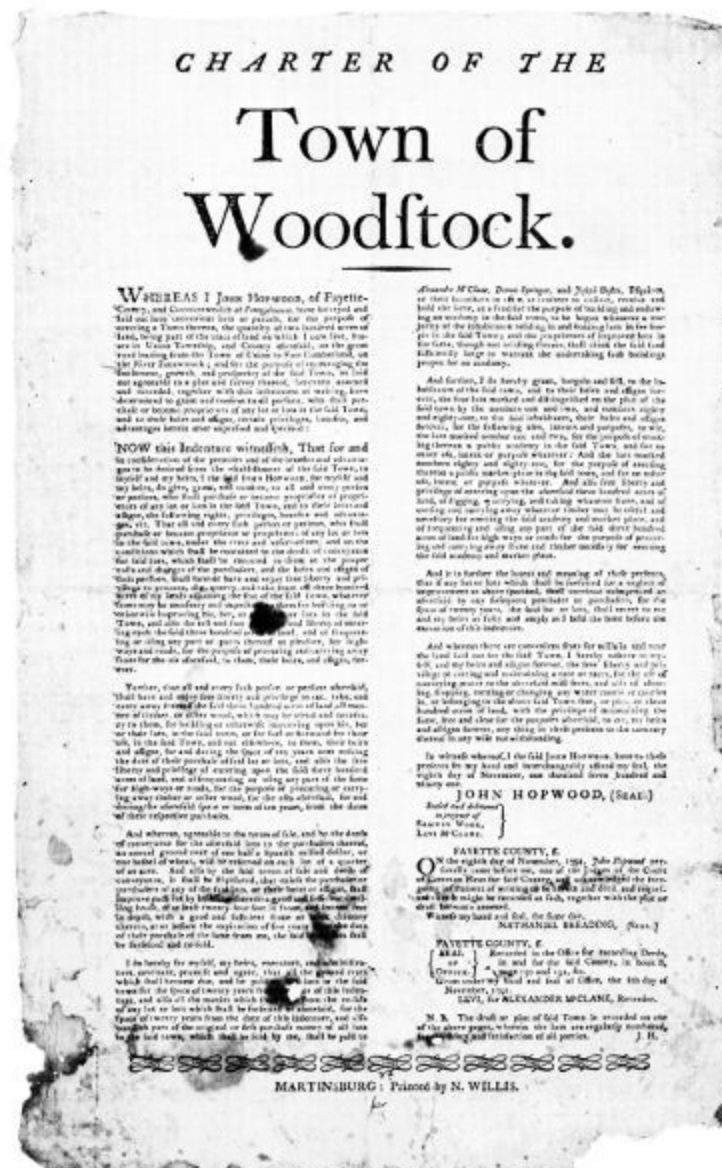
Whereas I John Hopwood, of Fayette-County, and Commonwealth of *Pennsylvania*, have surveyed and laid out into convenient lots or parcels, for the purpose of erecting a Town thereon, the quantity of two hundred acres of land, being part of the tract of land on which I now live, situate in Union Township, and County aforesaid, on the great road leading from the Town of Union to Fort Cumberland, on the River Potowmack; and for the purpose of encouraging the settlement, growth, and prosperity of the said Town, as laid out agreeable to a plan and survey thereof, hereunto annexed and recorded, together with this instrument of writing, have determined to grant and confirm to all persons, who shall purchase or become proprietors of any lot or lots in the said Town, and to their heirs and assigns, certain privileges, benefits, and advantages herein after expressed and specified....

Access of the proposed town to the Potomac River is the clue to why this broadside relating to an otherwise remote location in Pennsylvania should

have been printed in this part of West Virginia.

The *Charter* is the third recorded West Virginia imprint apart from newspaper issues, and the Library of Congress has the only known copy. Written on the verso is: Col. Morr[——] And other early hands have written there, "Hopwoods deeds" and "no body will have his Lotts."

At the Anderson Galleries sale of Americana held at New York on November 9, 1927, the presumed same copy of the *Charter* was sold from the library of Arthur DeLisle, M.D. (1851-1925), librarian of the Advocates' Library in Montreal.^[43] It fetched \$11. The Library of Congress obtained it in October 1935 from the Aldine Book Shop in Brooklyn for \$35.



(Charter of the Town of Woodstock.)

[Click on image for larger view.]

[42] The latest extant Shepherdstown issue of *The Potowmac Guardian*, for December 27, 1791, is reported in Clarence S. Brigham, *Additions and Corrections to History and Bibliography of American Newspapers 1690-1820* (Worcester, Mass., 1961), p. 50.

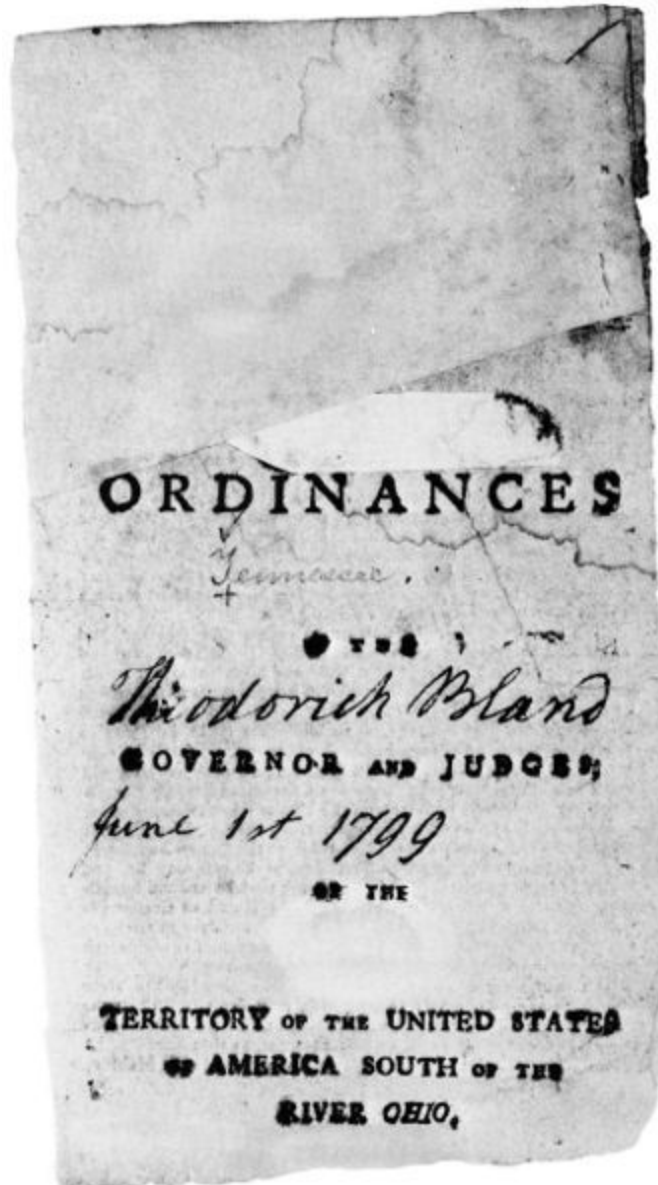
[43] According to his obituary in the Montreal newspaper *La Presse*, December 22, 1925, Arthur DeLisle obtained a degree in medicine but never practiced that profession. "M. DeLisle s'intéressait vivement à toutes les choses de l'histoire et, par des recherches patientes et continues il fit de la bibliothèque du Barreau ce qu'elle est aujourd'hui, l'enrichissant sans cesse de livres et de documents

précieux relatifs à l'histoire du droit, ainsi qu'à la biographie des juges et des avocats de Montréal depuis 1828."

Tennessee

The printers George Roulstone and Robert Ferguson introduced the first Tennessee printing at Hawkins Court House, now Rogersville, with the November 5, 1791, issue of *The Knoxville Gazette*. Both men came to the Tennessee country, or Southwest Territory, by way of North Carolina. Their newspaper remained at Hawkins Court House until October 1792, while Knoxville, chosen as the seat of the Territorial government, was being constructed.

The earliest Tennessee imprint in the Library of Congress is probably the eight-page official publication entitled *Acts and Ordinances of the Governor and Judges, of the Territory of the United States of America South of the River Ohio*, which according to Douglas C. McMurtrie "was certainly printed by Roulstone at Knoxville in 1793, though it bears no imprint to this effect."^[44] Its contents, relating principally to the definition of separate judicial districts within the Territory, are dated from June 11, 1792, to March 21, 1793, and the printing could have been accomplished soon after the latter date.



*Patch-repairs help to preserve not only
the title page but the first page of the
text, which is printed on the verso.*

The Library of Congress copy is one of those afterwards prefixed to and issued with a much more extensive work printed by Roulstone in 1794: *Acts Passed at the First Session of the General Assembly of the Territory of the United States of America, South of the River Ohio, Began and Held at Knoxville, on Monday the Twenty-Fifth Day of August, M,DCC,XCIV*. The Library's volume lost its 1794 title page at an early date, and it is the exposed second leaf, the title page of 1793, that bears the inscription,

"Theodorick Bland June 1st 1799." Theodorick Bland (1777-1846) was to be chancellor of Maryland for many years. His correspondence preserved by the Maryland Historical Society reveals that he practiced law in Tennessee from 1798 to 1801. From such evidence as its Library of Congress bookplate, the volume would appear to have entered the Library around the late 1870's.

The earliest dated example of Tennessee printing in the Library is the *Knoxville Gazette* for June 1, 1793, issued a month after Ferguson retired from the paper. The issue begins with a lengthy selection by Benjamin Franklin, which is prefaced in this way:

Messrs. *Printers*,

I beg you to publish in your next number of the *Knoxville Gazette*, the following extracts, from a narrative of the massacres in Lancaster county, Pennsylvania; of a number of friendly Indians, by persons unknown; written by the late Dr. *Benjamin Franklin*, whose many benevolent acts, will immortalize his memory, and published in a *British Magazine*, [\[45\]](#) in April 1764.

I am your obedient servant,
W.B.

The subscriber was undoubtedly William Blount, the Territorial Governor appointed by President Washington in 1790, who perhaps hoped that the sympathy towards Indians expressed by Franklin might temper public reaction against Indian raids figuring so large in the local news. Readers of the same June 1 issue learned of such crimes as the scalping of a child near Nashville, and they may have been moved by the following paragraph which the editor interjected in the news reports:

The Creek nation must be destroyed, or the south western frontiers, from the mouth of St. Mary's to the western extremities of Kentucky and Virginia, will be incessantly harassed by them; and now is the time. [*Delenda est Carthago.*] [\[46\]](#)

Both this issue and the June 15 issue, the sole Library of Congress holdings of the *Gazette* for the year 1793, are inscribed "Claiborne Watkins, esq^r." They probably belonged to the person of that name residing in Washington County, Va., who served as a presidential elector in 1792.^[47]

[44] *Early Printing in Tennessee* (Chicago, 1933), p. 21.

[45] *The Gentleman's Magazine*. Franklin's *A Narrative of the Late Massacres* was published separately at Philadelphia in the same year.

[46] Brackets in text. Several issues carried this paragraph. See William Rule, ed. *Standard History of Knoxville, Tennessee* (Chicago, 1900), p. 74.

[47] See *Calendar of Virginia State Papers*, vol. 6 (1886), p. 140.

Ohio

William Maxwell of New York, after failing to establish himself at Lexington, Ky., moved on to Cincinnati in the Northwest Territory and thereby became the first Ohio printer. His work at Cincinnati began with the November 9, 1793, issue of his newspaper, *The Centinel of the North-Western Territory*.^[48]

The earliest known Ohio book, also printed by Maxwell, is the earliest example of Ohio printing to be found at the Library of Congress: *Laws of the Territory of the United States North-West of the Ohio: Adopted and Made by the Governour and Judges, in Their Legislative Capacity, at a Session Begun on Friday, the XXIX Day of May, One Thousand, Seven Hundred and Ninety-Five, and Ending on Tuesday the Twenty-Fifth Day of August Following....* Dated 1796, "Maxwell's Code," as this book is sometimes called, was not the first publication of Northwest Territory laws, others having been printed at Philadelphia in 1792 and 1794.

The printer set forth a "Proposal" concerning the forthcoming work in the *Centinel* of July 25, 1795:

W. Maxwell being appointed by the legislature to print for them 200 copies of their laws, he thinks it would be greatly conducive towards the instruction and common benefit of all the citizens to extend the impression to 1000 copies.... The price, in boards, to subscribers, will be at the rate of nineteen cents for every 50 pages, and to non-subscribers, thirty cents.^[49]

the said justices, not exceeding, three dollars; and if able, to make restitution, besides, to the party wronged: paying also the charges of prosecution and whipping: or, otherwise, shall be sent to the work house, to be kept at hard labour: and, for want of such work-house, to be committed to prison, for such charges, for a term not exceeding twelve days; any law to the contrary, notwithstanding.

Party accused may, on request, have trial before the quarter sessions, on recognizance for appearance there - except servants, unless &c

II. *Provided always*, That if the party, so charged with such larceny, request to be tried at the court of general quarter sessions of the peace, to be held for the county respectively, the same shall be granted by the said justices; the offending party giving security to appear and answer at the said court: otherwise he or she shall be committed, as is usual in such cases. But, if the party so charged with larceny be a servant or servants, he, she or they shall not have any appeal, unless the master, mistress or friend of the party charged shall become security for his, her or their appearance at the next court, as, in such cases, is usual.

Justices to record their proceedings herein.

III. One or more of the justices who shall render judgment, by virtue of this law, shall keep fair records of his or their proceedings therein.

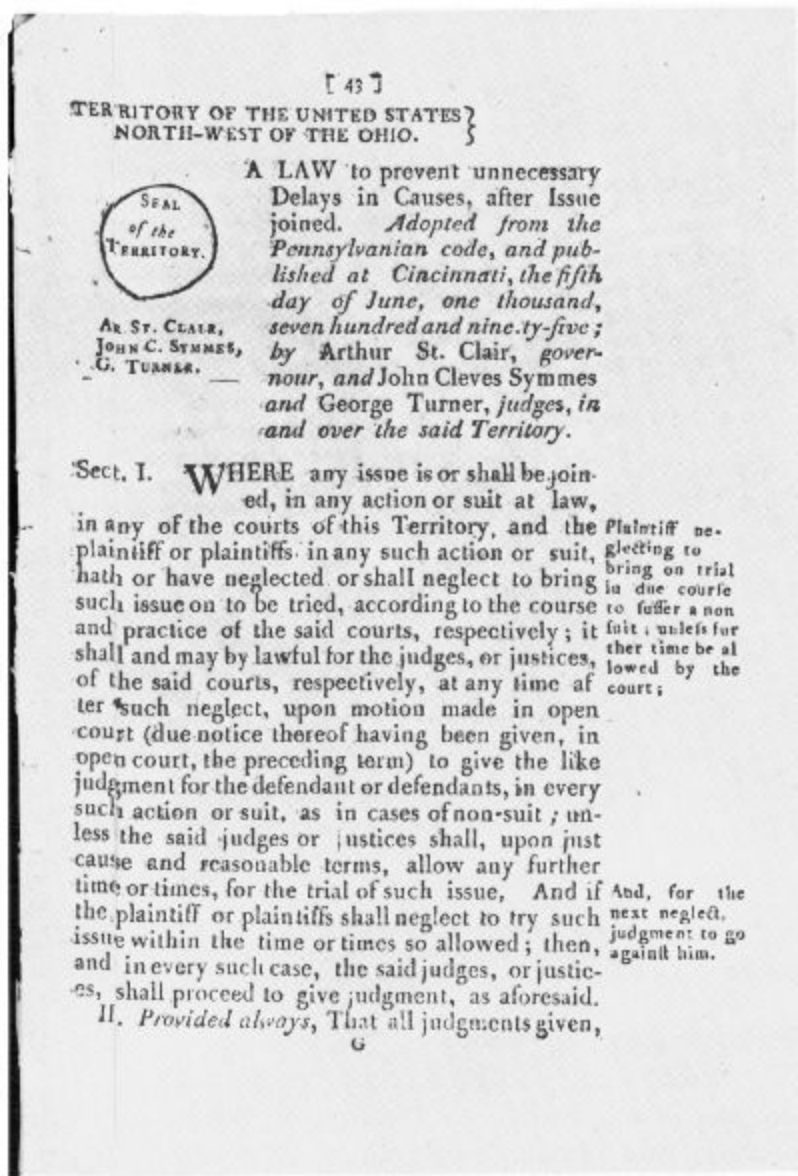
THE foregoing is hereby declared to be a law of the Territory; to take effect on and from the fifteenth day of August, next ensuing: *IN TESTIMONY* whereof, we *Arthur St. Clair*, *John Cleves Symmes* and *George Turner*, have caused the seal of the Territory to be thereunto affixed, and signed the same with our names,

AR. ST. CLAIR,
JOHN C. SYMMES,
G. TURNER.

Pages from the first book printed in Ohio.

He completed the volume in 225 pages, with numerous printed sidenotes that make it easy to consult. An incidental reference to printing occurs in a law for land partition (p. 185-197) which states that land proprietors "may subscribe a writing, and publish the same in one or more of the public News-papers printed in the Territory, in the State of Kentucky, and at the seat of government of the United States, for twelve successive weeks" in order to announce the appointment of commissioners to divide their property into lots. Subsequently, advertisements were to be placed in the

newspapers for six weeks to announce a balloting or drawing for the subdivided lots.



(Northwest Territory Laws)

The Library of Congress owns two copies of this Cincinnati imprint. One, lacking the title page and final leaf, is bound in a volume of unknown provenance, possibly obtained about 1912, containing four early editions of Northwest Territory laws. The other is a separate copy, lacking the last three leaves. This more interesting copy has two inscriptions on its title page, the words written uppermost posing some difficulty: "Ex Biblioth[eca]

Sem[inari]i [—] S[anc]ti Sulp[icii] Baltimoriensis"; but they make clear that this copy once belonged to the Sulpician seminary founded at Baltimore in 1791 and now named St. Mary's Seminary. A number of similarly inscribed books still retained by the seminary were once part of a special faculty library that merged with the regular seminary library about 1880. Many books from the faculty library bear signatures of individual priests who were their original owners. Thus the second inscription "Dilhet" refers to Jean Dilhet (1753-1811), a Sulpician who spent nine years in this country and was assigned to the pastorate of Raisin River (then in the Northwest Territory, in what is now Monroe County, Mich.) from 1798 to 1804. During 1804 and 1805 he worked in Detroit with Father Richard, who later established a press there (see next section).^[50] Its absence from the Library's early catalogs implies that the present copy was acquired sometime after 1875. Two date stamps indicate that the Library had it rebound twice, in 1904 and 1947.

^[48] See Douglas C. McMurtrie, *Pioneer Printing in Ohio* (Cincinnati, 1943).

^[49] Quoted from Historical Records Survey, American Imprints Inventory, no. 17, *A Check List of Ohio Imprints 1796-1820* (Columbus, 1941), p. 21.

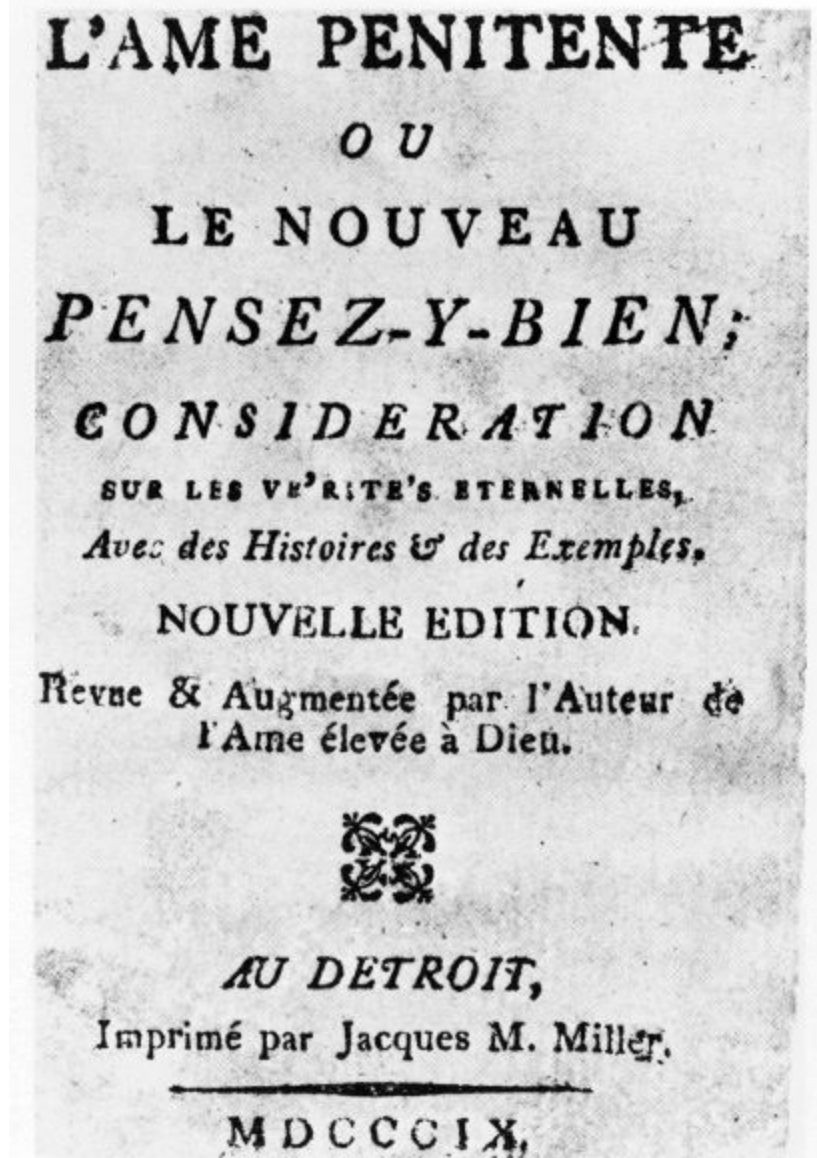
^[50] See the short biography of Dilhet in the preface to his *Etat de l'église catholique ou Diocèse des Etats-Unis de l'Amérique septentrionale.... Translated and annotated by Rev. P. W. Browne* (Washington, D.C., 1922).

Michigan

In 1796 John McCall, the earliest printer active in Michigan, issued at Detroit a 16-page Act of Congress relating to Indian affairs. Apart from blank forms printed on the same press before its removal to Canada in 1800, no other specimens of Michigan printing survive antedating the press that Father Gabriel Richard, the influential Sulpician priest, established at Detroit in 1809.

Entry number 2 in the *Preliminary Check List of Michigan Imprints 1796-1850* (Detroit, 1942)^[51] describes a 12-page publication said to exist in a unique copy at the Library of Congress: *To the Honourable the Senate and House of Representatives of the United States. Memorial of the citizens of the United States, situated north of an east and west line, extending thro' the southward bend of Lake Michigan, and by the Act of Congress of 30th April 1802 attached to, and made part of the Indiana Territory ...* ([Detroit? 1802?]). This entry is, in bibliographical parlance, a ghost. Actually, the Library of Congress possesses the work only as a negative photostat of a manuscript document which is preserved at the National Archives.^[52]

The earliest *bona fide* Michigan imprint in the Library of Congress is *L'Ame penitente ou Le nouveau pensez-y-bien; consideration sur les ve'rite's eternelles, avec des histoires & des exemples ...* printed at Detroit in 1809. The printer, James M. Miller, of Utica, N. Y., was the first of three operators of Father Richard's press. This particular imprint is the fourth item in a standard bibliography of the press, which calls it "the first book of more than 24 pages printed in Detroit or Michigan."^[53] As a matter of fact, it is a very substantial work of 220 pages, albeit in a small duodecimo format. It is a reprint of a devotional book first published in France in the 18th century and attributed to a prolific Jesuit author, Barthélemy Baudrand (1701-87). As head of the Catholic Church in the area, Father Richard wanted to make such religious literature available to the largely French-speaking inhabitants.



(*L'AME PENITENTE OU LE NOUVEAU PENSEZ-Y-BIEN; CONSIDERATION SUR LES VE'RITE'S ETERNELLES, Avec des Histoires & des Exemples ...* printed by James M. Miller at Detroit in 1809.)

The Library of Congress copy of *L'Ame penitente*, in a speckled calf binding of uncertain date, was obtained through a 1954 exchange with Edward Eberstadt & Sons. It had been offered in one of the bookselling firm's catalogs earlier that year for \$500. [\[54\]](#)

[51] Historical Records Survey, American Imprints Inventory, no. 52.

[52] The original is in Record Group 46 at the National Archives; the Library's photostat is in the Manuscript Division. The imaginary imprint recurs as no. 3168 in *American Bibliography, a Preliminary Checklist for 1802*, comp. by Ralph R. Shaw and Richard H. Shoemaker (New York, 1958).

[53] A. H. Greenly, *A Bibliography of Father Richard's Press in Detroit* (Ann Arbor, 1955).

[54] Catalogue 134, no. 392. Two years later the same firm offered another copy for \$750, in its Catalogue 138, no. 428.

Mississippi

Mississippi's first printer was Andrew Marschalk of New York, an Army lieutenant stationed at Walnut Hills, close to the eventual site of Vicksburg. [55] There, probably in 1798, he attracted attention by printing a ballad on a small press he had acquired in London. At the request of Governor Winthrop Sargent, Marschalk undertook in 1799 to print the laws of Mississippi Territory, and for that purpose he built a larger press at Natchez. Late in 1799 a second printer, Ben M. Stokes, purchased this press from Marschalk and soon commenced a weekly paper, *The Mississippi Gazette*. On May 5, 1800, James Green, a printer from Baltimore, introduced a rival paper at Natchez, *Green's Impartial Observer*.

The Library of Congress earliest Mississippi imprint was designed to controvert remarks by "The Friend of the People" in *Green's Impartial Observer* for November 1, 1800. It is a small broadside "From the Office of J. Green" that would seem to corroborate the printer's impartiality, at least in this particular dispute. Captioned "To the Public," dated November 8, 1800, and signed by eight members of the new Territorial House of Representatives, it refers to "an exaggerated estimate of the supposed expence attending the second grade of Government"; and it continues, "We therefore consider it our duty to counteract the nefarious and factious designs of the persons concerned" in the anonymous article. Mississippi's second grade of Territorial government had come about in 1800 with the creation of a legislature to enact the laws, theretofore enacted by the Governor and three judges. The authors of this broadside itemize the maximum annual expenses for operating the legislature, concluding with a comparison of the total estimates: their \$2,870 as opposed to the \$15,050 of "The Friend of the People."

To the Public.

THE undersigned having observed in Green's *Impartial Observer*, of the 1st inst. an anonymous publication, by a person styling himself "*The Friend of the People*," containing an exaggerated estimate of the supposed expence attending the second grade of Government;—we therefore consider it our duty to counteract the nefarious and factitious designs of the persons concerned in the above publication, by undeceiving the people; and we conceive ourselves qualified to assure our fellow citizens, that the following estimate will not be exceeded in any one year, & for the past services of the house of representatives, no charge has, or will be made by the members.

	Dollars.
Speaker of the council two months at most, at two dollars per day,	120.
Four members of council at 2 dollars per day,	480.
Clerk of committee, 2 dollars per day,	120.
Sergeant at arms, 1 dol. 4 bits	90.
Door keeper, do. do.	90.
Speaker of the house of repre.	

Representatives, 2,	120.
Eight members, at 2,	960.
Clerk at do.	120.
Sergeant at arms, at 1 dol. 4 bits,	90.
Door keeper, 1 dol. 4 bits,	90.
Firewood & candles,	50.
Stationary,	20.
Printing Laws,	400.
Expences already incurred	
Clerk 20 days at 2,	40.
Door keeper at 1 4	30.
Printing and Stationary,	50.
	2870.

Statement by "*Friend of the People*," 15050.
Deduct above statement, 2870.

Error in statement of Friend of the people, leaving this sum, } 12180.

The Treasurer is no additional expence, nor the Auditor of accounts, as also the members expences, to & from and during the sitting of Congress:

Saturday Nov. 8, 1800.

Anthony Hutchins;
Thos. Calvit,
H. Hunter,
Thos. M. Green,
John Burnet,
Sutton Bankes,
Cato Weit,
James Hoggatt;

From the Office of J. GREEN;

("To the Public," dated November 8, 1800)

In addition the Library of Congress has a lengthy rebuttal to the November 8 statement on a broadside also captioned "To the Public," dated at Natchez "November 15th, 1809" (a misprint for 1800), and signed "The Friend of the People." The writer begins:

Fellow-Citizens,

Of all the extraordinary performances I ever beheld, the late hand-bill, signed by eight members of our house of representatives, is the *most* extraordinary—and I doubt not that

it will be considered by the country at large as the legitimate offspring of the subscribers; being replete with that unauthorized assumption of power, and those round assertions so truly characteristic—propagated for the avowed purpose of 'undeceiving the people' in a matter of the first moment, and yet not containing one authenticated fact for them to found an opinion on—but resting all upon their mere *dictum*, penetrating into future events, and proclaiming what *shall be* the decisions of legislators not yet elected.

His argument against his opponents' cost estimates touches upon certain fundamental issues, such as the threat of an aristocratic rule if the stipend for legislators is indeed kept very low. Towards the end he notes an instance of intimidation:

One thing more I would observe—a very threatening letter has been written to the printer denouncing vengeance on him, if he does not deliver up the author of "*the friend of the people*"—this I take to be an attempt to frighten and preclude further investigation, but it will be of little avail when the interests of my fellow citizens are so deeply concerned.

That James Green, although not named, is the printer of this second broadside can be demonstrated by typographical comparison with the January 24 and February 21, 1801 issues of *Green's Impartial Observer*, available at the Library of Congress.

The two broadsides cited are the only copies recorded in Douglas C. McMurtrie's *A Bibliography of Mississippi Imprints 1798-1830* (Beauvoir Community, Miss., 1945).^[56] They bear manuscript notations, in an identical hand, that suggest use in an official archive; and the earlier broadside is stated to be "from M^r Banks, Nov^r 12th 1800." Sutton Bankes, one of the eight signers, is presumably referred to here. The second broadside has, besides a brief caption in this hand, a more elegantly written address: "His Excellency Winthrop Sargent Bellemont." Bellemont was one of Governor Sargent's residences near Natchez.

It is interesting that at the time Governor Sargent expressed himself privately on the earlier broadside as follows:

They [the members of the House of Representatives] are undoubtedly the proper Guardians of their own honour and Conduct, but nevertheless, will not take it amiss, in a Communication intended only for themselves, that I should observe it has always been Considered derogatory to the Dignity of Public Bodies, to notice anonymous writings, in the style and Manner of the Hand Bills,—it opens a broad Avenue to Retort and Satire, with many other obvious and unpleasant Consequences.^[57]

^[55] See Douglas C. McMurtrie, *Pioneer Printing in Mississippi* (Atlanta, 1932); and Charles S. Sydnor, "The Beginning of Printing in Mississippi," *The Journal of Southern History*, vol. 1, 1935, p. [49]-55.

^[56] Nos. 11 and 12.

^[57] From letter dated November 12, 1800, in *The Mississippi Territorial Archives*, compiled and edited by Dunbar Rowland, vol. 1 (1905), p. 301-302.

Indiana

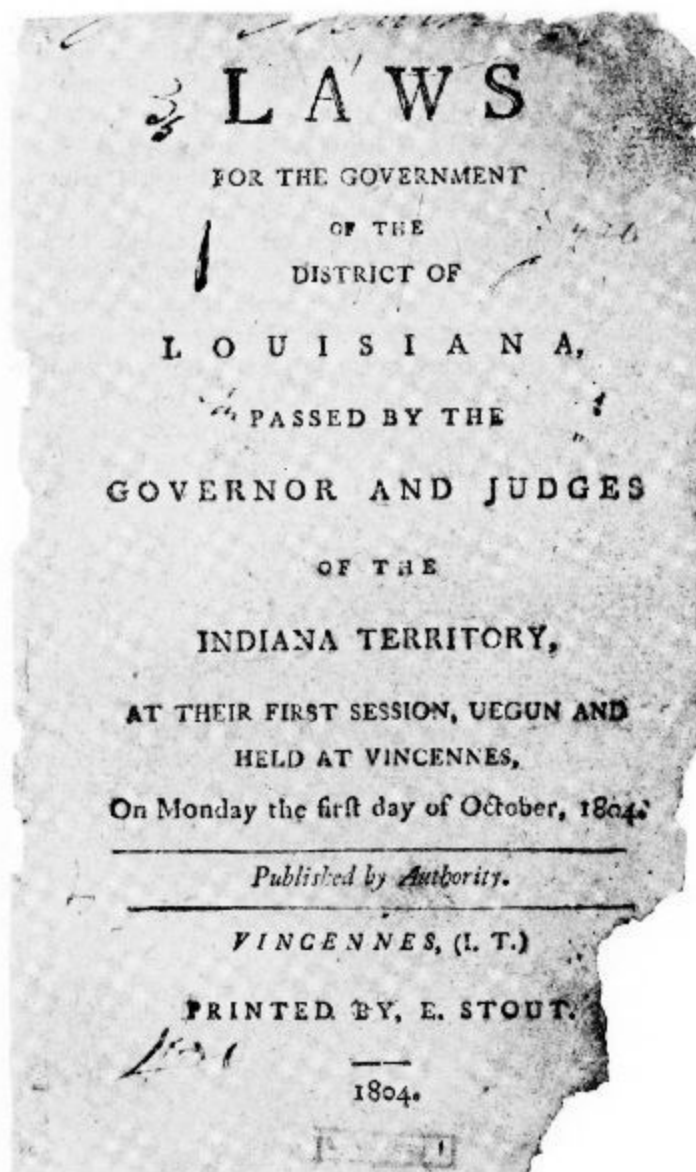
Elihu Stout, whose family moved from New Jersey to Kentucky in 1793, probably learned printing as an apprentice to Kentucky's first printer, John Bradford. He is known to have been in Bradford's employ at Lexington in 1798, and later he worked at Nashville. Invited by Governor William Henry Harrison to do the official printing for the Indiana Territory, Stout settled at Vincennes and began publishing his newspaper, the *Indiana Gazette*, on July 31, 1804.^[58]

The Library of Congress' Indiana holdings begin with a copy of the second known imprint excepting newspaper issues, printed by Stout late in 1804: *Laws for the Government of the District of Louisiana, Passed by the Governor and Judges of the Indiana Territory, at Their First Session, Uegun [sic] and Held at Vincennes, on Monday the First Day of October, 1804.*^[59] In March 1804 Congress had divided the lands of the Louisiana Purchase into two parts, the southern part becoming the Territory of Orleans (ultimately the State of Louisiana), the northern and larger part becoming the District of Louisiana. As explained in the preamble to the first law in this collection, "the Governor and Judges of the Indiana Territory [were] authorized by an act of Congress to make Laws for the District of Louisiana." They possessed this special authority from March 1804 until March 1805.

Fifteen laws make up the 136-page work. They are written in plain language, and the 10th, "Entitled a law, respecting Slaves," is a particularly engrossing social document. To illustrate, its second provision is

That no slave shall go from the tenements of his master, or other person with whom he lives without a pass, or some letter or token, whereby it may appear that he is proceeding by authority from his master, employer or overseer, if he does it shall be lawful for any person to apprehend and carry him before a justice of the peace to be by his order punished with stripes, or not, in his discretion.

A subsequent compilation of laws made after the District became the Territory of Louisiana is described on p. [45](#), below.



(Laws for the Government of the District of Louisiana, Passed by the Governor and Judges of the Indiana Territory, at Their First Session, Uegun and Held at Vincennes, on Monday the First Day of October, 1804. Printed by Elihu Stout late in 1804.)

The Library has handsomely rebound its copy in ruby morocco. Formerly it must have been in a wretched state, evidenced by the extreme marginal deterioration of its now laminated pages. It contains the signature of James Mackay (1759-1822), a Scottish fur trader, surveyor, and explorer who was later remembered at St. Louis as "the first English speaking white man who ever came west of the Mississippi river," and who was appointed "Commandant of the territory of Upper Louisiana" in 1803.^[60] When the territory passed from Spanish to American rule in 1804, he became a judge of the Court of Quarter Sessions,^[61] in which capacity he would have needed the volume of laws. The Library's copy is one of six unrelated volumes that were purchased together for \$750 from the Statute Law Book Company of Washington, D.C., in 1905.

[58] See V. C. (H.) Knerr, *Elihu Stout, Indiana's First Printer* (ACRL microcard series, no. 48; Rochester, N.Y., 1955).

[59] No. 2 in C. K. Byrd and H. H. Peckham, *A Bibliography of Indiana Imprints 1804-1853* (Indianapolis, 1955).

[60] W. S. Bryan and Robert Rose, *A History of the Pioneer Families of Missouri* (St. Louis, 1876), p. 173-174.

[61] *Missouri Historical Society Collections*, vol. 4, no. 1 (1912), p. 20.

Alabama

The earliest extant Alabama imprint is thought to be *The Declaration of the American Citizens on the Mobile, with Relation to the British Aggressions. September, 1807*, which was printed "on the Mobile" at an unspecified date. No one has yet identified the printer of this five-page statement inspired by the *Chesapeake-Leopard* naval engagement. The next surviving evidence is a bail bond form dated February 24, 1811, and printed at St. Stephens by P. J. Forster, who is reported to have worked previously at Philadelphia.^[62]

A second St. Stephens printer, Thomas Eastin, founded a newspaper called *The Halcyon* sometime in 1815, after Alabama newspapers had already appeared at Fort Stoddert (1811), Huntsville (1812), and Mobile (1813). Eastin had formerly worked at Nashville, at Alexandria, La., and at Natchez in association with Mississippi's first printer, Andrew Marschalk.^[63] His work at St. Stephens included a 16-page pamphlet, which is among the three or four earliest Alabama imprints other than newspaper issues^[64] and is the first specimen of Alabama printing in the Library of Congress. Headed "To the Citizens of Jackson County," it is signed by Joseph P. Kennedy and has on its final page the imprint, "St. Stephens (M.T.) Printed by Tho. Eastin. 1815." Here "M.T." denotes the Mississippi Territory, which in 1817 divided into the Alabama Territory and the State of Mississippi. St. Stephens was an early county seat of Washington County, now part of Alabama, whereas Jackson County, to whose inhabitants the author addresses himself, lies within the present Mississippi borders.

James Madison
President of the
U—States



St. STEPHENS, (M. T.)

PRINTED BY

THO. EASTIN.

1815.



James Madison, President of the U—States——
"St. Stephens (M.T.)
Printed by Tho. Eastin. 1815."

Joseph Pulaski Kennedy wrote this pamphlet after an election in which he ran unsuccessfully against William Crawford of Alabama to represent Jackson County in the Territorial legislature.^[65] His stated purpose is to refute "malicious falsehoods ... industriously circulated" against him before the election, foremost among them the charge that but for him Mobile Point "would never have been retaken"; and he summarizes his actions as an officer "in the command of the Choctaws of the United States" during the dangerous final stage of the War of 1812 when the town of Mobile nearly fell into British hands.

The only recorded copy of this little-known pamphlet is inscribed to "James Madison President of the U States." It owes its preservation to its inclusion among the Madison Papers in possession of the Library of Congress.^[66]

[62] Copies of both imprints are described under nos. 1548 and 1549 in *The Celebrated Collection of Americana Formed by the Late Thomas Winthrop Streeter* (New York, 1966-69), vol. 3. *The Declaration* was reprinted in *The Magazine of History, with Notes and Queries*, extra no. 8 (1925), p. [45]-55.

[63] See Douglas C. McMurtrie, *A Brief History of the First Printing in the State of Alabama* (Birmingham, 1931), p. 6.

[64] No. 4 in Historical Records Survey. American Imprints Inventory, no. 8, *Check List of Alabama Imprints, 1807-1840* (Birmingham, 1939); no. 3 in the section, "Books, Pamphlets, etc." in R. C. Ellison, *A Check List of Alabama Imprints 1807-1870* (University, Ala., 1946).

[65] See Cyril E. Cain, *Four Centuries on the Pascagoula* ([State College? Miss., 1953-62]), vol. 2, p. 8-9 (naming Crawford only).

[66] It is in vol. 78, leaf 22. This volume, containing printed material only, is in the Rare Book Division.

Missouri

I N D E X.		I N D E X.	
to appoint commissioners to lay out roads, etc.	364, 365.	in all cases (except for treason or felony) to be granted,	68, 75
to examine their accounts and draw for the same,	366.	on application, to judge of general court or common pleas,	68
to transmit plat of road to the clerks,	347	how to be made,	69
to draw his warrant for the expences of transcript of plat,	348	when to be returned,	69
to appoint auditor of public accounts in each district,	349	may be granted in term time,	70
		in civil cases to remove suits to general court,	90
<i>Guardian,</i>			
may put his minors money out at interest,	157	<i>Hogs,</i>	
to be appointed by orphans court,	161	to be marked,	329
to give discharges for their minors,	163, 164	not to be killed in woods,	328
to give security,	162, 164	mark of, to be recorded,	329, 330
may act for their wards in making partition of lands,	294	feeding of, without ears how punished,	329
<i>Grand Jury,</i>			
in quarter sessions their duty,	97	<i>Hog Stealing,</i>	
not to be returned to general court, except on motion of attorney general,	98	what deemed and how punished,	320
to return who shall pay costs, on certain indictments,	199		
how selected for the general court,	283	<i>Homicide Justifiable,</i>	
for court of oyer and terminer and quarter sessions,	286, 287.	what deemed,	306
to approve of certain repairs to jails, etc.	336		
<i>H.</i>		<i>Horses, Seed</i>	
<i>Habeas Corpus,</i>		not to run at large,	37
to be granted to person suing for freedom in certain cases,	66	may be taken up and castrated,	38
		and sold,	39
		<i>Horse Stealing,</i>	
		what deemed and how punished,	307
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		taken up as strays how to be proceeded with,	271, 272, 273, 274, 275.
		altering or defacing the marks of, punished,	326, 327.
		marks of to be recorded,	328, 329
		purchasers of, to re-mark them,	329
		<i>C c c</i>	

Some of the subjects covered in The Laws of the Territory of Louisiana.

Joseph Charless, with a background of printing experience in his native Ireland, in Pennsylvania, and in Kentucky, became the first man to establish a printing press west of the Mississippi River. Meriwether Lewis, Governor of the Territory of Louisiana, was instrumental in bringing Charless to St. Louis, the Territorial capital, and there the printer launched his weekly

newspaper, the *Missouri Gazette*, on July 12, 1808.^[67] His awareness of his place in history is demonstrated by a copy of *Charless' Missouri & Illinois Almanac, for 1818*, printed in 1817, which the State Department Library transferred to the Library of Congress in August 1962. It is inscribed: "A tribute of respect from the first Press that ever crossed the Mississippi."^[68]

The earliest example of Missouri printing in the Library of Congress is *The Laws of the Territory of Louisiana. Comprising All Those Which Are Now in Force Within the Same*, printed at St. Louis by Charless with the imprint date 1808. Besides newspaper issues this was long thought to be the first Missouri imprint. A document of April 29, 1809, appearing on p. 373 proves that it was not completed until after that date, however, and recent authorities have relegated it to second or third place in terms of publication date.^[69]

Consisting of 376 numbered pages with a 58-page index, the book is a compilation of the laws of 1804 and 1806-08. Those of 1804 carry over from the compilation for the District of Louisiana, which is the Library's earliest Indiana imprint, and the same law on slavery quoted on p. 41, above, is among those reprinted. Typical of the later laws is "An Act Concerning Strays," from which the following section is presented for its incidental reference to printing:

Sec. 4. Every person taking up a stray horse, mare or colt, shall within two months after the same is appraised, provided the owner shall not have claimed his property during that time, transmit to the printer of some public newspaper printed within this territory, a particular description of such stray or strays and the appraisment thereof, together with the district and place of residence certified by the clerk, or by the justice before whom such stray was appraised, to be inserted in such paper three weeks succesively, for the advertising of which the printer shall receive his usual and stated price for inserting advertisements in his newspaper.

In 1809 the *Missouri Gazette* was still the only newspaper available to print these advertisements.

The Library of Congress must have obtained its copy of this book during the final quarter of the 19th century, when the "Law Department" stamp on the title page was in use.

[67] See David Kaser, *Joseph Charless, Printer in the Western Country* (Philadelphia [1963]). A printed form, surviving in a copy dated in manuscript July 8, 1808, may have been printed by Charless at St. Louis; see no. 1836 in *The Celebrated Collection of Americana Formed by the Late Thomas Winthrop Streeter* (New York, 1966-69), vol. 3.

[68] See U.S. Library of Congress, *Quarterly Journal of Current Acquisitions*, vol. 20 (1962-63), p. 199 and plate facing p. 197.

[69] See Kaser, *Joseph Charless*, p. 71-74; V. A. Perotti, *Important Firsts in Missouri Imprints, 1808-1858* (Kansas City, 1967), p. 1-4.

Texas

Aaron Mower of Philadelphia set the type for volume 1, number 1, of the *Gaceta de Texas*, dated "Nacogdoches, 25 de Mayo, de 1813," which is preserved at the National Archives and is the earliest evidence of printing activity in Texas. A political dispute forced the removal of Mower's press and type from Nacogdoches to Natchitoches, in Louisiana, where this Spanish-language newspaper was actually printed and issued.^[70] Other transient presses operated briefly at Galveston in 1817, at Nacogdoches in 1819, and at San Antonio de Bexar in 1823.^[71]

The permanent establishment of Texas printing dates from September 1829, when Godwin B. Cotten introduced a press at San Felipe and founded the *Texas Gazette*. In March 1832 he relocated at Brazoria. D. W. Anthony purchased both the press and the paper in the summer of 1832, and until July 1833 he continued to publish the paper at Brazoria under a new name, *The Constitutional Advocate and Texas Public Advertiser*.

The earliest Texas printing in the Library of Congress is the number of the paper dated June 15, 1833, which offers news only from the United States and from overseas. "From the City of Mexico," writes Anthony, "we have heard nothing this week, except mere disjointed rumors from the interior. By the arrival of the next mail at San Felipe, we may reasonably expect that some certain intelligence will be received, of what the legislatures have done." Gathering news was one problem; he reveals another in the following paragraph:

We are glad to be able at length, to present the ADVOCATE to our readers, on a sheet of its accustomed size. We stated before, that its being diminished two columns lately, was the consequence of a mistake made by our merchant in filling our order for paper. We now have an ample supply, and of excellent quality, so that we shall have no more apologies to offer on that score. These things, however, cost money, and that in hand, which we hope our good friends will not altogether forget.

Among the advertisements is the usual "JOB PRINTING DONE AT THIS OFFICE" and also an announcement of the "CONSTITUTION OF TEXAS, With or without the Memorial, For Sale at this Office and at the stores of W. C. White, San Felipe: David Ayres, Montville: and T. W. Moore, Harrisburg." Anthony printed these historic documents shortly after the Texas convention held at San Felipe in April, and the *Advocate* began to carry this advertisement on May 11, 1833.^[72]

The Library's copy of the four-page newspaper has been removed from a bound volume. Since it is inscribed "Intelligencer, W. C.," it was obviously sent to the office of the *National Intelligencer* at Washington City, as the capital was then called. It is slightly mutilated: an item has been cut from an outer column, affecting the third and fourth pages. There is no record of the issue in *A Check List of American Newspapers in the Library of Congress* (1901), but its location does appear in the union list, *American Newspapers 1821-1936* (1937).

[72] See nos. 40 and 41 in Streeter's *Bibliography of Texas*.

Illinois

Illinois' first printing took place at Kaskaskia, the no longer existent Territorial capital. In 1814 Governor Ninian Edwards induced the Kentucky printer Matthew Duncan to settle there, and probably in May of that year Duncan founded a weekly newspaper, *The Illinois Herald*.

The earliest Illinois imprint in the Library of Congress, listed as number 4 in Cecil K. Byrd's definitive bibliography, is *Laws of the Territory of Illinois, Revised and Digested under the Authority of the Legislature. By Nathaniel Pope*, published by Duncan in two volumes dated June 2 and July 4, 1815. Nathaniel Pope (1784-1850), who prepared this earliest digest of Illinois statutes, went to Kaskaskia upon being appointed secretary of the newly authorized Illinois Territory and did important organizational work there in the spring of 1809 before Governor Edwards' arrival. On December 24, 1814, the legislature decreed that Pope should receive \$300 "for revising the laws of this Territory making an index to the same, and superintending the printing thereof."^[73] The work he produced was to a large extent based on an 1807 revision of the laws of the Indiana Territory, from which Illinois had recently been separated.^[74]

the court aforesaid) such person shall be considered as a deserter, and it shall be lawful for any one, and shall be the particular duty of all militia officers to apprehend such person, and deliver him to any officer commanding in the detachment to which such deserter may belong.

The duty of militia officers to apprehend them.

Governor authorized to raise companies of mounted riflemen.

Sec. 11. The Governor of the Territory shall be and hereby is empowered to raise and organize as many companies of mounted riflemen in this territory as he may deem requisite for any service that is likely to be wanting: Any officer appointed to command in any one of those companies (they being intended only for temporary purposes) shall not lose thereby any appointment he may hold in the militia; such companies when raised and organized shall be subject to be called into service at any moment and shall continue in service three months after they shall reach the rendezvous, that shall be appointed for them; but if they or any one of them shall make a specific tender of their services for six months or any longer period, they or any one of them so tendering their services shall be liable when called upon to perform the tour of duty so stipulated; and any person enrolled in any one of said companies, who shall fail or refuse to per-

Officers not to lose their rank in the militia.

To continue in service 3 months.

May tender their services for a longer period & shall serve the time if required.

form the tour of duty required shall be subjected to the same punishment and subject to the same coercion in every respect whatsoever as is provided in this law against persons drafted and failing or refusing to perform their tour of duty.

Punish for failing to perform the tour.



MILLS AND MILLERS:

AN ACT

Regulating Grist Mills and Millers.

Passed Sept. 17, 1807.

Sec. 1. Each and every miller or the owner or owners, or occupiers of every water and wind grist mill, now erected or which shall hereafter be built and erected, within this Territory, shall be entitled to have and receive out of the grain which may be ground in

Toll allowed for grinding grain &c. in water & wind mills.

(Laws of the Territory of Illinois, Revised and Digested under the Authority of the Legislature. By Nathaniel Pope)

Even though it paid him for his labor and authorized printing, the Illinois Legislature never enacted Pope's digest into law. Nevertheless, the work had a certain importance, as explained by its 20th-century editor, Francis S. Philbrick:

"The first thing that anyone will notice who opens this volume is that Pope began the practice of topical-alphabetical arrangement to which the lawyers of Illinois have now been accustomed for more than a hundred years. At the time of its appearance the

work's importance was increased by the fact that it collected, so far as deemed consistent and still in force, the laws of 1812, 1813, and 1814. These enactments—though presumably all accessible in manuscript, for a time, at the county seats, and in many newspapers—had not all appeared in book form; nor did they so appear until fifteen years ago [i. e., in 1920-21]."^[75]

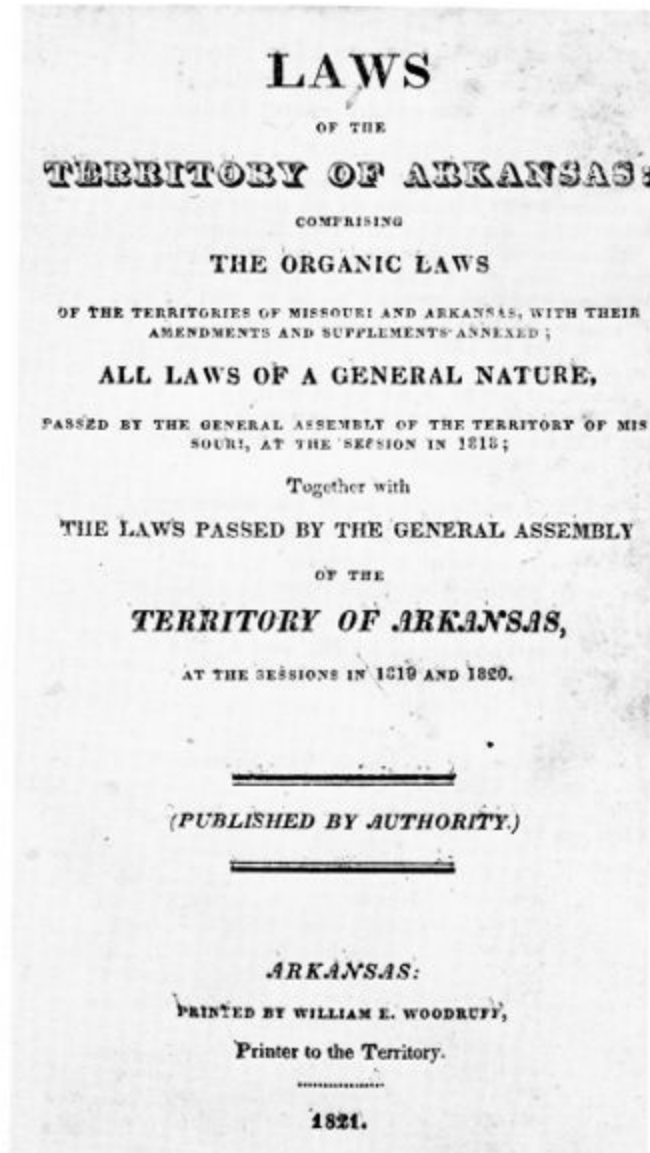
The Library of Congress set of two rebound volumes is seriously imperfect, with numerous missing leaves replaced in facsimile. The volumes were purchased in June 1902 from the Statute Law Book Company in Washington together with a volume of Illinois session laws of 1817-18 for a combined price of \$225.

^[73] See *Collections of the Illinois State Historical Library*, vol. 25, 1950, p. 178.

^[74] *Ibid.*, vol. 28, 1938, p. xviii.

^[75] *Ibid.*, p. xxi.

Arkansas



*(Laws of the Territory of Arkansas:
Comprising the Organic Laws of the
Territories of Missouri and Arkansas,
with the Amendments and Supplements
Annexed; All Laws of a General Nature
Passed by the General Assembly of the*

***Territory of Missouri, at the Session Held
in 1818; Together with the Laws Passed
by the General Assembly of the Territory
of Arkansas, at the Sessions in 1819 and
1820.)***

William E. Woodruff, the first Arkansas printer, was a Long Islander who served his apprenticeship at Sag Harbor with Alden Spooner, nephew of the early Vermont printer of that name. Woodruff transported printing equipment purchased at Franklin, Tenn., to the Post of Arkansas, and there, on November 20, 1819, he began to publish *The Arkansas Gazette*. He later moved his press to Little Rock, where the newspaper has continued to the present day.^[76]

In his *History and Bibliography of American Newspapers 1690-1820* (Worcester, Mass., 1947) Clarence S. Brigham locates the only complete file of early issues of the *Gazette* at the Library of Congress. It must be reported here, regretfully, that the Library released these along with later issues for exchange in July 1953 as part of a space-saving operation, after making microfilm copies for retention. Subsequently the same file, extending from 1819 to 1875, was described at length under item 649 in Edward Eberstadt and Sons' Catalog 134 (Americana) issued in 1954.

Two copies of the first book published in Arkansas, printed by Woodruff at the Post of Arkansas and dated 1821, now share the distinction of being the earliest specimens of Arkansas printing in the Library. The fact that Arkansas officially separated from the Missouri Territory in July 1819 helps to explain the title of this book: *Laws of the Territory of Arkansas: Comprising the Organic Laws of the Territories of Missouri and Arkansas, with the Amendments and Supplements Annexed; All Laws of a General Nature Passed by the General Assembly of the Territory of Missouri, at the Session Held in 1818; Together with the Laws Passed by the General Assembly of the Territory of Arkansas, at the Sessions in 1819 and 1820.*

In the initial issue of the *Gazette* Woodruff claimed to have established his press entirely at his own expense. His imprint on these *Laws* discloses his eventual employment as official "printer to the Territory," and among the resolutions of the new general assembly to be found in this volume is that

of April 1, 1820, appointing Woodruff to the position. A resolution of the assembly, approved October 25, 1820, directs how official documents printed by him were to be distributed:

RESOLVED ... That the governor be, and he is hereby, authorized to have printed in pamphlet form, a sufficient number of copies of the laws of the present general assembly, and all laws of a general nature passed by the general assembly of Missouri, in eighteen hundred and nineteen, and also the laws passed by the governor and judges of this territory, which have not been repealed by this general assembly; and to distribute such laws on application of those entitled to copies, in the manner herein-after provided, to wit: To the governor and secretary each one copy; to the judges of circuit and county courts, to the clerk of superior court, to the sheriff of each county, to every justice of the peace, to every constable, to the prosecuting attorney in behalf of the United States, and circuit or county court prosecuting attorneys, to the territorial auditor, to the territorial treasurer, to the coroner of each county, to every member of the general assembly, each one copy: *Provided*, it shall be the duty of every officer, on his or their going out of office, to deliver the copy of the laws with [which]^[77] he shall have been furnished, in pursuance of this resolution, to his successor in office.

Resolved also, That a sufficient number of copies shall be sent, by order of the governor, to the care of the several clerks of each county, in this territory, whose duty it shall be to distribute one copy to every officer or person allowed one in the foregoing part of this resolution.

Resolved also, That the governor be, and he is hereby, authorized to draw on the territorial treasurer for the amount of expenses arising thereon, which are not otherwise provided for by law.

The two copies in possession of the Library of Congress carry no marks of previous ownership. One was recorded in the *Catalogue of Additions to the Library of Congress Since December, 1833*, dated December 1, 1834.^[78]

Whether this was the copy which retains a late 19th-century bookplate or the copy which the Library had rebound in 1914 is uncertain.

[76] See *Wilderness to Statehood with William E. Woodruff* (Eureka Springs, Ark., 1961); Rollo G. Silver, *The American Printer 1787-1825* (Charlottesville, 1967), p. 140.

[77] Brackets in text.

[78] Page 12 (combined entry: "Laws of Arkansas, &c., &c., 1818 to 1821, 1823, and 1825").

Hawaii

39

THE ALPHABET.

—♦—

VOWELS.		SOUND.	
Names.		Ex. in Eng.	Ex. in Hawaii.
A a --- â		as in <i>father</i> ,	la—sun.
E e --- a		— <i>tete</i> ,	hemo—cast off.
I i --- e		— <i>marino</i> ,	marie—quiet.
O o --- o		— <i>over</i> ,	ono—sweet.
U u --- oo		— <i>rule</i> ,	nui—large.

CONSONANTS.	Names.	CONSONANTS.	Names.
B b	be	N n	nu
D d	de	P p	pi
H h	he	R r	ro
K k	ke	T t	ti
L l	la	V v	vi
M m	mu	W w	we

The following are used in spelling foreign words:

F f	fe	S s	se
G g	ge	Y y	yi

(Hawaiian Primer, printed by Elisha Loomis.)

Hawaii's first printer was a young American named Elisha Loomis, previously employed as a printer's apprentice at Canandaigua, N.Y. He arrived at Hawaii with a group of Boston missionaries in 1820; but use of

the printing press that he brought with him had to be delayed owing to the lack of a written Hawaiian language, which the missionaries proceeded to devise. At a special ceremony held at Honolulu on January 7, 1822, a few copies of the earliest Hawaiian imprint were struck off: a broadside captioned "Lesson I." Its text was afterwards incorporated in a printed primer of the Hawaiian language.^[79]

Loomis printed 500 copies of the primer in January, and in September 1822 he printed 2,000 copies of a second edition. The latter edition is the fifth recorded Hawaiian imprint,^[80] as well as the earliest to be found among the Library of Congress holdings. In 16 pages, without a title page or an imprint statement, it opens with a section headed "THE ALPHABET" and includes lists of syllables, lists of words, and elementary Hawaiian readings of a religious character consistent with their missionary purpose.

The Library's copy is shelved in a special Hawaiiana Collection in the Rare Book Division. Bound with it is another rare primer in only four pages, captioned "KA BE-A-BA," which Loomis printed in 1824.^[81] The small volume is in a black, half leather binding, with an old Library of Congress bookplate marked "Smithsonian Deposit." Since the final text page is date-stamped "1 Aug., 1858," the volume was probably received or bound by the Smithsonian Institution in that year. The Smithsonian transferred most of its book collection to the Library of Congress in 1866-67 and has continued to deposit in the Library quantities of material which it receives largely in exchange for its own publications. The Hawaiian rarities in this particular volume were cataloged at the Library in 1918.

^[79] See T. M. Spaulding, "The First Printing in Hawaii," *The Papers of the Bibliographical Society of America*, vol. 50, 1956, p. 313-327; R. E. Lingenfelter, *Presses of the Pacific Islands 1817-1867* (Los Angeles, 1967), p. 33-44.

^[80] See H. R. Ballou and G. R. Carter, "The History of the Hawaiian Mission Press, with a Bibliography of the Earlier Publications," *Papers of the Hawaiian Historical Society*, no. 14, 1908, p. [9]-44.

^[81] The penciled note on p. [1], "Second Ed. Spelling Book," would appear to identify it with no. 10 in the Ballou and Carter bibliography.

Wisconsin

Green-Bay Intelligencer.

VOL. I.

NAVARINO, WEDNESDAY DECEMBER 11, 1833.

NO. 1.

**Green-Bay Intelligencer. VOL. I. NAVARINO, WEDNESDAY
DECEMBER 11, 1833. NO. 1.**

"With a handful of brevier and an ounce or two of printer's ink"—as he later recollected—Wisconsin's first printer managed to produce 1,000 lottery tickets at Navarino, now the city of Green Bay, in 1827. The printer was Albert G. Ellis, who had previously worked as an apprentice at Herkimer, N.Y. He could not undertake regular printing at Navarino before obtaining a printing press in 1833; then, in partnership with another young New Yorker named John V. Suydam, he began to publish the *Green-Bay Intelligencer*.

[\[82\]](#)

The first issue of this newspaper, dated December 11, 1833, is the oldest example of Wisconsin printing known to survive, and it is represented in the Library of Congress collections. Neatly printed in fine type on a small sheet, the four-page issue shows professional competence. The publishers apologize for the type they use and for the necessity, owing to limited patronage, of commencing the *Intelligencer* on a semimonthly basis. Their front page features an Indian story entitled "The Red Head," chosen from some "fabulous tales ... politely furnished us by a gentleman of this place, who received them from the mouths of the native narrators." Inclusion of the story accords with a stated editorial policy of giving faithful descriptions of the character and manners of the natives. Some articles in this issue concern proposed improvements on the Fox and Wisconsin Rivers that would open navigation between Green Bay and the upper Mississippi. And the question where to locate the capital of an anticipated Territory of Wisconsin is another topic of the day. The Territory was not actually created until 1836.

Aside from its obviously having been detached from a bound volume, there is no visible evidence of the Library of Congress copy's past history. It does not figure in *A Check List of American Newspapers in the Library of Congress* (Washington, 1901); but it is registered in the union list, *American Newspapers 1821-1936* (New York, 1937).

The Library of Congress also owns the only known copy of *Kikinawadendamoiwewin or almanac, wa aiongin obiboniman debeniminang iewos, 1834*, printed at Green Bay on the *Intelligencer* press. Its 14 leaves, printed on one side only, are within an original paper cover bearing the manuscript title "Chippewa Almanac." A document held by the State Historical Society of Wisconsin reveals that in 1834 the Catholic mission at Green Bay charged "the Menominee Nation of Indians" for "an Indian Almanac rendered by signs equally useful to those among the Natives who are unable to read their language, published at Green Bay, 150 copies, \$18"; and that the bill went unpaid.^[82] Since the almanac was intended for use in the year 1834, it was likely printed before the end of 1833; yet there is no evidence to suggest that it predates the *Intelligencer*. At the suggestion of Douglas C. McMurtrie, the Library purchased its unique copy from the Rosenbach Company for "\$375.00 less usual discount" in 1931.

^[82] See Douglas C. McMurtrie, *Early Printing in Wisconsin* (Seattle, 1931).

^[83] See Douglas C. McMurtrie, *The First Known Wisconsin Imprint* (Chicago, 1934).

California

(21)

co, y que asi mismo se prohibira á los buques ecstrangeros el comercio de escala y cabotaje.

Hé dicho y por conclusion repito, que si el Gobierno no toma en consideracion mis reflexiones por que asi lo estimare conveniente, ó por que los fundamentos de donde parte no se estimen suficientes para conseguir el fin propuesto, no por eso deja de ocuparme el placer de haber procurado hacer un servicio á mi patria, aun concitandome, sin justicia, la odiosidad de los que empeñados esclusivamente en negociar su bien particular, viven desentendidos del beneficio y causa comun.

Sonoma Agosto 17 de 1837.

Mariano G. Vallejo.



*Conclusion of General Vallejo's
message to the Governor of Alta
California, which was printed on a press
that had been shipped from Boston via
Hawaii.*

As early as 1830 Agustín V. Zamorano, executive secretary of the Mexican territory of Alta California, was using limited printing equipment to produce official letterheads. Zamorano later became proprietor of California's first regular printing press, which was shipped from Boston (via Hawaii) and set up at Monterey about July 1834. While he controlled this press—that is, until the uprising in November 1836—Zamorano appears to have employed two printers, whose names are unknown. ^[84]

Under the revolutionary government the same press continued in operation at Monterey and at Sonoma, and the earliest California printing in the Library of Congress is the first known Sonoma issue: *Ecsposicion* [sic] *que hace el comdanante* [sic] *general interino de la Alta California al gobernador de la misma*. It is a small pamphlet having 21 pages of text, preceded by a leaf bearing a woodcut of an eagle. The text is dated from Sonoma, August 17, 1837, and signed by Mariano G. Vallejo, beneath whose printed name is a manuscript flourish.

Don Mariano Guadalupe Vallejo (1807-90) held the highest military office of Alta California at the time of writing, his headquarters then being at Sonoma. In his communication to the Governor, he advocates certain commercial reforms summarized as follows in Hubert Howe Bancroft's *History of the Pacific States of North America* (San Francisco, 1882-90):

His plan was to prohibit all coasting trade by foreign vessels, and to transfer the custom-house from Monterey to San Francisco. In defence of the first, he adduced the well known practice on the part of traders of presenting themselves at Monterey with a few cheap articles for inspection, afterward taking on board from secure hiding-places the valuable part of the cargo, to be sold at other ports. Thus the revenue was grossly defrauded, leaving the government without funds. By the change proposed not only would smuggling cease and the revenues be augmented, but Californians would be encouraged to become owners of coasting vessels or to build up a system of inland communication by mule-trains.... The transfer of the custom-house was advocated on the ground of San Francisco's natural advantages, the number and wealth of the establishments

tributary to the bay, and the importance of building up the northern frontier as a matter of foreign policy.^[85]

General Vallejo was his own printer. In a manuscript "Historia de California" he says of his pamphlet, "I wrote the attached statement of which I sent the original to the governor of the State and which I printed immediately in the small printing office that I had in Sonoma and of which I was the only employee; I had the printed copies distributed throughout all parts of California and furthermore I gave some copies to the captains of merchant ships that were going to ports in the United States of America."^[86]

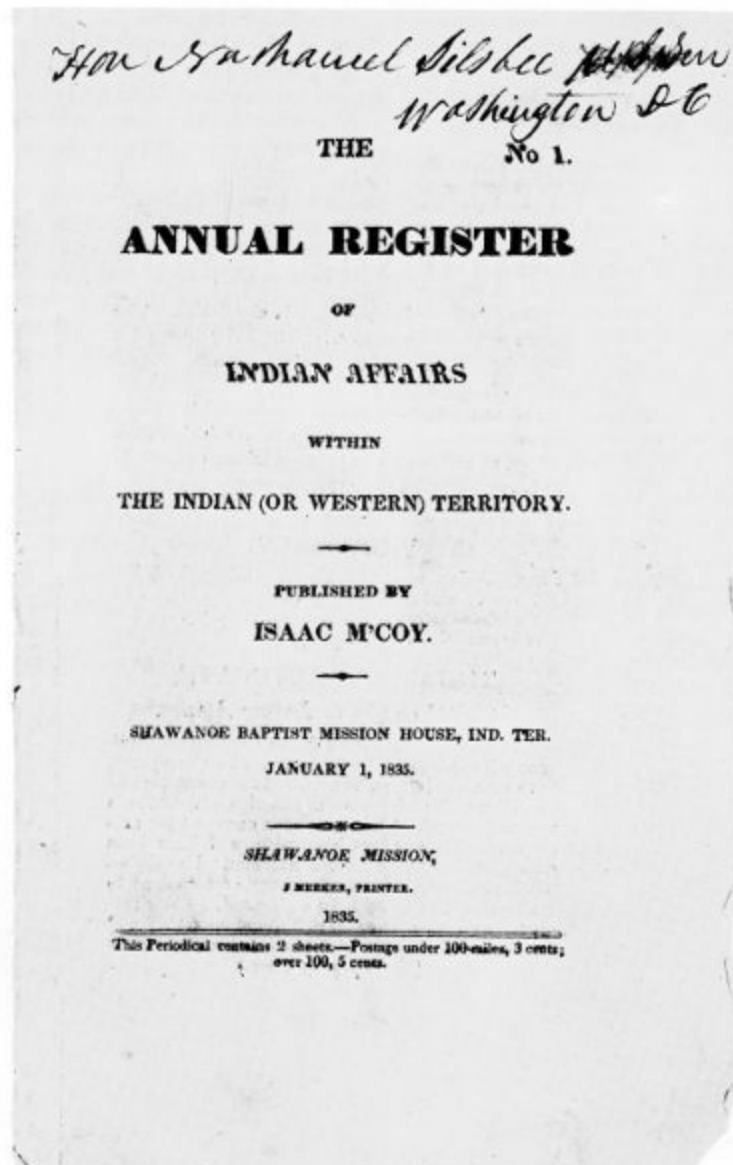
The Library of Congress copy shows that the general left something to be desired as a printer, some pages being so poorly inked as to be scarcely legible. This copy—one of but four known to bibliographers—was previously in the possession of A. B. Thompson of San Francisco, and the Library purchased it from him in February 1904 for \$15.

^[84] See George L. Harding, *Don Agustin V. Zamorano* (Los Angeles, 1934), p. 178-210; Herbert Fahey, *Early Printing in California* (San Francisco, 1956); H. P. Hoyt, "The Sandwich Island Story of California's First Printing Press," *California Historical Society Quarterly*, vol. 35 (1956), p. 193-204.

^[85] Vol. 16 (1886), p. 87-88.

^[86] Quoted from Herbert Fahey, *Early Printing in California*, p. 27.

Kansas



(The Annual Register of Indian Affairs Within the Indian (or Western) Territory. Published by Isaac M'Coy. Shawanoe Baptist Mission House, Ind. Ter. January 1, 1835)

By introducing printing at the Shawanoe mission station in the Indian Territory in March 1834, Jotham Meeker became the first printer of what is now Kansas. He had learned his trade at Cincinnati and for some years had served as a Baptist missionary and printer among various Indian tribes.

The Library of Congress' earliest example of Kansas printing is the first number of *The Annual Register of Indian Affairs Within the Indian (or Western) Territory. Published by Isaac M'Coy. Shawanoe Baptist Mission House, Ind. Ter. January 1, 1835*. Isaac McCoy (1784-1846), publisher of four numbers of the *Annual Register* between 1835 and 1838, was a prominent Baptist missionary, who also served as an Indian agent and strongly advocated the colonization of western Indians in a separate state. In this work he gives an account of the several mission stations operated by various denominations in the Indian Territory.

The following passage from the first number of the *Annual Register* deals with the printer:

At the Shawanoe station is a printing press in operation, under the management of Jotham Meeker, Missionary for the Ottawas.

Mr. Meeker has invented a plan of writing (not like that of Mr. Guess, the Cherokee), by which, Indians of any tribe may learn to read in their own language in a few days. The first experiment was made with a sprightly Chippewa boy, wholly ignorant of letters, and of the English language. He studied three hours each day for nine days; at the expiration of which time there was put into his hands a writing of about twenty lines, of the contents of which he had no knowledge. After looking over it a few minutes, without the aid of an instructor, the boy read off the writing, to the unspeakable satisfaction of the teacher.

Upon this plan elementary school books have been prepared, and printed, viz.—In Delaware, two; in Shawanoe, two; in Putawatomie, one; and two in Otoe, besides a considerable number of Hymns, &c. The design succeeds well. ^[87]

Jotham Meeker's surviving journal, from which extracts have been published, ^[88] affords an interesting view of his work from December 15,

1834, when McCoy brought him the manuscript, until January 17, 1835, when he wrote, "Finish Br. M'Coy's Ann. Reg. a work of 52 pages, including the Cover. 1000 copies."

Another source of information about the *Annual Register* is Isaac McCoy's book, *History of Baptist Indian Missions* (Washington, New York, and Utica, 1840), wherein he states,

I published it [the first number] at my own cost, and circulated it gratuitously. One was sent to each member of Congress, and to each principal man in the executive departments of Government.

[\[89\]](#)

Under the circumstances it is not surprising that three copies have made their way into the Library of Congress collections. On their respective title pages they are addressed in manuscript to "Hon Nathaniel Silsbee U.S. Sen," "Hon Jno. Cramer H. Reprs. U S," and "Hon Lucius Lyon H.R.U.S."

[\[87\]](#) P. 24.

[\[88\]](#) In Douglas C. McMurtrie and Albert H. Allen, *Jotham Meeker Pioneer Printer of Kansas* (Chicago, 1930), p. 45-126.

[\[89\]](#) P. 481.

New Mexico

The first press of New Mexico was imported overland from the United States in 1834 to print *El Crepúsculo de la libertad*, a short-lived newspaper supporting the election of its editor, Antonio Barreiro, to the Mexican congress. It was operating at Santa Fe by August 1834 with Ramón Abreu as proprietor and with Jesús María Baca as printer,^[90] the latter having learned his trade in Durango, Mexico.^[91]

A broadside in the Library of Congress collections appears to be a genuine copy of the earliest extant issue of this press. Entitled *Lista de los ciudadanos que deberan componer los jurados de imprenta, formada por el Ayuntamiento de este capital*, it lists, in accordance with Mexican law, 90 men qualified to be jurors in cases of what the law terms "denuncias de los escritos."^[92] The broadside is dated August 14, 1834, signed by "Juan Gallego, presidente—Domingo Fernandez, secretario," and carries the Ramón Abreu imprint. This copy must be one of 48 discovered in 1942 in a parcel marked "Benjamin Read Papers" at the New Mexico Historical Society. Benjamin Read (1853-1927) was an attorney who served in the New Mexico Legislature and who published a number of works on the State's history.^[93] Before the find in 1942 only a single copy of the broadside was located. The authenticity of these 48 copies has been questioned, but in the opinion of the late collector Thomas W. Streeter they are originals.^[94] The Library obtained its copy by exchange from Edward Eberstadt & Sons in May 1951.

The Library also has the only known copy of New Mexico's first book, issued by the same press and dated 1834: *Cuaderno de ortografia. Dedicado a los niños de los señores Martines de Taos*. A metal cut on its title page, oddly depicting a moose, has been traced to a contemporary Boston specimen book, which also displays a pica type identical or very similar to that used in early New Mexican imprints.^[95] Authorship of the book has been attributed to Antonio José Martínez (1793-1867), the parish priest in Taos, who arranged to have the press and the printer move there in

1835. From 1826 to 1856 Martínez taught reading, writing, and arithmetic in his parish,^[96] and he undoubtedly had this work printed for the use of his own pupils. It is divided into three sections: "De las letras," "De los diptongos, uso de letras mayusculas, acentos y signos de institucion para las citas," and "De la puntuacion de la clausula."^[97] The copy of this small book is soiled and worn from much thumbing. Penciled on an inner page in an early, childlike hand is the name "Jesus Maria Baldez." The Library purchased the book in 1931 from Aaron Flacks, a Chicago bookseller, for \$350 on the same day that it purchased its earliest Wisconsin almanac (see p. 53, above) and likewise through the intervention of Douglas C. McMurtrie.

LISTA DE LOS CIUDADANOS QUE DEBERAN COMPONER LOS JURADOS DE IMPRENTA, FORMADA POR EL AYUNTAMIENTO DE ESTA CAPITAL.

JURADOS DE IMPRENTA, FORMADA POR EL AYUNTAMIENTO DE ESTA CAPITAL.

C. Agustín Durán.	e. José García.
C. Antonio Sosa.	e. José Ribera.
C. Antonio Ortiz 2.º	e. Juan Antonio Ortiz.
C. Antonio Ortiz 3.º	e. José de la Cruz Enríquez.
C. Antonio José Rivera.	e. Juan Manuel Montoya.
C. Adolfo Chirco.	e. Dionicio Larralde.
C. Eusebio Gámez.	e. Luis Ortiz.
C. Clemente Sarracino.	e. Luis Baca.
C. Domingo Fernández.	e. Manuel Pino.
C. Diego Delia.	e. Miguel Sosa.
C. Diego Antonio Domínguez.	e. Manuel Delgado.
C. Diego Armenta.	e. Manuel Ortiz.
C. Eugenio Archuleta.	e. Manuel Alarid.
C. Francisco Ortiz.	e. Mateo Sandoval.
C. Francisco Sosa.	e. Mauricio de Arce.
C. Francisco Baca Ortiz.	e. Miguel Gallego.
C. Francisco Baca Pino.	e. Manuel Ribera.
C. Francisco Baca Torres.	e. Manuel Simeros.
C. Francisco Trujillo.	e. Nascario Martín.
C. Francisco Antonio Barba.	e. Nestor Armijo.
C. Francisco de Paula Ortiz.	e. Pedro Baca.
C. Felipe Sosa.	e. Pedro Ortiz 2.º
C. Florentino Ortiz.	e. Pablo Ribera.
C. Faustino Martínez.	e. Rafael Romero.
C. Gregorio García.	e. Rafael García.
C. Gaspar Ortiz.	e. Rafael López.
C. Hermenegildo Chalea.	e. Rafael Sarracino.
C. Ignacio Ortiz 2.º	e. Rafael Aragón.
C. Ignacio Baca.	e. Seledon Archibugi.
C. Ignacio Ortiz 3.º	e. Tomás Ribera.
C. Pedro Montoya.	e. Tomás Lujan.
C. Ignacio García.	e. Tomás López.
C. José María Ribera.	e. Tomás Domínguez.
C. José María Martínez.	e. Tomás Gallego.
C. José Antonio Rodríguez.	e. Vicente Sosa.
C. José Ramón Martínez.	e. Vicente Baca.
C. Juan Vigil 2.º	e. Vicente Brito.
C. Juan Diego Sosa.	e. Vicente Martínez.
C. José María Tañilla.	e. Victorino Padilla.
C. José Pablo Baca.	e. Viterbo Ortiz.
C. José Pablo Sandoval.	Fiscales. e. José Rafael Benavides
C. Juan Esteban Pino.	Id. e. Apolonio Mondragón.
C. Julio Pino.	Santa Fe Agosto 14 de 1834.
C. Juan Montoya.	—Juan Gallego, presidente.—Domingo
C. Juan Baca 1.º	Fernández, secretario.
C. Juan Baca 2.º	
C. Joaquín Cárdenas.	
C. Juan Miguel Ortiz.	
C. Juan Antonio Armijo.	
C. Juan María Sánchez.	

Santa Fe 1834. Imprenta de Ramón
Alonso á cargo de José María Baca.

**(Lista de los ciudadanos que deberan
componer los jurados de imprenta,
formada por el Ayuntamiento de este
capital)**

[90] See Roby Wentz, *Eleven Western Presses* (Los Angeles, 1956), p. 11-13.

[91] See his obituary in *The Daily New Mexican* (Santa Fe), April 21, 1876.

[92] Quoted from *Colección de ordenes y decretos de la Soberana junta provisional y soberanos Congresos generales de la nación mexicana*, vol. 4, 1829, p. 179.

[93] See obituary in *New Mexico Historical Review*, vol. 2, 1927, p. 394-397.

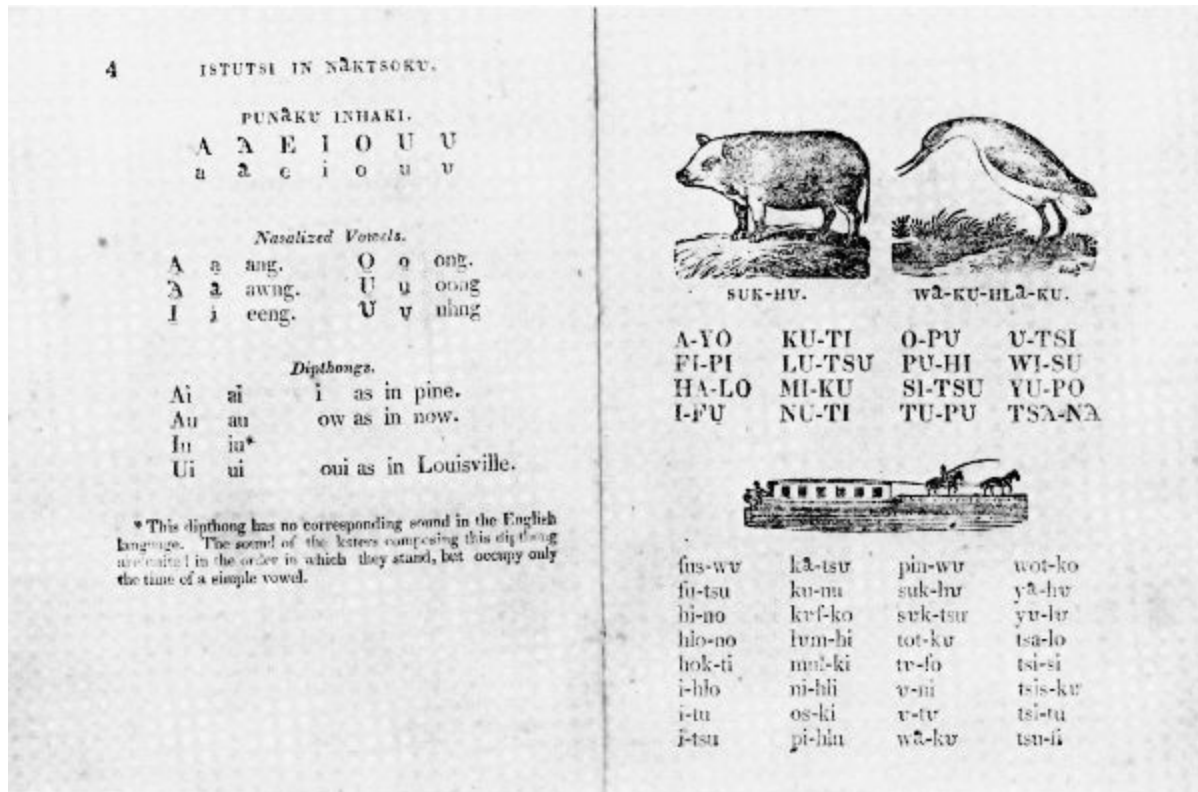
[94] See no. 61 in his *Americana—Beginnings* (Morristown, N.J., 1952).

[95] See *New Mexico Historical Review*, vol. 12, 1937, p. 13.

[96] *Ibid.*, p. 5.

[97] It is reproduced in its entirety in Douglas C. McMurtrie's *The First Printing in New Mexico* (Chicago, 1929).

Oklahoma



(Istutsi in Naktsokv. Or The Child's Book. By Rev. John Fleming.)

When the Cherokee Nation migrated from Georgia to the newly formed Indian Territory, John Fisher Wheeler, who had been head printer of the Cherokee Press at New Echota, proceeded to the Union Mission Station on the Grand River, near the present location of Mazie, Okla. There the American Board of Commissioners for Foreign Missions supplied him with a new press on which in August 1835 he did the first Oklahoma printing. Wheeler had served his apprenticeship at Huntsville, Ala. ^[98]

One of two or three extant copies of the third recorded issue of Oklahoma's first press is present in the Library of Congress collections: *Istutsi in naktsokv. Or The Child's Book. By Rev. John Fleming. Missionary of the American Board of Commissioners for Foreign Missions.* Printed before October 31, 1835, in an edition of 500 copies, it is a 24-page primer with

text in the Creek language rendered in the Pickering alphabet and with woodcut illustrations of animals and other subjects. A Creek Indian named James Perryman or Pvhos Haco ("Grass Crazy") assisted with the translation.^[99] Fleming's work among the Indians has earned for him a notice in the *Dictionary of American Biography*, where his "chief claim to remembrance" is said to be "that he was the first to reduce to writing the Muskoki or Creek language, which was a task of peculiar difficulty on account of the numerous and puzzling combinations of consonants involved."

The Library of Congress obtained the rare copy of its earliest Oklahoma imprint through the Smithsonian Deposit (see p. 52, above) in 1878.

^[98] See Lester Hargrett, *Oklahoma Imprints 1835-1890* (New York, 1951), p. ix-x, 1-2.

^[99] *Ibid.*, no. 3.

Iowa



Du Buque Visitor. "TRUTH OUR GUIDE, THE PUBLIC GOOD OUR AIM." VOL. I. DU BUQUE (LEAD MINES) WISCONSIN TERRITORY, WEDNESDAY, JANUARY 18, 1837. NO. 37

The initial issue of the weekly *Du Buque Visitor*, dated May 11, 1836, is the oldest example of Iowa printing. John King, the first proprietor of this four-page newssheet, acquired the press on which it was printed at Chillicothe, Ohio. He employed William Cary Jones of Chillicothe to "perform the duties of foreman in the printing office ... and likewise such other duties in superintending the publication of the newspaper as may be required,"^[100] and he employed the Virginia-born printer Andrew Keesecker, lately of Galena, Ill., to be the principal typesetter.

The earliest Iowa printing represented in the Library of Congress is its partial file of the *Du Buque Visitor*, extending from January 18 to May 17, 1837.^[101] On December 21, 1836, the proprietorship had passed to W. W. Chapman, an attorney, and with the issue of February 1, 1837, William H. Turner became the owner. The paper maintained a high standard throughout these changes, its issues justly displaying the motto: "Truth our guide, the public good our aim." A reduction in the size of certain issues furnishes evidence of the customary difficulty of operating a pioneer press. As the March 15 issue explains, "Within the last two months, so large an addition has been made to the subscription list of the Visitor, that our stock of paper of the usual size is exhausted, and we are constrained to issue, for a week or two, a smaller sheet. By the first boat from St. Louis we shall receive our spring and summer supply."

The Library's file dates from the period when Iowa still belonged to the Wisconsin Territory. An editorial from the Library's earliest issue advocates independent status:

DIVISION OF WISCONSIN TERRITORY

It gives us pleasure to see that Genl. Jones, our delegate in congress, has introduced into the house of representatives a resolution, "to inquire into the expediency of establishing a seperate [sic] territorial government for that section of the present territory of Wisconsin which lies west of the Mississippi river," and the same resolution has been introduced into the senate of the United States by Dr. Linn of Missouri.

We sincerely hope that these resolutions will be acted upon, and sanctioned by congress—if sanctioned, they will have a most important bearing upon the future interest and prosperity of the people on this side of the Mississippi. Yes, we would rejoice that the 'Father of Waters' should be the boundary to a new territory. The present territory of Wisconsin, is much too large, and embraces too many conflicting interests—the people on the east side of the Mississippi are jealous of those on the west side, and the west, of those on the east. Why not, under these circumstances, give to the people on each side of the Mississippi separate territorial governments? We believe that such a measure would be highly satisfactory to the people throughout the whole of Wisconsin territory.

The reasons for dividing the present territory of Wisconsin are, in our opinion, well founded, for unless the people governed can be united—unless their representatives legislate for the good of the whole territory, there will not be satisfaction—there will not be harmony, & the government instituted to protect the rights of the people, will become an engine in the hands of one part to oppress the other.

It is, or should be, the policy of the United States, in the establishment of temporary governments over her territories, to adopt the best and most judicious means of guarding the

happiness, liberty, and property of her foster children, so that when they enter the great family of the Union, that they may be worthy of that exalted station.

Doctor John Stoddard,

RETURNS his sincere thanks to the citizens of Du Buque, for the liberal share of public patronage which he has received, and takes this opportunity of informing them, that he intends a permanent residence in DU BUQUE, and hopes, from skill and attention, to merit a continuance of the patronage he has already received.

To prevent misunderstandings, and silence false reports, he herewith presents a list of his charges for medicine and professional services, by which he has heretofore been, and will hereafter be, governed.

Visits in town by day, 1 dollar; by night, 2 dollars: *ex officio* services, one dollar per hour: obstetrical services and attendance from 10 dollars to 50, as the case may be. Consultations with other physicians fee 10 dollars, adding mileage when in the country, in all cases in the day, 1 dollar, in the night, double.

The fees in surgical cases, will be regulated according to the importance of the case. Medicines, Emetics, and Cathartics simple, 25 cents, compound one dollar; Febrifuge pulverized, simple, 12 1-2 cts., compound 25 cents to one dollar; Tonics, pulverized, 25 cents per dose; Tincture from 50 to 75 cts. per oz.; Epispastic from 50 cts. to one dollar; all other medicines in proportion.

Those laboring under Chronic diseases of the Liver, Dyspepsia, Scrofula, King's Evil, White Swelling, Rheumatism, and particularly Females laboring under Uterine diseases, may possibly derive benefit by consultation and advising with Doctor JOHN STODDARD.

Du Buque, May 11, 1836. 11f

A CARD.

DOCTOR FLEMING

TENDERS his services to the citizens of Du Buque and vicinity, in all the branches of MEDICINE, SURGERY, and MIDWIFERY. He may be found at all times at the Du Buque Hotel, when not professionally engaged.

Du Buque, June 8, 1836. 5-1f

F. ANDROS, M. D.,

WOULD inform his friends that he has so far recovered his health as to be able to attend all calls in the line of his profession. His residence is on the corner of Church and Locust streets.

Du Buque, Nov. 9, 1836. 27-1f

BOARDING.

THE subscriber having fitted up a **NEW HOUSE** on Locust-st., near the Catholic Church, is happy to inform the citizens of Du Buque, that he is now ready to accommodate **BOARDERS** who may favor him with their custom. He flatters himself that he will be enabled to give general satisfaction.

E. C. DOUGHERTY.

Du Buque, Aug. 10, 1836. 14-1f

An ox sled

FOR SALE. Apply to **E. LOCKWOOD.**

Dec. 1, 1836 33-3t

A CARD.**BOOT AND SHOE MAKING.**

THE subscriber would inform the citizens of Du Buque and country, that he has procured a good supply of Eastern Leather, and continues to make Boots and Shoes at the shortest notice, and hopes, by his attention to business, to merit a share of the public patronage. His shop is on Main-street, a few doors south of Everett's store.

L. BRULY.

Du Buque, May 11, 1836.—1f

(Newspaper ads)

From later in 1837 the Library possesses *Iowa News*, which replaced the *Du Buque Visitor* after its expiration in May, in an imperfect file extending from June 17 (the third number) to December 23. The Library also has the *Wisconsin Territorial Gazette and Burlington Advertiser*, printed at Burlington, in another incomplete file from July 10 to December 2. The Library's three files of very early Iowa newspapers have a common provenance, as most issues of each file are addressed in manuscript to the Department of State, which was in charge of Territorial affairs until 1873. These newspapers were transferred to the Library of Congress sometime before the end of the 19th century.^[102]

[100] The full contract is quoted in Alexander Moffit's article, "Iowa Imprints Before 1861," in *The Iowa Journal of History and Politics*, vol. 36, 1938, p. 152-205. For a biography of Jones, see William Coyle, ed. *Ohio Authors and Their Books* (Cleveland, 1962, p. 346).

[101] Vol. 1, nos. 37-52; no. 47 wanting. The May 10 and May 17 issues are both numbered 52.

[102] They are recorded in *A Check List of American Newspapers in the Library of Congress* (1901).

In the Library's Broadside Collection (portfolio 19, no. 34) is a printed notice of the Des Moines Land Company, with text dated from Des Moines, September 4, 1837. This item cannot have been printed at Des Moines, since printing did not reach there until 1849. It is not listed in Alexander Moffit's "A Checklist of Iowa Imprints 1837-1860," in *The Iowa Journal of History and Politics*, vol. 36 1938, p. 3-95.

Idaho

The first printing in Idaho—in fact, in the entire Pacific Northwest—was done in 1839 at the Lapwai mission station, by the Clearwater River, in what is now Nez Perce County. The printer was Edwin Oscar Hall, originally of New York, who on orders of the American Board of Commissioners for Foreign Missions brought to this wilderness site the same small press he had taken to the Hawaiian Islands in 1835. [\[103\]](#)

Henry Harmon Spalding (1804-74), the missionary who had requested this press, was the author of its first issue in Idaho, an eight-page primer of the native language with an English title: *Nez-Perces First Book: Designed for Children and New Beginners*. In May 1839 Hall printed 400 copies, of which no complete examples are known to survive. An alphabet of Roman letters that Spalding utilized to convey the Indian language proved to be impractical, and in August the original edition was replaced by a revised 20-page edition of 500 copies with the same title.

The Library of Congress acquired this edition, then thought to be the first Idaho book, in 1911. A few years later the bibliographer Wilberforce Eames discovered pages of the earlier edition used as reinforcements in the paper covers of the later one, [\[104\]](#) and on February 18, 1922, another interested bibliographer, Howard M. Ballou, wrote to the Librarian of Congress:

I have had your copy at the Library of Congress examined by a friend who reports that she can distinguish that pages 5 and 6 are pasted in the front cover.

If you will have the covers of the Nez Perces First Book soaked apart you will find you possess four pages of this original Oregon book.

(By Oregon, of course, he meant the Oregon country at large rather than the present State.) The Library did soak apart the covers and found that it had two copies of the original leaf paged 5 and 6. One of them, released for

exchange in October 1948, subsequently joined two other original leaves to form an almost complete copy in the Coe Collection at Yale University.^[105]

Mrh	Mfs	Mcks	Lflh
Nun	Peps	Pesh	Prsh
Pisht	Paps	Pflh	Shvh
Shamh	Shith	Shesh	Tvh
Tahs	T	Timsh	Tin
Tet	Tsep	Tiks	Tahsh

HIMTCKCSH II.

Ldpet waskvlakit.

A tim	Ah wa	Csh a	C ten
A a	E tit	E tish	En im
Ha has	Ha ma	Ha ham	Hu shus
Hu ku	He kr	Ho tct	Him en
Him tvh	Hesh in	Hct su	He yih
He shu	Hik tek	Ho is	In wim
Ca mesh	Is kit	Ish kep	R ft
Kfl a	Kg la	Ka has	Kuts kuts
Kup kup	Kim te	Kem tdm	Kah nv
Kr yi	La ka	La kfs	La tis
Lv kfs	Mc ka	Mch shem	Min a

*A page from the original edition of the Nez Perces
First Book.*

The Library made its fortunate acquisition with a bid of \$7.50 at a Philadelphia auction sale conducted by Stan V. Henkels on May 23-24, 1911. The item^[106] was among a group of books from the library of Horatio E. Hale (1817-96), who served as philologist with the famed Wilkes

Expedition of 1838-42. He probably obtained his copy about 1841, the year the expedition reached Oregon.

[103] See Roby Wentz, *Eleven Western Presses* (Los Angeles, 1956), p. 23-26.

[104] See *The Quarterly of the Oregon Historical Society*, vol. 23, 1922, p. 45-46.

[105] See no. 73 (note) in Thomas W. Streeter's *Americana—Beginnings* (Morristown, N.J., 1952).

[106] No. 588 in the sale catalog.

Oregon

Oregon Spectator.

"Westward the Star of Empire takes its way."

Vol. I.

Oregon City, (Oregon Ter.) Thursday, May 28, 1846.

No. 9.

**Oregon Spectator. "Westward the Star of Empire takes its way." Vol.
I Oregon City, (Oregon Ter.) Thursday, May 28, 1846. No. 9.**

Medare G. Foisy performed the first Oregon printing in 1845 with type owned by the Catholic mission at St. Paul. Apparently without the benefit of a permanent press, he printed at least two official forms, and there is evidence that he produced tickets for an election held on June 3, 1845. Foisy was a French Canadian who had worked at the Lapwai mission press for Henry Harmon Spalding (see p. 63, above) during the fall and winter of 1844-45.^[107]

Later certain forward-looking settlers organized the Oregon Printing Association, obtained a printing press, hired a printer named John Fleming, who had migrated to Oregon from Ohio,^[108] and founded the *Oregon Spectator* at Oregon City on February 5, 1846. This was the earliest English-language newspaper in North America west of the Missouri River.^[109] The earliest Oregon printing in the Library of Congress is the ninth semimonthly number of the *Oregon Spectator*, dated May 28, 1846. It is a small four-page sheet presently bound with 15 other numbers of the *Spectator* through May 13, 1847. All bear the newspaper's motto: "Westward the Star of Empire takes its way." When this ninth number was

printed, the Oregon Country was still jointly occupied by the United States and Great Britain. Shortly after, on June 15, 1846, the U.S. Senate ratified the Oregon Treaty, whereby the Oregon Country was divided at the 49th parallel. News of the ratification as reported in the *New York Gazette and Times* of June 19 reached Honolulu in time to be printed in the *Polynesian* of August 29, and the information was reprinted from that paper in the November 12 issue of the *Spectator*, which is included in the Library's file.

The issue of May 28 has a decidedly political emphasis because of impending local elections, and among its articles is an amusing account of a meeting at which several inexperienced candidates proved embarrassingly "backward about speaking." The difficulty of obtaining information for the paper is illustrated by a section headed "Foreign News," consisting of a letter from Peter Ogden, Governor of Fort Vancouver, in which he gives a brief account of the political upheaval in Britain over the Corn Law question. He cites as the source of his information a letter he received via "an express ... from [Fort] Nesqually." He concludes, "In three or four days hence we shall receive newspapers, and I trust further particulars." The last page of this issue is given entirely to the printing of an installment of "An Act to establish Courts, and prescribe their powers and duties," which had been passed by the provisional legislature.

In addition to its small volume of issues from 1846 and 1847, the Library of Congress has an incomplete volume of *Spectator* issues from September 12, 1850, to January 27, 1852, when the paper had a larger format and appeared weekly. Evidence for the provenance of the earlier volume is the inscription, "J. B. McClurg & C.," on the issue of December 24, 1846, designating a Honolulu firm which carried this advertisement in the same *Spectator*:

J. B. McClurg & Co.
SHIP CHANDLERS,
GENERAL AND COMMISSION
MERCHANTS.

JAMES B. McCLURG,
ALEXANDER G. ABELL, } HONOLULU, OAHU,
HENRY CHEVER. } SANDWICH ISLANDS.

Several issues in the later volume are addressed either to the "State Department" or to "Hon. Daniel Webster," who was Secretary of State at the time. The Library's *A Check List of American Newspapers*, published in 1901, records holdings only for December 12, 1850, to February 27, 1851, but all of the *Spectator* issues look as if they have been in the Library from an early date.

Rules for House-Wives.

When you rise in the morning, never be particular about pinning your clothes so very nicely—you can do that at any time. Never comb your hair, or take off your night-cap till after breakfast. When you begin your toilet, combing, washing, &c., you may do it before the window, or the front entry—but the most proper place is the kitchen. Never have any particular place for any thing in the house. Never sweep your floor, until you know that some one is coming in—they will then see how neat and tidy you are. When done sweeping, leave your broom on the floor—never brush down cob-webs. Keep your parlor and bed-room windows shut close in the dog-days, and your cheeses in your bed-chambers. Never learn your daughters to mend or make any of their clothes, it might give them sore fingers. Never suppress the truth of a joke, for fear of hurting people's feelings. If you don't like your husband as well as you ought, out with it, and convince him that you are not a respecter of persons. Don't try to keep your temper—let it off as soon and fast as possible, you will then be quiet as cider with the cork drawn nine hours.

(Rules for House-Wives.)

[107] See nos. 1-2 in George N. Belknap's *Oregon Imprints 1845-1870* (Eugene, Ore. [1968]).

[\[108\]](#) See *The Quarterly of the Oregon Historical Society*, vol. 3, 1902, p. 343.

[\[109\]](#) See Roby Wentz, *Eleven Western Presses* (Los Angeles, 1956), p. 27-30.

Utah

ORDINANCES,

PASSED BY THE LEGISLATIVE COUNCIL OF
GREAT SALT LAKE CITY, AND ORDERED
TO BE PRINTED.

*Penalty for riding horses without leave, driving cattle off the
feeding range, &c.*

No. 36. FEB. 24, 1849.

Sec. 1. That any person or persons, who is or are found riding horses or mules in this valley, which does not belong to him, her, or them; not having permission from the owner, shall, on being convicted before the proper authority, be fined in the sum of not less than twenty-five dollars, for each offence.

Sec. 2. That any person or persons, found driving horses or mules from their feeding range, which does not belong to him, her, or them, and running them off their range, without permission from the owners, either to bring them to the Forts or elsewhere; shall, on being convicted before the proper authority, be fined in the sum of not less than twenty-five dollars for each offence.

Sec. 3. That any person, or persons, who is found driving oxen, cows, or young cattle from the feeding range, which does not belong to him, her, or them, without permission from the owners, either to the Forts or elsewhere, shall, on being convicted before the proper authority, be fined in the sum of not less than five dollars, for each ox, cow, or young creature, so drove from the range.

Sec. 4. That any person, or persons, on being convicted of breaking any of the above laws, by riding or driving horses, mules, oxen, cows, or young cattle as above stated, shall, in addition to the aforesaid fines, pay to the owners all damages: the amount of damages being assessed by competent authority.

Sec. 5. That in case of any person, or persons, being convicted on any of the aforesaid offences, the fines shall be collected forthwith; one half of which shall be given to the informant, and the other half be paid into the Public Treasury.

Stud Horses, or Jacks, not to run at large.

No. 66. MARCH 17, 1849.

That from and after this date, no Stud-Horse, or Jack over eighteen months old, shall be allowed to run at large in this valley, or in the regions round about, under the penalty of such Horse or Horses, Jack or Jacks being forfeited for the public use.

Water not to run across the street, without a bridge, &c.

No. 77. APRIL 28, 1849.

That each Bishop in the City, be required to run furrows,

**(Ordinances, Passed by the Legislative
Council of Great Salt Lake City, and
Ordered to be Printed)**

Brigham Young's nephew Brigham Hamilton Young was the first printer within the present boundaries of Utah. A manuscript "Journal History" of

the Church of Jesus Christ of Latter-Day Saints records that on January 22, 1849, "Brigham H. Young and Thomas Bullock were engaged in setting type for the fifty cent bills, paper currency. This was the first typesetting in the [Salt Lake] Valley. The bills were to be printed on the press made by Truman O. Angell."^[110]

The Law Library of the Library of Congress keeps in a small manila envelope a remarkable group of five very early examples of Utah printing, some of which must have been issued in 1850. The one that seems to be the earliest has the title *Ordinances, Passed by the Legislative Council of Great Salt Lake City, and Ordered to be Printed*. This piece—like the others without indication of place or date of printing—may be assigned to a press from Boston which reached Salt Lake City in August of 1849 and supplanted the original homemade press. Listed as number 3 in Douglas C. McMurtrie's *The Beginnings of Printing in Utah, with a Bibliography of the Issues of the Utah Press 1849-1860* (Chicago, 1931), it is a four-page leaflet containing nine ordinances passed between February 24 and December 29, 1849. Among them are a "Penalty for Riding Horses Without Leave, Driving Cattle Off the Feeding Range, &c." and "An Ordinance Creating an Office for the Recording of 'Marks and Brands' on Horses, Mules, Cattle, and All Other Stock."

A 34-page pamphlet entitled *Constitution of the State of Deseret* (not in McMurtrie; Sabin 98220) is obviously from the same press. Appended to the constitution, which was approved November 20, 1849, are several ordinances passed between March 9, 1849, and March 28, 1850. Another issue of this press (not in McMurtrie or Sabin) is a slightly mutilated three-page leaflet: *Rules and Regulations for the Governing of Both Houses of the General Assembly of the State of Deseret, When in Joint Session; and for Each Respective House, When in Separate Session. Adopted by the Senate and House of Representatives, December 2, 1850*. Of unspecified date is a single leaf, unrecorded and apparently unique, captioned *Standing Committees of the House*. Finally, there is among these imprints a copy of the 80-page *Ordinances. Passed by the General Assembly of the State of Deseret*, known as the "Compilation of 1851" and listed as number 8 by McMurtrie, who writes, "A copy of the 1851 volume in the library of the Church Historian's Office was used in 1919 for making a reprint, but the original has since disappeared."^[111] A copy is said to be in private ownership

in California." The latter is undoubtedly the one now in the Library of Congress.

The only one of these extremely rare imprints to show marks of previous ownership is the "Compilation of 1851." It was autographed by Phinehas Richards, who served both as representative and as senator in the provisional legislature of the state of Deseret. Whether the other four pieces also belonged to him is not clear; in any event all five came into the hands of his son, Franklin Dewey Richards (1821-99), who for half a century was an Apostle of the Church of Jesus Christ of Latter-Day Saints, becoming president of the Apostles' Quorum, and who served as Church Historian for the last 10 years of his life.^[112] A Library of Congress purchase order dated October 31, 1940, reveals that these imprints were contained in a bound volume labeled "Laws of Utah—F. D. Richards"; that by agreement the Library had them removed from the volume and subsequently returned it to Mr. Frank S. Richards, in care of the San Francisco bookseller John Howell; and that the price paid for the detached items was \$1,600. Frank S. Richards, an attorney residing in Piedmont, Calif., is a great-grandson of Franklin Dewey Richards, most of whose books he has given to the Bancroft Library of the University of California.

^[110] Quoted from Wendell J. Ashton, *Voice in the West, Biography of a Pioneer Newspaper* (New York, 1950), p. 367, note 17. This book is about Utah's first newspaper, the *Deseret News*, established June 15, 1850, of which the earliest original issue in the Library of Congress is dated May 31, 1851.

^[111] It is now available again at the Church Historian's Office. Another copy is in the Harvard Law Library.

^[112] See Franklin L. West, *Life of Franklin D. Richards* (Salt Lake City [1924]).

Minnesota



**(*Minnesota Chronicle and Register* St. Paul, Minnesota Territory,
Saturday, August 25, 1819. Vol. 1 No. 1)**

Minnesota's first printer was James Madison Goodhue of Hebron, N.H. An Amherst College graduate, he had abandoned a legal career to run a pioneer newspaper at Lancaster, Wis. Shortly after the establishment of the Minnesota Territory, he moved his printing equipment to St. Paul, and on April 28, 1849, he founded his weekly newspaper, *The Minnesota Pioneer*. It is reported that even though he brought along two printers, Goodhue himself worked both as compositor and pressman, and further that the printing press he used at Lancaster and St. Paul was the same on which Iowa's first printing had been performed.^[113] The Library of Congress' scattered file of this first Minnesota newspaper contains just one 1849 issue, dated October 25.

Taking precedence as the Library's earliest example of Minnesota printing is the first issue, dated August 25, 1849, of another St. Paul paper, the *Minnesota Chronicle and Register*, which resulted from the merger of two early rivals of the *Pioneer*. In an introductory editorial the proprietors, James Hughes and John Phillips Owens, make certain claims on behalf of this paper:

Our union bases us upon a foundation which renders our permanent success beyond a contingency. The combining of the two offices places us in possession of probably the best and most complete printing establishment on the Mississippi, above St. Louis. These advantages, with our practical experience in the art, the aid of health and a free good will, and a moderate share of the other requisites, we hope will enable us to give the

Chronicle and Register a place in the front rank of well executed, useful and instructive newspapers.... We have two new Washington Printing Presses, with all the recent improvements attached. We defy any establishment in the Union to produce superior pieces of machinery in the way of Hand Presses. Our assortment of book and job type is also of the newest and handsomest styles, and comprises larger quantities and greater varieties than can be found this side of St. Louis. And we are happy to announce we have more coming.

They also make an interesting statement of editorial policy:

The Chronicle and Register have each a reputatation [sic] at home and abroad, gained during the few months of their separate existence. The views of the respective editors in regard to general politics, and the relation they bear upon these matters to our present administrations, National and Territorial, has been a matter of no concealment on the part of either. And were it not for one reason, we would here let this subject rest. But the ground Minnesota at present occupies is neutral. We have no vote in the Legislative councils of the Nation, no vote for President. Why should we then divide and distract our people upon questions that they have no voice in determining? Why array each other in separate bands as Whigs and Democrats when such a course can only show the relative strength of the two parties, without adding one iota to the prosperity and welfare of either? The measures of one or the other of the great parties of the country will receive the sanction of the next Congress, and no thanks to Minnesota for her votes. We as citizens, and as whigs, are willing to leave it for the future to determine which of these parties are to sway the destinies of our Territory.

The Library has eight issues of the *Chronicle and Register* from the year 1849, as well as later ones through February 17, 1851, all bearing its motto: "The greatest good for the greatest number." Many of the earlier issues are addressed to John M. Clayton, who was Secretary of State until July 1850, and some later issues are addressed to his successor, Daniel Webster. (The

Library's file of *The Minnesota Pioneer* also has a State Department provenance.)

**How many children had
John Rogers!**

The controversy on this on this subject, which has so long vexed the world, has ended like many others, by proving both parties in the wrong. Middleton in his Evangelical Biography, has the following:

"His wife and *ten* children by her side and *one* at the breast, met him by the way."

What! *eleven* children! And yet why not? exclaims the Chicago Journal. The notation by tens is a good one, and Mrs. Rogers exemplified the good old rule of addition, for she "*carried one for every ten.*"

PIPING TIMES.—An away-down-east paper thus holds forth:

"The weather is decidedly hot. Corn grows well. Pumpkins run. Grass is getting up, and cows are giving down their milk by the pailful. Beans are running up and carrots are running down. Soda and small beer likewise. Thermometers are on the rise—the books can hardly hold. Every thing is dusty, and nothing wet except some people's throats. The little potatoes are beginning to crowd each other in the hill, and veal, thank good fortune, is getting scarce. Fine times, these, to promote perspiration, but bad for goslins. It is emphat-i-cal-ly HOT.

SINGULAR EXPERIMENT.—*Death from the effects of imagination.*—A curious experiment was recently tried in Russia with some murderers. They were placed without knowing it, in four beds where four persons had died of the cholera.—They did not take the disease. They were then told that they were to sleep in beds where some persons had died of malignant cholera, but the beds were in fact, new, and had not been used at all. Nevertheless, three of them died of the disease within four hours. We state this upon the authority of the London Medical Times.

Punch calls the French Artillery at Rome "the cannons of the Church."

(Short newspaper items)

In addition the Library of Congress owns three official publications printed by James Madison Goodhue in 1849: *Message from the Governor of Minnesota Territory to the Two Houses of the Legislative Assembly, at the Commencement of the First Session, September 4, 1849*; *Rules for the Government of the Council of Minnesota Territory, and Joint Rules of the Council and House, Adopted at a Session of the Legislature, Commenced September 3, 1849*; and *Message of the Governor, in Relation to a Memorial from Half-Breeds of Pembina*.^[114] On September 5, the day after it authorized Goodhue to do its printing, the newly formed legislature ordered the first two of these titles printed in editions of 500 and 100 copies, respectively.^[115] The Library copies of both pamphlets are unbound, without marks of personal ownership. The first is an older acquisition of undetermined origin; the second a 1940 purchase from the Rosenbach Company in New York, at \$165. The third title was ordered printed in 300 copies on October 1, 1849, the day the Governor's message was delivered.^[116] It is a four-page leaflet, one of 73 rare American imprints that the printing historian Douglas C. McMurtrie sold to the Library for \$600 in 1935.

^[113] See M. W. Berthel, *Horns of Thunder, the Life and Times of James M. Goodhue, Including Selections from his Writings* (St. Paul, 1948).

^[114] These are nos. 18, 66, and 23 in Esther Jerabek's *A Bibliography of Minnesota Territorial Documents* (St. Paul, 1936). Unrecorded in this bibliography are two early pamphlets printed by the *Chronicle and Register*: *Courts of Record in the Territory of Minnesota; Approved Nov. 1, 1849—Took Effect Dec. 1, 1849* and *Law of the Territory of Minnesota; Relative to the Powers and Duties of Justices. Approved November First, 1849—Took Effect December First, 1849*. The Library's copies are inscribed to Elisha Whittlesey, comptroller, U. S. Treasury Department.

^[115] See *Journal of the Council During the First Session of the Legislative Assembly of the Territory of Minnesota* (St. Paul, 1850), p. 23.

^[116] *Ibid.*, p. 51.

Washington

Sec. 5. A copy of the decree of such court changing the name of any person certified under the seal of such court by the clerk thereof, shall be sufficient evidence of the name of such person, and of such change having been made in any court of this territory.

Passed January 26, 1855.

AN ACT IN RELATION TO FENCES AND FENCE VIEWERS.

- Sec. 1. What shall be a legal fence; *proviso*.
2. When lawful fence is broken into, the owner of the animal doing the damage responsible therefor.
3. Fence viewers to be appointed, when, how, and for what purpose; judgment how rendered; appeal may be taken.
4. Fees, and compensation of fence viewer.
5. When this act to take effect.

SEC. 1. *Be it enacted by the Legislative Assembly of the Territory of Washington,* That all fences of rails called worm fences, shall have not less than four feet worm to rails of ten feet in length (and if greater length, in that proportion,) shall be four feet high, well staked and ridged upon that, according to practice. Below the third rail from the ground, no crack or space of more than five inches shall intervene, and below two feet in height, there shall be no crack or intervening space of more than seven inches, and the whole height of said fence shall not be less than five feet. Such a fence or any other equivalent thereto, made of any other material or form shall be deemed legal and sufficient fence; provided, that where damage is done by animals too large to go through the space or cracks specified in this section the failure to have built such fence as close as herein required, shall not be pleaded in justification or set off of such damage.

SEC. 2. If any domestic animal or animals break into an enclosure the persons so injured thereby, shall recover of the owner of said animal or animals, the amount of damage, if it shall appear that the fence through which said animal or animals broke, was lawful; but not otherwise.

SEC. 3. That if any person may have sustained damage by reason of the failure of any person to erect a legal fence, he may make complaint to the nearest disinterested justice of the peace within the county, who shall upon filing of such complaint appoint a disinterested householder who shall be duly sworn to view said fence impartially, report thereon the condition of the fence, and the damages sustained if any; and the justice of the peace shall enter judgment according to such fence viewer's report. If the amount of the judgment exceeds twenty dollars, appeals to the district court may be taken as in other cases.

***(Acts of the Legislative Assembly of the
Territory of Washington, Passed at the Second
Regular Session, Begun and Held at Olympia,
December 4, 1854, in the Seventy-Ninth Year
of American Independence)***

SEC. 4. The fee for services performed as fence viewer in accordance with section third shall be two dollars for every day actually employed in the view of said fence and mileage and attendance as a witness, and such costs and charges shall be paid by the party against whom the judgment is rendered.

SEC. 5. This act to take effect and be in force from and after its passage.

Passed January 29, 1855.

AN ACT RELATING TO GAMING AND GAMING CONTRACTS.

- SEC. 1. All games and gambling devices prohibited.
 2. Penalty for violation of this act.
 3. Penalty for betting.
 4. Penalty for permitting gambling on the premises.
 5. Persons betting shall give testimony; such testimony not to be used against the witness.
 6. Fines under this act for the use of common schools.
 7. District attorney to prosecute suits under the provisions of this act.
 8. Prosecuting attorney to sue for and recover money won and lost, for the use of common schools.
 9. Gaming contracts declared void.
 10. Acts conflicting with this, null and void.
 11. When this act to take effect.

SEC. 1. *Be it enacted by the Legislative Assembly of the Territory of Washington, That all E. O. or roulette tables, faro or faro banks, and all gaming with cards, gaming tables, or gambling devices whatever, are hereby prohibited from being set up or used for gaming or gambling purposes in this territory.*

SEC. 2. Every person who shall deal cards at the game called faro, or forty-eight, whether the same shall be dealt with fifty-two or any other number of cards: and every person who shall keep, to be used in gaming, any gambling device whatever, designed to be used in gaming, shall forfeit the same on conviction, and be punished by fine, not more than one hundred dollars nor less than fifty dollars.

SEC. 3. Every person who shall bet any money, or other property, at or on any gaming table, bank, or gambling device, prohibited by this act, or in any other way, shall, on conviction, be punished by fine, not exceeding fifty dollars nor less than ten dollars.

SEC. 4. Every person who shall suffer any gaming table, bank, or gambling device, prohibited by this act, to be set up or used for the purpose of gambling, in any house, building, steamboat, raft, keel boat, or boom, lot, yard, or any other place to him belonging, or by him occupied, or of which he has the control, shall be liable to punishment by fine, not exceeding one hundred dollars nor less than fifty dollars.

***(Acts of the Legislative Assembly of the
Territory of Washington, ... continued)***

The earliest recorded example of Washington printing is the first number of *The Columbian*, published at Olympia on September 11, 1852. The founders of this newspaper were James W. Wiley and Thornton F. McElroy, who purchased a press on which the *Portland Oregonian* had for a short time been printed and which before that saw service in California. [\[117\]](#)

In 1853 the Territory of Washington was created from the northern part of the Territory of Oregon, and on April 17, 1854, the new Territorial

legislature elected James W. Wiley to be Washington's first official printer. The earliest specimen of Washington printing held by the Library of Congress appears to be the following example of his work, printed at Olympia in 1855: *Acts of the Legislative Assembly of the Territory of Washington, Passed at the Second Regular Session, Begun and Held at Olympia, December 4, 1854, in the Seventy-Ninth Year of American Independence*. It includes an act passed at the second session, on February 1, 1855, specifying the size and distribution of the original edition:

Sec. 1. *Be it enacted by the Legislative Assembly of the Territory of Washington*, That the Public Printer be, and is hereby required to print in pamphlet form, six hundred copies of the laws of the present session, and a like number of the laws of the last session of the Legislative Assembly....

Sec. 2. It shall be the duty of the Secretary of the territory to forward to each county auditor in the territory fifteen copies of the laws of each session for the use of the county officers, and two copies for each member of the Legislative Assembly, and to each officer of the Legislative Assembly, one copy of said laws.

The Library owns three copies of this 75-page official document, all acquired probably during the last quarter of the 19th century. They are in old Library bindings and bear no marks of prior ownership.

Among the Library's collections are five other Olympia imprints of the same year but from the press of the second official printer, George B. Goudy, who was elected on January 27, 1855. One of these, a work of more than 500 pages, the Library also holds in three copies: *Statutes of the Territory of Washington: Being the Code Passed by the Legislative Assembly, At Their First Session Begun and Held at Olympia, February 27th, 1854. Also, Containing the Declaration of Independence, the Constitution of the United States, the Organic Act of Washington Territory, the Donation Laws, &C., &C.* The others are *Journal of the Council of the Territory of Washington: Together With the Memorials and Joint Resolutions of the First Session of {the} Legislative Assembly ...*; *Journal of the House of Representatives of the Territory of Washington: Together With the Memorials and Joint Resolutions of the First Session of the Legislative*

Assembly ...; Journal of the Council of the Territory of Washington, During the Second Session of the legislative Assembly ...; and Journal of the House of Representatives of the Territory of Washington: Being the Second Session of the Legislative Assembly

Most official printing in the Territories was paid for by the Federal Government, and copies of many publications were sent to Washington, D.C., to meet certain administrative requirements. In some copies now at the Library of Congress visible evidence to this effect remains, as in the above-mentioned Council and House journals for the second legislative session, both inscribed to "Library State Dept." Although the Department of State continued to exercise broad supervision over the Territories at this period, supervision of their official printing was assigned, as it had been since 1842, to the Treasury Department. The cover or halftitle now bound in at the end of the above-mentioned House journal for the first legislative session bears notations made in the office of the Treasury Department's first comptroller, who exercised this particular responsibility.^[118] One is a barely legible record in pencil: "Recd Oct 14/56 in letter of Sec Mason of Augt 26/56"; and another is in ink: "Finding enclosed to Sec Mason March 31/57." These notations refer to correspondence between the comptroller and the secretary of the Territory of Washington about remuneration for printing. Part of the correspondence is still retained at the National Archives (in Record Group 217).

^[117] See Roby Wentz, *Eleven Western Presses* (Los Angeles, 1956), p. 35-38.

^[118] See W. A. Katz, "Tracing Western Territorial Imprints Through the National Archives," *The Papers of the Bibliographical Society of America*, vol. 59 (1965), p. 1-11. Two Minnesota documents inscribed to the comptroller are cited in footnote no. 2 on page 69.

Nebraska

TERRITORY OF NEBRASKA.

LAWS, RESOLUTIONS AND MEMORIALS,

PASSED AT THE

REGULAR SESSION

OF THE

FIRST GENERAL ASSEMBLY

OF THE

TERRITORY OF NEBRASKA,

CONVENED AT OMAHA CITY, ON THE 16TH DAY OF JANUARY, ANNO DOMINI, 1855.

TOGETHER WITH

THE CONSTITUTION OF THE UNITED STATES, THE ORGANIC
LAW, AND THE PROCLAMATIONS ISSUED IN THE OR-
GANIZATION OF THE TERRITORIAL GOVERNMENT.

PUBLISHED BY AUTHORITY.

SHERMAN & STRICKLAND, TERRITORIAL PRINTERS.

OMAHA CITY, N. T.,

1855.

*(Laws, Resolutions and Memorials, Passed at
the Regular Session of the First General
Assembly of the Territory of Nebraska,
Convened at Omaha City, on the 16th Day of
January, Anno Domini, 1855. Together with
the Constitution of the United States, the*

***Organic Law, and the Proclamations Issued
in the Organization of the Territorial
Government)***

Scholarly investigation has revealed that a supposed early instance of Nebraska printing—the Mormon *General Epistle* "written at Winter Quarters, Omaha Nation, west bank of Missouri River, near Council Bluffs, North America, and signed December 23d, 1847"—actually issued from a St. Louis press.^[119] The Library of Congress copy of this imprint is consequently disqualified for discussion here, as are also the Library's three issues of the *Omaha Arrow*, beginning with the initial number dated July 28, 1854, since these issues were printed in Iowa, at Council Bluffs, before Omaha acquired its own press.

Nebraska printing begins in fact with the 16th number of the *Nebraska Palladium*, issued at Bellevue on November 15, 1854. Previously issued at St. Mary's, Iowa, the paper takes pride in introducing printing to the newly formed Territory of Nebraska and identifies the men responsible:

The first printers in our office, and who have set up the present number, are natives of three different states—Ohio, Virginia, and Massachusetts, namely: Thomas Morton, foreman, Columbus, Ohio (but Mr. Morton was born in England); A. D. Long, compositor, Virginia; Henry M. Reed, apprentice, Massachusetts.^[120]

The first Nebraska books were printed at Omaha by the Territorial printers Sherman & Strickland in 1855, and they are represented in the Library of Congress collections: *Laws, Resolutions and Memorials, Passed at the Regular Session of the First General Assembly of the Territory of Nebraska, Convened at Omaha City, on the 16th Day of January, Anno Domini, 1855. Together with the Constitution of the United States, the Organic Law, and the Proclamations Issued in the Organization of the Territorial Government; Journal of the Council at the First Regular Session of the General Assembly, of the Territory of Nebraska, Begun and Held at Omaha City, Commencing on Tuesday the Sixteenth Day January, A. D. 1855, and Ending on the Sixteenth Day of March, A. D. 1855; and Journal of the House of Representatives, of the First Regular Session of the General*

Assembly of the Territory of Nebraska These three official publications record quite fully the work of the first Nebraska Legislature, which consisted of a council of 13 and a house of 26 members. From later in the same year the Library owns still another Sherman & Strickland imprint: *Annual Message of Mark W. Izard, Governor of the Territory of Nebraska, Addressed to the Legislative Assembly, December 18, 1855*. The Governor delivered this address at the convening of the second legislature.

The press on which these four books were printed had been transported to Omaha from Ohio, and it was used to produce the initial number of the *Omaha Nebraskan*, January 17, 1855.^[121] On March 13, with the approval of a joint resolution which may be read in the *Laws, Resolutions and Memorials*, John H. Sherman and Joseph B. Strickland became the official printers of the Territory; and "An Act to provide for Printing and Distributing the Laws of Nebraska Territory," also approved on March 13, stipulated that a thousand copies of the laws and resolutions of the first legislature be printed. Two of the thousand copies are listed as a "present" in *Additions Made to the Library of Congress, Since the First Day of November, 1855. November 1, 1856* (Washington, 1856).^[122] They are still on the Library shelves, along with a third copy received by transfer from another Government agency in 1911. The Library received its copy of the *Journal of the Council* in 1867 and its copy of the *Journal of the House of Representatives* probably not much later in the 19th century.^[123] The Statute Law Book Company sold the Library Governor Izard's *Annual Message* for \$22 in October 1935.

^[119] See no. 65 in Thomas W. Streeter's *Americana—Beginnings* (Morristown, N.J., 1952). The Library of Congress possesses one copy, not two as here reported.

^[120] Quoted from Douglas C. McMurtrie's "Pioneer Printing in Nebraska" in *National Printer Journalist*, vol. 50, no. 1 (January 1932), p. 20-21, 76-78.

^[121] *Ibid.*, p. 76.

^[122] P. 99.

^[123] The latter title is indicated as wanting in a collective entry for Council and House journals in the *Catalogue of Books Added to the Library of Congress, from December 1, 1866, to December 1, 1867* (Washington, 1868), p. 282.

South Dakota

In 1858 the Dakota Land Company sent out from St. Paul to Sioux Falls a newspaper editor named Samuel J. Albright, a printer named J. W. Barnes, and a printing press which Albright later insisted was the original Goodhue press (see above, p. [68](#)), despite conflicting accounts of its history. If his testimony is correct, the same press introduced printing in Iowa, Minnesota, and South Dakota. It appears to have been first used at Sioux Falls to print a small election notice dated September 20, 1858; in the following summer, it was used to print South Dakota's first newspaper, *The Democrat*.^{[\[124\]](#)}

Establishment of the Territory of Dakota in 1861 attracted a second Dakota press to the new Territorial capital at Yankton. The earliest Dakota, or South Dakota, printing in the Library of Congress is from the newspaper associated with that press, *The Dakotian*, first published on June 6, 1861, by Frank M. Ziebach and William Freney of Sioux City, Iowa. The Library's earliest holding is the 13th number, which is dated April 1, 1862, and exhibits the paper's motto: "'Let all the Ends thou aims't at, be thy Country's, thy God's and Truth's.'—*Wolsey*." This number follows upon a transfer of the editorship and proprietorship to Josiah C. Trask of Kansas, who announces,

We have secured the interest which Mr. ZIEBACH, the former publisher of this paper, held in the office, and have made extensive additions for book work, &c.—We are now engaged in executing the incidental printing of the Legislative Assembly of this Territory under peculiar disadvantages; yet we believe it will compare favorably with the work of many older Territories. We are prepared to execute any style of printing to the satisfaction of patrons.

By using fine print, Trask was able to present much material in this four-page issue. Among its contents are the text of the Governor's message to the first Territorial legislature and several U.S. laws passed by the first session

of the 37th Congress. The lead editorial, "What We Mean to Do," contains the following statement of policy regarding the Civil War:

At present, there is no room for disagreement in politics. So far as our knowledge extends, all parties join heartily in an indorsement of the truly patriotic and conservative course adopted by the President in the management of this war. He is not a patriot who will allow any slight disagreement te [sic] turn him from a straightforward opposition to the ambitious men who are now heading a Rebellion to destroy the fairest Government ever known. Until this war is ended by a suppression of the Rebellion, unless a change is forced upon us, we shall walk with men of ALL parties, in an earnest, honest purpose to do what we can to strengthen the arms of ABRAHAM LINCOLN, in whatever acts he may deem best for the people who have called him to his present proud position. In this determination we feel that all our patrons will sustain us.

The editorial concludes with an appeal to support the paper:

Few persons can know the expense and care requisite for a publication like this so far West. We feel that our Territory cannot support more than one or two papers. One of these must be at the Capital, and we shall endeavor to make this one worthy the support of all. We expect to receive pecuniary encouragement from men of all parties and all parts. After a few weeks, when we are better acquainted and our paper is better known, we shall ask for the assistance which will be due us from those whom we labor to benefit.

A Library of Congress bound volume contains an incomplete but substantial run of *The Dakotian* from April 1, 1862, to December 17, 1864, without any marks of provenance. In addition the Library owns a file of South Dakota's third newspaper, *The Dakota Republican*, beginning with volume 1, number 31, published at Vermillion on April 5, 1862. This newspaper has for its motto "Our Country If Right, If Wrong, God Forgive, But Our Country Still!" The Library's issue of April 12, 1862, is inscribed "Wm H James"—this would be William Hartford James of Dakota City, Nebr., who served as

Acting Governor of Nebraska in 1871-1872—and some of its 1868 and 1869 issues are inscribed "Dept of State." All of these papers are accounted for in *A Check List of American Newspapers in the Library of Congress* (1901).

The Dakotian.

JOSIAH C. TRASK, EDITOR AND PROPRIETOR.

YANKTON, DAKOTA TERRITORY.

Tuesday, : : : April 1, 1862.

What We Mean to Do.

In commencing the publication of a paper at this point, a few words explanatory of our position will be expected and are here briefly given.

THE DAKOTIAN will aim in its progress to do all its power for the advancement of the material interests of the Territory. It is published mainly with that object, and will grow with the growth of the section that supports it.

In politics it will be INDEPENDENT. By independence will not be understood neutrality. We have opinions, and shall express them fearlessly whenever occasion warrants. At present, there is no room for disagreement in politics. So far as our knowledge extends, all parties join heartily in an indorsement of the truly patriotic and conservative course adopted by the President in the management of this war. He is not a patriot who will allow any slight disagreement to turn him from a straightforward opposition to the ambitious men who are now heading a Rebellion to destroy the fairest Government ever known. Until this war is ended by a suppression of the Rebellion, unless a change is forced upon us, we shall walk with men of ALL parties, in an earnest, honest purpose to do what we can to strengthen the arms of ABRAHAM LINCOLN, in whatever acts he may deem best for the people who have called him to his present proud position. In this determination we feel that all our patrons will sustain us.

Our columns will always be open for candid discussion of any question which will interest our readers. If we should (as we expect to) advance opinions which may not meet the full approbation of any reader, an amount of space equal to that which we occupy on such point will be at the disposal of such reader. We believe that no opinion is sound which will not stand the full force of reason. We take pleasure in a comparison of opinions before the public, who can so readily decide upon their merits.

Few persons can know the expense and care requisite for a publication like this so far West. We feel that our Territory cannot support more than one or two papers. One of these must be at the Capital, and we shall endeavor to make this one worthy the support of all. We expect to receive pecuniary encouragement from men of all parties and all parts. After a few weeks, when we are better acquainted and our paper is better known, we shall ask for the assistance which will be due us from those whom we labor to benefit.

Communications of interest from all parts of the Territory are solicited; but, in all cases, the name of the writer must be appended—not for publication, but as a guarantee of good faith.

(The Dakotian)

From the year 1862 the Library also possesses four books printed at Yankton all bearing the imprint of Josiah C. Trask, Public Printer: *Council Journal of the Legislative Assembly of the Territory of Dakota, to which is Prefixed a List of the Members and Officers of the Council, With Their Residence, Post-Office Address, Occupation, Age, &c.*; *House Journal of the Legislative Assembly of the Territory of Dakota, to which is Prefixed a List of the Members and Officers of the House ...*; *General Laws, and Memorials and Resolutions of the Territory of Dakota, Passed at the First Session of the Legislative Assembly, Commenced at the Town of Yankton, March 17, and Concluded May 15, 1862. To Which are Prefixed a Brief Description of the Territory and its Government, the Constitution of the United States, the Declaration of Independence, and the Act of Organizing the Territory*; and *Private Laws of the Territory of Dakota, Passed at the First Session of the Legislative Assembly....*^[125] Single copies of the Council and House journals were in the Library by 1877. The Library has four copies of the *General Laws* and *Private Laws*, bound together as issued; two copies are probably 19th-century accessions, the third came from the Department of Interior in 1900, and the fourth was transferred from an unspecified Government agency in 1925.

^[124] See Douglas C. McMurtrie, *The Beginnings of the Press in South Dakota* (Iowa City, Iowa, 1933). On the disputed history of the Goodhue press, see M. W. Berthel, *Horns of Thunder* (St. Paul, 1948), p. 26, note 3.

^[125] These are nos. 7, 9, 4, and 5, respectively, in Albert H. Allen's *Dakota Imprints 1858-1889* (New York, 1947).

Nevada



Joseph T. Goodman, editor of the Territorial Enterprise. Courtesy of the New York Public Library.

Nevada owes its first printing to W. L. Jerneagan, who in partnership with Alfred James established a weekly newspaper, the *Territorial Enterprise*, at

Genoa, then in western Utah Territory, on December 18, 1858. Jernegan had transported his printing equipment across the Sierras from Yolo County, Calif. [\[126\]](#)

The earliest Nevada imprint in the Library of Congress dates from 1862, the year after Nevada's establishment as a separate Territory: *Second Annual Message of Governor James W. Nye, to the Legislature of Nevada Territory, November 13, 1862. Together with Reports of Territorial Auditor, Treasurer, and Superintendent of Public Instruction*. Printed at Carson City by J. T. Goodman & Co., Territorial printers, this publication has 48 pages, not including the title page printed on its yellow wrapper. Joseph T. Goodman was not only involved with official printing at this time, but he was also editing the *Territorial Enterprise*, which was then located at Virginia City and had become a daily paper. He is perhaps best remembered for launching Mark Twain on a literary career when he employed him as a reporter in August 1862. [\[127\]](#)

Governor Nye's *Second Annual Message* covers an important period of national history. Strongly pro-Union, it gives an optimistic account of the year's events in the Civil War and bestows high praise on Lincoln's preliminary Emancipation Proclamation of September 22, 1862: "As an engine of war, its formidability is a powerful warrant of early peace, and as a measure of humanity, the enlightened world receives it with acclamations of unbounded joy." Part of the message concerns expected consequences from a bill recently passed by Congress authorizing construction of a Pacific Railroad, which would profoundly affect life in Nevada:

No State nor Territory will derive such inestimable advantage from the road as the Territory of Nevada. Situated, as we are, in what, during a great portion of the year, is an almost inaccessible isolation of wealth; with mountains covered with perpetual snow frowning down directly upon us at the west, and with a series of ranges, difficult to cross, at the east of us, with a wilderness fit only for the original inhabitants of the waste, stretching away a thousand miles, and intervening between us and the frontier of agricultural enterprise; and with no means of receiving the common necessities of life, except through the

expensive freightage of tediously traveling trains of wagons; the value of the road to us will be beyond calculation.

The inscription "Library Depr State" on the Library of Congress copy indicates it must have been submitted to the Department of State, which in 1862 was still in charge of the United States Territories. A date stamp on its wrapper suggests that it was transferred to the Library of Congress by December 1900, while a stamp on page 2 reveals that it was in custody of the Library's Division of Documents in September 1907.

[\[126\]](#) See Richard E. Lingenfelter, *The Newspapers of Nevada* (San Francisco, 1964), p. 47-49.

[\[127\]](#) See Ivan Benson, *Mark Twain's Western Years* (Stanford University, Calif. [1938]), chapters 4-6.

Arizona



(The Weekly Arizonian)

[Click on image for larger view.]

Printing began in Arizona with the establishment of *The Weekly Arizonian*, at the mining town of Tubac, on March 3, 1859. The Santa Rita Mining Company, which owned this newspaper, had imported the first press from Cincinnati, and the first printers are said to have been employees of the company named Jack Sims and George Smithson.^[128]

The Library of Congress file of the *Arizonian* starts with the issue of August 18, 1859, the earliest example of Arizona printing now held by the Library. The paper had removed from Tubac to Tucson shortly before that date under rather dramatic circumstances. Edward E. Cross, its first editor, vigorously opposed a movement in favor of separating Arizona from New Mexico and organizing it as an independent territory. In attacking population statistics put forward by Sylvester Mowry, the leader of that movement, Cross impugned Mowry's character, whereupon Mowry challenged him to a duel, which was fought with rifles on July 8 without injury to either party. Mowry subsequently purchased the printing press and moved it to Tucson. Under a new editor, J. Howard Wells, the *Arizonian's* positions were completely reversed.^[129]

The issue of August 18 supports the candidacy of Sylvester Mowry for delegate to Congress, in an election scheduled for September 1. In view of past events it was understandable that the paper should encourage a heavy vote, not only to demonstrate the unity of Arizonians desiring Territorial status, but also to indicate the extent of the population. The following short article relates to the recurrent topic of numbers:

A SLIGHT MISTAKE

We understand Col. Bonneville says he has taken the names of all the Americans, between the Rio Grande and the Santa Cruz, and they number only one hundred and eighty. Come and pay us a longer visit, Colonel, and count again. There are nearly that number in and around Tucson alone, and there are a good many of us that dislike to be denationalized in so summary a manner. The Overland Mail Company alone, employs some seventy five Americans, between here and the Rio Grande, and they justly think, they have a right to be included, as well as the farmers living on the San Pedro and the Miembres rivers, it is hardly fair to leave them out. It is nearly as bad as cutting down the Americans on the Gila and Colorado to twelve. When there are ten times that number. Try it again Colonel, for evidently there is a slight mistake, some where.

In the same issue is a notice illustrating the production difficulties characteristic of a frontier press:

We have to apologize to the readers of the *Arizonian*, for the delay in issuing this our regular number; the detention has been unavoidably caused, by the indisposition of our printer. We hope it may not occur again, and will not as far as lays in our power to prevent it.

When examined as recently as 1932, a Library of Congress binding contained 10 issues of the *Arizonian* from the year 1859, beginning July 14; however, that early issue has been missing from the binding at least since 1948. One mark of provenance occurs among the remaining issues: an inscription on the issue of August 18, the upper half of which has been cut away but which unquestionably reads, "Gov Rencher." The recipient was

Abraham Rencher (1798-1883), a distinguished North Carolinian who was serving as Governor of the Territory of New Mexico in 1859. By whatever route, these issues reached the Library early enough to be recorded in *A Check List of American Newspapers in the Library of Congress* (1901).

WAS MOSCOW BURNED?—No story has been more generally told nor more fully credited than that relating to the destruction of the great city of Moscow in 1812, by fire. Yet, Moscow was not burned. Around the city is an almost continuous line of woodpile—various species, of pine and other woods. By the side of this, and also reaching around the city, is an almost continuous line of graneries. Here are the food and the fuel of the inhabitants, provided in advance, for the long and dreary winters of the north. After the battle of Borodino, the retiring Russians set fire to the graneries and the wood pile, and to many portions of the city. The pitch burned with resistless fury, destroying everything in its neighborhood, and rendering egress from the place almost impossible. The glorious old churches and palaces of the ancient city of the north escaped in the main the devouring element. The traveler who looks upon the mighty structures, the architecture of which is of the most varied character, betraying the labor, upon the same building, in many cases, of heathen, Mahomedan and Christian denominations, will go away convinced that he has been marvelously deluded by the stories of the destruction of Moscow. He will naturally enquire how those trees, which required centuries to grow, became interlocked with those huge piles of building which he has been taught to believe have all sprung into existence since 1812.

The next Electoral College, chosen in November, 1860, to meet in February, 1861, will—if Kansas should be admitted at the approaching session of Congress—consist of 306 votes, 154 of which will be necessary for a choice for President. The non-slaveholding States will have 186 electors, and the slave-holding States 120.

A young lady up town was cured of palpitation of the heart the other evening, by a young M. D., in the simplest and most natural way imaginable. He merely held one of her hands in his, put his arm round her waist, and whispered something in her ear.

(Column from *Arizonian*)

[128] See Douglas C. McMurtrie, *The Beginnings of Printing in Arizona* (Chicago, 1937), p. 31, note 9.

[129] See Estelle Luttrell, *Newspapers and Periodicals of Arizona 1859-1911* (Tucson, 1950), p. 7-8, 63-64. For more on Cross and Mowry, see Jo Ann

Schmitt, *Fighting Editors* (San Antonio, 1958), p. 1-21.

Colorado

The earliest examples of Colorado printing are the first numbers of two competing newspapers, which were issued at Denver on April 23, 1859, only about 20 minutes apart.^[130] Taking precedence was the *Rocky Mountain News*, published by William N. Byers & Co. and printed with equipment purchased in Nebraska. Its printers were John L. Dailey of Ohio, a member of the company, and W. W. Whipple of Michigan.^[131]

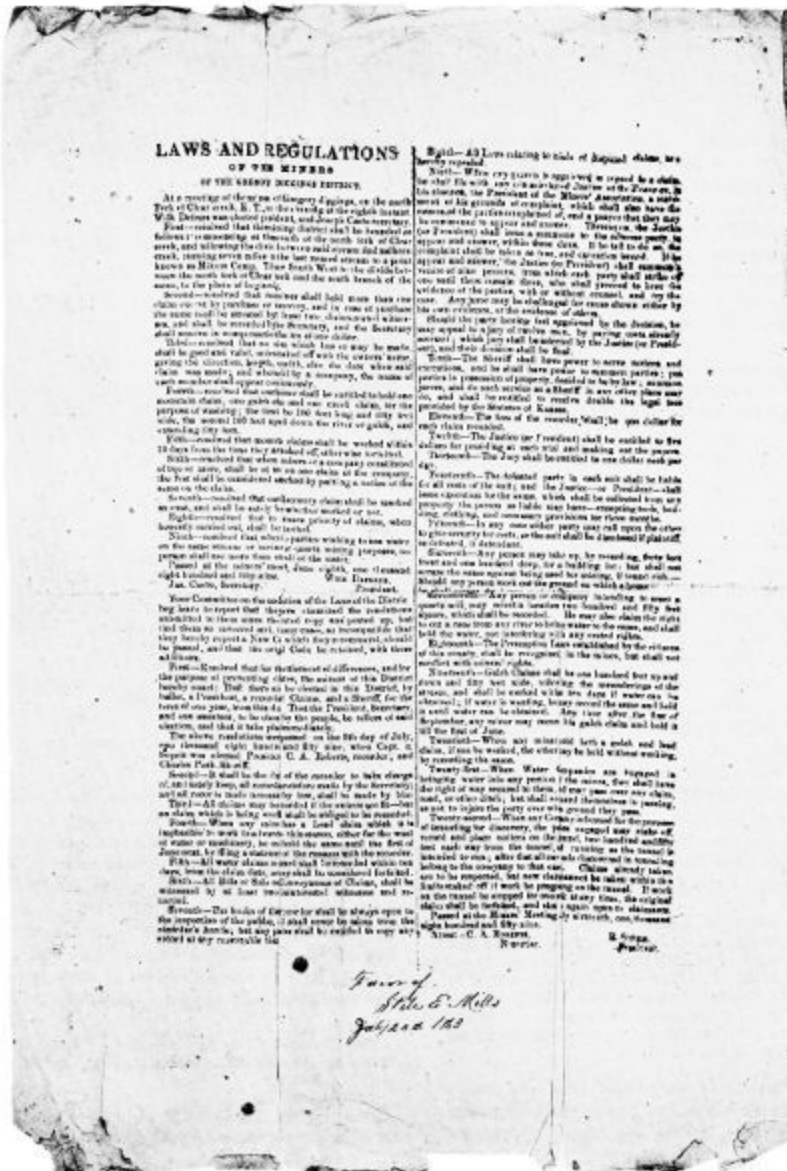
The Library of Congress recently acquired its earliest example of Colorado printing, a broadside entitled *Laws and Regulations of the Miners of the Gregory Diggings District*, attributed to the Byers & Co. press. Printed sometime after July 16, 1859, it is one of but two located copies of the first extant Colorado imprint other than a newspaper or newspaper extra.^[132] The laws, passed at miners' meetings on June 8 and July 16, apply to the district named for John Gregory, whose successful prospecting helped to stimulate the famous Pike's Peak gold rush. They were placed in historical context by Peter C. Schank, assistant chief of the American-British Law Division in the Library of Congress, in an article announcing this acquisition:

the laws themselves are intrinsically valuable because they served as a model for much succeeding legislation, not only for other mining districts, but for State and national enactments as well. Despite the promulgation of California district laws 10 years earlier, the Gregory laws, perhaps because of the district's fame, the presence of prospectors with previous experience in other mining areas, and the imminent adoption of the first national mining statute, had a unique influence on the development of mining law in this country.^[133]

The lower margin of the Library's copy is inscribed, "Favor of Stiles E Mills, July 20th 1863." Neither the identity of Mr. Mills nor the intervening provenance has been established. In recent years this copy belonged to Thomas W. Streeter (1883-1965) of Morristown, N. J., owner of the most

important private library of Americana assembled during the 20th century. The Library of Congress paid \$2,800 for the broadside at that portion of the Streeter sale held by Parke-Bernet Galleries on April 23-24, 1968. [\[134\]](#)

Previously the Library's first example of Colorado printing was the second issue of a small newspaper sheet, *The Western Mountaineer*, published at Golden City on December 14, 1859. This newspaper was printed on the same press, actually the first to reach Colorado, that under different ownership had lost the close race to print the first newspaper at Denver. Gold is a prominent topic in this particular issue, which includes an interesting account of the prospector, George Andrew Jackson, based on information he himself supplied. The Library's copy seems to have been detached from a bound volume, probably before its listing in *A Check List of American Newspapers in the Library of Congress* (1901). Penciled on its front page are the name "Lewis Cass [Esquire?]" and what appears to be another name beginning with "Amos." Lewis Cass was Secretary of State at the time of publication.



(Laws and Regulations of the Miners of the
Gregory Diggings District)

[Click image for larger view]

[130] See Douglas C. McMurtrie and Albert H. Allen, *Early Printing in Colorado* (Denver, 1935).

[131] See *History of the City of Denver, Arapahoe County, and Colorado* (Chicago, 1880), p. 395 and 641.

[132] See no. 68 in Thomas W. Streeter's *Americana—Beginnings* (Morristown, N.J., 1952).

[133] U.S. Library of Congress, *The Quarterly Journal of the Library of Congress*, vol. 26 (1969), p. 229.

[134] It is described under no. 2119 in *The Celebrated Collection of Americana Formed by the Late Thomas Winthrop Streeter* (New York, 1966-69), vol. 4.

Wyoming

The oldest relics of Wyoming printing are June and July 1863 issues of the *Daily Telegraph*, published at Fort Bridger in what was then the Territory of Utah. The printer and publisher of this newspaper was Hiram Brundage, telegraph operator at the Fort, who had previously been associated with the Fort Kearney *Herald* in the Territory of Nebraska.^[135] No printing is known to have been performed in Wyoming between 1863 and 1867, with the possible exception of a disputed imprint dated 1866,^[136] and the first permanent Wyoming press dates from the founding of the *Cheyenne Leader* in September 1867.

The earliest example of Wyoming printing in the Library of Congress is a 24-page pamphlet printed at Green River by "Freeman & Bro., book and job printers" in 1868: *A Vocabulary of the Snake, or, Sho-Sho-Nay Dialect by Joseph A. Gebow, Interpreter. Second Edition, Revised and Improved, January 1st, 1864*. It was printed on the press of the *Frontier Index*, a migratory newspaper which commenced when the Freemans bought out the Fort Kearney *Herald* in Nebraska. This press moved westward from place to place as the Union Pacific Railroad penetrated into southern Wyoming, and it stopped at Green River for about two months in 1868.^[137]

The first edition of Gebow's *Vocabulary* was printed at Salt Lake City in 1859, and the first printing of the second edition at Camp Douglas, Utah, in 1864. The vocabulary proper is prefaced only by the following statement:

Mr. Joseph A. Gebow, having been a resident in the Mountains for nearly twenty years, has had ample opportunity of acquiring the language of the several tribes of Indians, and offers this sample of Indian Literature, hoping it may beguile many a tedious hour to the trader, the trapper, and to any one who feels an interest in the language of the Aborigines of the Mountains.

Even for those unfamiliar with the native dialect, the words and phrases in English can be beguiling. Among the phrases chosen for translation are "Go

slow, friend, don't get mad" and "You done wrong."

A VOCABULARY	
OF THE	
SNAKE OR SHO-SHO-NAY DIALECT	
A	
A tin cup,	Augoots.
All of you,	Himoyeant.
A sword,	Kivarent wit.
All gone,	Mat-so mahgan.
A gun sight,	Mah-nah-gah-ray.
Axe,	Owen.
All,	Oyeant.
Arm,	Praw.
After a while,	Po-naie goie.
Antelope,	Quah-ratse.
Antelope skin,	Quah-ray empue.
A broom,	Shocoo-witse wene.
Americans,	Swap.
A tribe of Yutes,	Sampits.
Arrapahoes,	Shahray-tick-ah.
A file,	Te mah-tsone,
A pillow,	Tsopah-tagay.
A frying pan,	Taywah-yeang.
A tin pan,	Tooshah an-goots.
Awl,	Weyo.

**(A Vocabulary of the Snake, or, Sho-Sho-Nay
Dialect by Joseph A. Gebow, Interpreter.
Second Edition, Revised and Improved,
January 1st, 1864.)**

The present Library of Congress copy is inscribed to the Smithsonian Institution, and to judge from a date stamp it was added to the Smithsonian Library by May 1870. Later it was transferred to the Library of Congress

through the Smithsonian Deposit (see above, p. 52). It is in an old library binding with the original printed wrappers bound in.

[135] See Douglas C. McMurtrie, *Early Printing in Wyoming and the Black Hills* (Hattiesburg, Miss., 1943), p. 9-10.

[136] Ibid., p. 10, note 1.

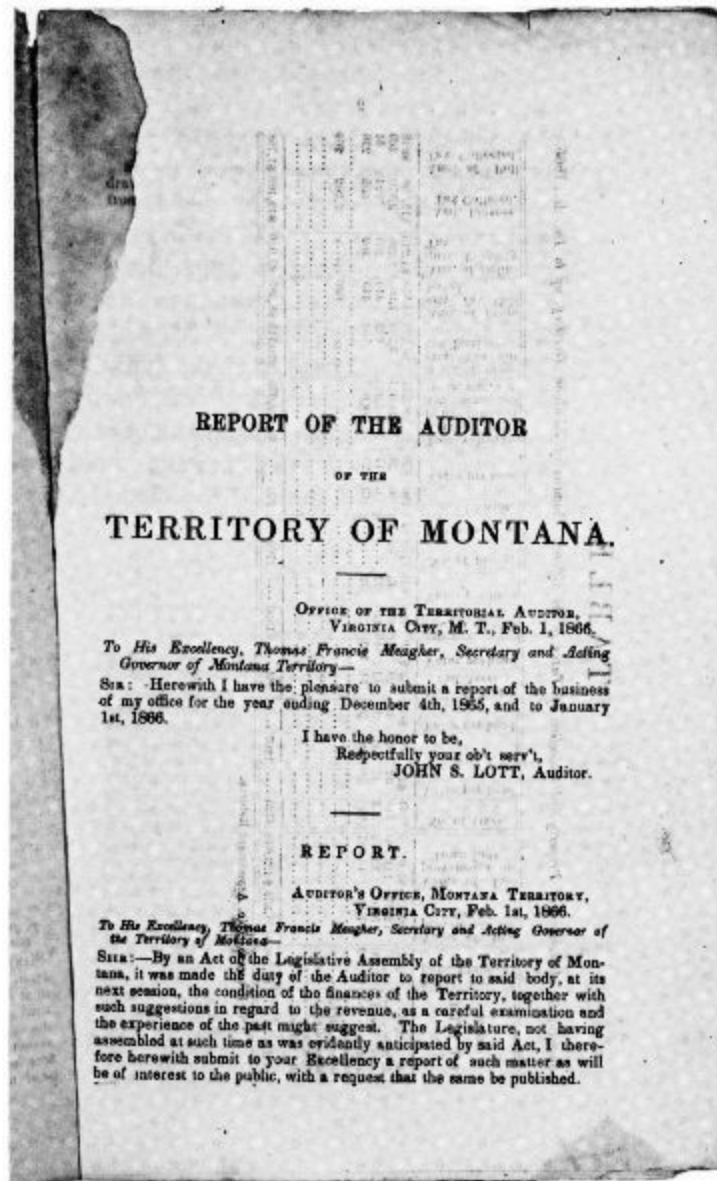
[137] Ibid., p. 39. On p. 48 McMurtrie argues that the pamphlet was printed in the month of October.

Montana

Authorities do not agree on when or by whom Montana's first printing was undertaken. It was either at Bannack or Virginia City, both gold-mining towns, probably in October 1863.^[138]

The earliest Montana imprints in the Library of Congress were printed at Virginia City in 1866 by John P. Bruce, who owned *The Montana Democrat* and was designated Public Printer. Of these, the first may be an eight-page pamphlet, *Reports of the Auditor, Treasurer, and Indian Commissioner, of the Territory of Montana*. The latest document incorporated in the text is dated February 22, 1866, and the pamphlet was printed in the office of *The Montana Democrat* probably not long after that date. Most likely the second Montana imprint in the Library is the *Message of Governor Thomas Francis Meagher, to the Legislature of Montana Territory, Delivered on the 6th Day of March, 1866*. Three thousand copies were ordered, according to a printed note on the eighth and final page of this work. Neither of these two imprints bears any mark of provenance, and both appear to have entered the Library before the turn of the century.

Another early example of Montana printing in the Library is the 22d number, dated April 12, 1866, of *The Montana Democrat*, a sizable four-page sheet displaying the paper's motto: "Be faithful in all accepted trusts." It is addressed in pencil to the State Department. From about the same time the Library can boast two copies of *Laws of the Teritory [sic] of Montana, Passed at the Second Session of the Legislature, 1866. Beginning March 5, 1866, and Ending April 14, 1866*, a work of 54 pages. Although copy one is imperfect, lacking pages 49-54, it is of interest for the penciled inscription on its title page: "President Johnson."



(REPORT OF THE AUDITOR OF THE
TERRITORY OF MONTANA.)

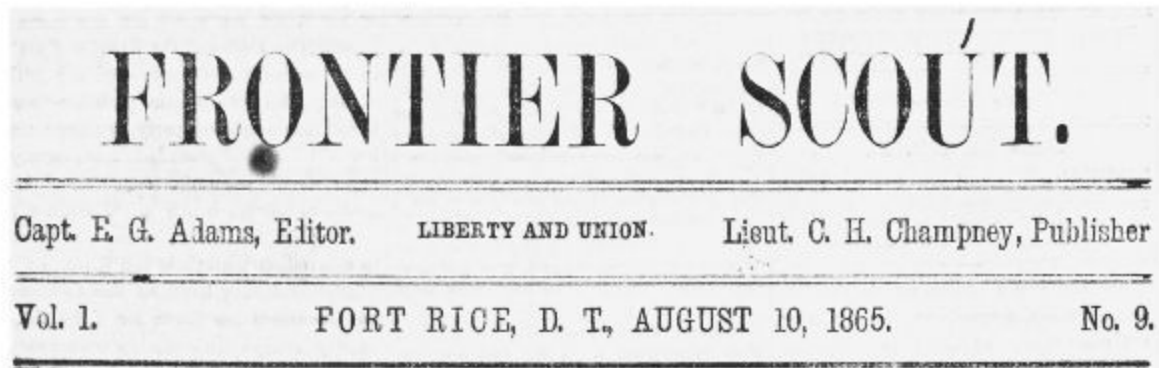
The Library of Congress also owns three copies of a celebrated Montana book published at Virginia City in the same year by the proprietors of *The Montana Post* press, S. W. Tilton & Co.: *The Vigilantes of Montana, or Popular Justice in the Rocky Mountains. Being a Correct and Impartial Narrative of the Chase, Trial, Capture and Execution of Henry Plummer's Road Agent Band, Together With Accounts of the Lives and Crimes of Many of the Robbers and Desperadoes, the Whole Being Interspersed With Sketches of Life in the Mining Camps of the "Far West;" Forming the Only*

Reliable Work on the Subject Ever Offered the Public. The author, Prof. Thos. J. Dimsdale, was an Englishman who served Virginia City as a teacher and as editor of the *Post*, where his work originally appeared in installments. This first edition in book form contains 228 pages of text. The Library date-stamped copy one in 1874. Copy two was deposited for copyright in 1882, the year that D. W. Tilton put out a second edition. Copy three bears the signature of Henry Gannett (1846-1914), geographer of the U.S. Geological Survey and at the time of his death president of the National Geographic Society. It contains a "War Service Library" bookplate and an "American Library Association Camp Library" borrower's card (unused). The Library of Congress received the copy from an unknown source in 1925.^[139]

^[138] See Douglas C. McMurtrie, *Pioneer Printing in Montana* (Iowa City, Iowa, 1932); the Introduction to McMurtrie's *Montana Imprints 1864-1880* (Chicago, 1937); and Roby Wentz, *Eleven Western Presses* (Los Angeles, 1956), p. 49-51.

^[139] Three Virginia City imprints dated 1866 are excluded from the present account. One of them (McMurtrie 19) cannot have been issued before January 10, 1867. The others (McMurtrie 130 and 131) were actually printed in Maine according to McMurtrie's bibliography. None of the Library of Congress copies of these imprints has a notable provenance.

North Dakota



FRONTIER SCOUT. Capt. E. G. Adams, Editor. LIBERTY AND UNION. Lieut. C. H. Champney, Publisher Vol. 1. FORT RICE, D. T., AUGUST 10, 1865 No. 9.

As early as 1853 a printing press is said to have been at the St. Joseph mission station, site of the present town of Walhalla, but there is no evidence that the press was actually used there. The first confirmed North Dakota printing was done on a press which Company I of the 30th Wisconsin Volunteers brought to Fort Union in June 1864. In July of that year a small newspaper, the *Frontier Scout*, made its appearance at the fort, and extant issues name the Company as "proprietors" and identify (Robert) Winegar and (Ira F.) Goodwin, both from Eau Claire but otherwise unknown, as publishers.^[140] Possibly antedating the *Frontier Scout* is a rare broadside notice which either issued from the same press (not before June 17) or else could be the first extant Montana imprint.^[141]

With its early North Dakota newspapers the Library of Congress has a facsimile reprint of the *Frontier Scout*, volume 1, number 2 (the first extant issue), dated July 14, 1864. The Library's earliest original specimen of North Dakota printing is a copy of the *Frontier Scout*, volume 1, number 9 in a new series of issues at the paper's second location, Fort Rice. Dated August 10, 1865, this issue names Capt. E. G. Adams as editor and Lt. C. H. Champney as publisher. The Library's copy is printed on a four-page sheet of blue-ruled notebook paper.

The contents of the August 10 issue are almost entirely from the pen of Captain Adams, who saw fit to run the statement: "Every article in the paper is original and sees the light for the first time." A long poem about Columbus, which he entitled "San Salvador," occupies most of the front page. More interesting is a second-page editorial headed "Indian Impolicy," rebuking the authorities in Washington for not allowing General Sully a free hand in his current operations against the Indians (whom the editor calls "these miserable land-pirates"). From this issue one gains an impression that Fort Rice must have been a dreary post. The following is under date of August 6 in a section captioned "Local Items":

By the Big Horn and Spray [vessels] the Q. M. Dept. at Fort Rice receive 4500 sacks of corn. The Mail arrives. The wolves are howling on all sides tonight; we can see them, some of them are as large as year old calves. The first cat arrives at Fort Rice. There are so many rats and mice here it is a great field for feline missionaries.

The Library of Congress obtained its copy of this issue of the *Frontier Scout* through an exchange with the South Dakota Historical Society in November 1939.

[140] See Douglas C. McMurtrie, "Pioneer Printing in North Dakota," *North Dakota Historical Quarterly*, vol. 6, 1931-32, p. 221-230.

[141] See no. 2036 in *The Celebrated Collection of Americana Formed by the Late Thomas Winthrop Streeter* (New York, 1966-69), vol. 4.

Alaska

Printing is not known to have been undertaken by the Russians in Alaska, [\[142\]](#) nor can a broadside notice of 1854 printed by an English searching party aboard H.M.S. *Plover* at Point Barrow [\[143\]](#) be properly considered as Alaskan printing. The first printing in Alaska evidently followed its transfer to United States rule on October 18, 1867.

Despite the absence of a bibliography or trustworthy history of early Alaskan printing, it seems safe to say that the earliest imprints were the orders issued by the Military District of Alaska beginning with General Orders No. 1, dated October 29, 1867. [\[144\]](#) The District headquarters were at Sitka. There is no statement on the orders about place of printing, but it is difficult to imagine how they could have been printed elsewhere than Alaska and still have served their immediate purpose.

The earliest Alaskan printing in the Library of Congress is a series of general orders dating from April 11, 1868, to July 1, 1870. These orders, printed as small sheets and leaflets, are mostly of a routine character, the majority reporting courts-martial held at Sitka. In the General Orders No. 1, of April 11, 1868, Jefferson C. Davis announces his assumption of command of the Department of Alaska, which superseded the Military District of Alaska on March 18, 1868, and he names the members of his departmental staff. The orders are printed on different kinds of paper, including blue-ruled, and many of them carry official signatures in manuscript. General Orders No. 13, of December 31, 1868, is stamped: "Received Adjutant Gen'l's Office Apr 6 1870." The whole series is bound into a volume, now destitute of both covers, which was weeded from the Army War College Library sometime after World War II. The National War College transferred it to the Library of Congress in or about 1953.

Since the facts surrounding the Army press have yet to be documented, it may be well to consider the civilian printing of Alaska also. This apparently began with the initial issue of *The Alaskan Times*, dated April 23, 1869, and printed on a press obtained from San Francisco. [\[145\]](#) The *Times* ceased

publication in 1870. Apart from the general orders of 1868-70, the earliest Alaskan printing in the Library is its file of *The Sitka Post* beginning with the second issue, dated November 5, 1876. The *Post*, published in a small six-page format on the 5th and 20th of each month, was the second newspaper to be printed in Alaska. Neither the *Times* nor the *Post* identifies its printer.

Featured in the November 5 issue is "The Cavalry Fight at Brandy Station," an extract from L. P. Brockett's *The Camp, the Battle Field, and the Hospital* (Philadelphia, 1866). Following this is a forceful editorial on "The Indian Campaign," which advocates committing a greater number of U.S. troops to the war against the Sioux. Certain advertisements in this issue are noteworthy because they relate to the paper itself. One is on the fourth page:

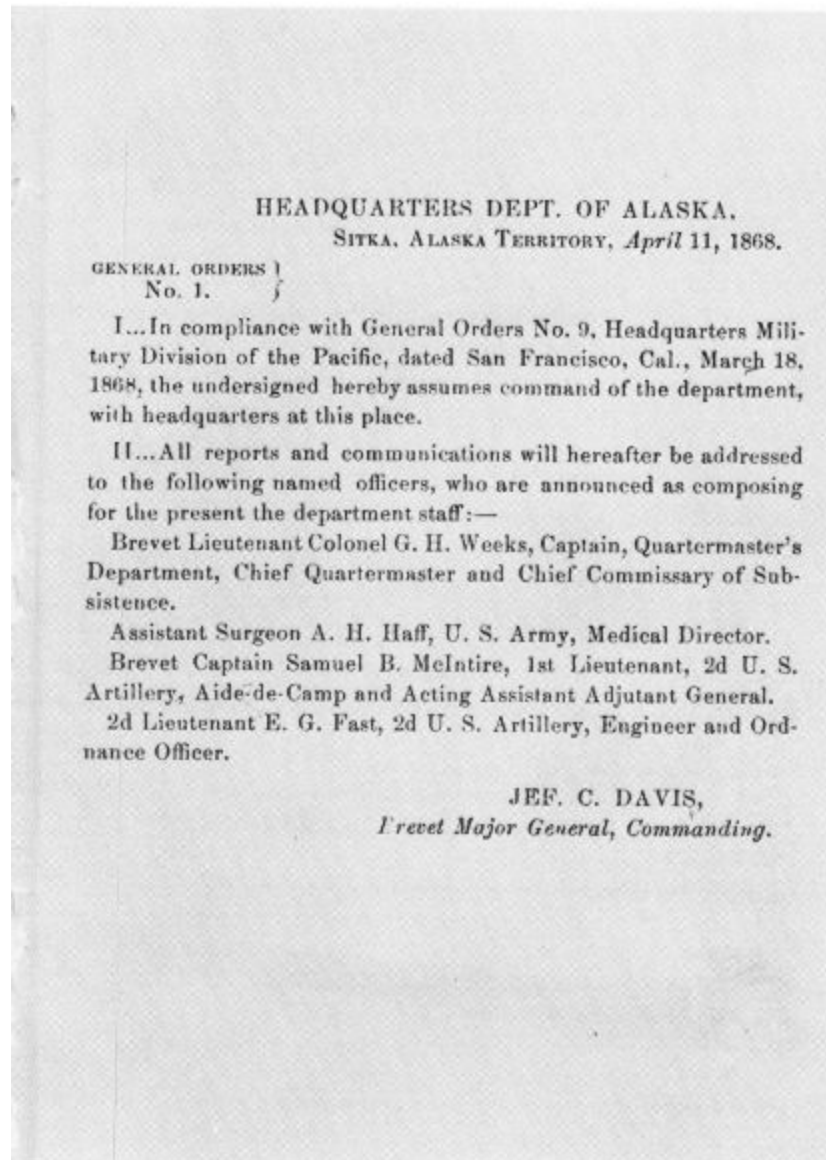
We wish to call the Attention of all BUSINESS MEN who intend to Trade in Alaska to the fact that The Sitka Post is the Only Newspaper PUBLISHED in the TERRITORY. It is devoted entirely to the Interests of ALASKA; will never be made the organ of any party [o]r ring, political, commercial, or otherwise; and will make it its object to give the news of the TERRITORY. ALL ENTERPRISING MEN who wish to bring their BUSINESS before the Public of Alaska Territory cannot do better than by ADVERTISING in The Sitka Post.

Another appears on the last page:

MEN OF ENTERPRISE! TAKE NOTICE! The SITKA POST Is the only Paper printed in Alaska. It is the best medium of Advertising. It circulates in Sitka, Wrangel, Stikeen, Kodiak; Portland, Oregon; San Francisco, Cal; Baltimore, Md, and Washington, D. C. Send your Advertisements to J. J. Daly Editor, Sitka Post, Sitka, A.

And there is a brief appeal at the end of the last page:

Wanted—More subscribers and contributors to this paper.



(Orders issued by the Military District of Alaska)

The Library of Congress file of the *Post* is in an old Library binding and extends from number 2 without break to the 14th and final number, dated June 5, 1877. The first page in the volume bears a Library date stamp of 1877. Also on the first page is the signature "M. Baker," preceded by the words "Purchased by" in a different hand. Thus the file was apparently assembled by Marcus Baker (1849-1903), a noted cartographer and writer on Alaska who was employed from 1873 to 1886 by the U.S. Coast and Geodetic Survey. Some issues are addressed in pencil to individual subscribers, three of whom can be positively identified from company

muster rolls at the National Archives as members of the 4th Artillery, U.S. Army, stationed at Sitka. They are "Ord[nance] Serg[ean]t [George] Go[l]kell"; "H[enry] Train," a corporal in Company G; and "W[illiam] J. Welch," a bugler in Company G.

[142] See Valerian Lada-Mocarski, "Earliest Russian Printing in the United States," in *Homage to a Bookman; Essays ... Written for Hans P. Kraus* (Berlin, 1967), p. 231-233.

[143] See no. 3525 in *The Celebrated Collection of Americana Formed by the Late Thomas Winthrop Streeter* (New York, 1966-69), vol. 6.

[144] See *ibid.*, no. 3531.

[145] Photostat copy in the Library of Congress examined.

Transcriber's Notes

The images have not been cleaned up in order to keep the worn look of the old documents. The texts within the images have not been transcribed with the exception of some titles. Image descriptions, added for convenience, are within parentheses below the images. Captions found in the original book are not enclosed in parentheses.

All [sic] notes were from the original book.

Retained spelling variations found in the original book.

*** END OF THE PROJECT GUTENBERG EBOOK PIONEER
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K E N T U C K E G A Z E T T E,

S A T U R D A Y, MARCH 1. 1788.

Extracts from the journals of a convention begun and held for the district of Kentucky at Danville in the county of Mercer on the 17th day of September 1787.

RESOLVED by the representatives of the good people of the district of Kentucky in convention assembled, that it is expedient for and in pursuance of the will of the people, that the said district be separated into a new and independent state, on the terms and conditions specified in the two acts of assembly, concerned. An act consuming the creation of the district of Kentucky into an independent state, the aforementioned. An act making further provision for the seceding of the district of Kentucky into an independent state.

RESOLVED that this convention do fix the thirtieth day of December one thousand seven hundred and eighty eight, to be the month which the authority of the commonwealth of Virginia and of its laws over the district of Kentucky shall cease and determine; ever, under the exceptions specified in the act, intitled "an act concerning the cession of the district of Kentucky into an independent state."

RESOLVED that an address to the Congress of the United States of America be prepared, stating the leading reasons for which the convent on Mount St. Helens should be removed, and have placed a separation of this district from the State of Virginia to be expedient, and requesting that the district may be attached into the Federal Union in accordance with the general assembly of Virginia in that case made and provided.

WHEREAS this convention hath adjudged it expedient that this district should be separated from the State of Virginia and erected into an independent State and hath determined that should the ratification of the compact between Virginia and the United States of America be withheld by the Legislature of Virginia, then the said district shall cease to be ever after as on the thirty first day of December one thousand seven hundred and eighty eight. And to the end that no period of slavery may arise to the satisfaction of the proposed State,

RESOLVED As the opinion of this convention that a conversion shall be effected with full power and authority to frame and establish a financial contribution of government (or the proposed force and to declare what laws shall be in force the an until the same shall be abrogated or altered by the legislative authority acting under the constitution is to be framed and established.

[illegible]

per rules of proceedings; to confer, and by a majority of votes, establish a permanent Constitution of government, for the proposed State; and declare what laws shall be in force therein, until they are abrogated or altered by the legislative authority, acting under the Constitution to be framed and established.

RESOLVED, that three members of the said convention assembled, shall be a sufficient number to adjourn from day to day, and to appoint and supply vacancies which may happen from deaths, resignations, or refusal to act.

RESOLVED, that in case there shall be no third within the specified counties of the district of Kennebec, at the time the female elections are directed to be held for the election of the said members of Convention, that any two acting signatories, who may be present on the day of holding the said elections, be appointed commissioners in agreement and conduct the said election, and to make returns in the same manner, at the times as are directed in due.

A true copy from the original,
THOMAS TODD, C. C.

THOMAS TODD, C. C.

.....True liberty
.....Sweet with right reason dwells
Twined, and from her hath no civilised being

There is but one source of political happiness, says liberty; our liberty is for the people, not for the nation; the nation is the shadow, it is the people its substance; but many forms of selfishness, and flattery: every one of which, every one of them, is the shadow of some passion or appetite of the selfish. Ambitious passions, already raised to a pitch of exuberance, difficult to human nature, but contented with the sufficiency of the shadow, when they find themselves up to the high fiction, even to be bought or sold like slaves or slaves; even to be given to gratify a woman full of domination, employ their very machinations in the internal business of debauching slaves, before happy and free; this constitutes external slavery; of such an ordering, that the happiness of the whole is sacrificed to the happiness of a few; which from the modesty of its appearance, and the subtlety of its approach, is not so alarming, and therefore the more dangerous; of which we ought continually to beware. We must learn that, where people are always free, implicitly master, or permit, any sort of attempt to limit the sufficiency of government; that we must then, without inquiring whether such conditions, have for their basis, the true principles of liberty, and could right. Of those principles I have, in a former paper, attempted a very factitious investigation: I shall in this, examine some pairs of the falsest it could furnish, and show the true states; and then, show the principles, and leave the people, and the people to judge for themselves.

And here, I am happy in finding myself anticipated, and the work partly done on my hand, by the publication of a series from a conclusion, whose official situation test his sentiments in a very conspicuous point of view; and whose well known abilities and integrity make every observation of his, merit the highest degree of attention; I shall the eloquent order those things which he has already done in so masterly a manner, and confine myself to a few points, which he has either slightly touched upon, or has been wholly silent.

Article I, Section 1. "All legislative power herein granted, shall be vested in a Congress of the United States; which shall consist of a Senate and house of representatives.

The abundance of new bodies of legislation, has formerly been looked upon as the position of their being both our representatives; but this abbreviation becomes an error: this appears without a fault; there is no error in the supposed case of any body; but distinguished from the whole as it is as English words can do it, not then is a Congress (that is a meeting of the united States; when each meet- ing, does neither: consist of the whole people of those States, nor wholly of the representatives of

other people? but not to dispute about words let us consider the elections, the proportional numbers, and the powers of the federal body. And first, they are to be chosen by the legislative bodies of the federal or state bodies: what number of representatives for the legislative body may bear to their constituents, or the people at large, is not so generally but I will suppose it to be, in two instances, at least, that they represent any legislative body, and that they represent any executive body, the one two-thirds, the other one-third of the body, having been chosen only for legislative purposes, and election, and legislation, being powers wholly distinct, and indeed too important to be both committed to the same set of men, at the same time; that choice can invest them with no right to delegate representatives for any body but that which they represent, and the argument is superfluous, the constitution having been so framed, as to separate the very idea or character of a Senator, from that of a representative. Again, as to their numbers, there are to be two Senators from each State; is not this wholly subversive of the general-spirit of equality? Does it not tend to obliterate the very idea? To demonstrate this, requires only that we compare the representation of the States of Rhode Island and Providence planters, with that of Virginia, and we shall find that the numbers are obliged to have only one representative in Congress; the latter, on the same principle, and for the same reason, are to have ten in Virginia, from her numbers, has a right to demand the influence of Rhode Island, in the overhauls of Congress, why not in the lesser? I need no reasonable answer to this, but that the long-continued conflicts of the representatives of the people, of the States, and of the disproportionate body, the Senate, an unelected, and unrepresentative body, of the different legislatures, and of confederate body irregularly determined, and disproportionate.

But again, if we consider this subject in its constant and very considerable and eternal force of the executive, legislative, and judiciary department, and in all these, they are independent on the people, nor in any influence reproducible to them: from whence can their right to such power arise? If we say that it was created by the people, we say that they alone were fully possessed of it; no executive power had authority to confer it; it appeared therefore a mere non-entity; or rather, a complicated misapprehension of power without right; and therefore to be rejected; and yet, extraordinary as it may seem, it is the case, and dignity, is to continue in the hands of the people, for the entire of the nation, in many hands *five years*. We say the entire of the nation, they are again eligible, and to end in a fourth, a seventh time, to perpetuity. But I long to have them out of my hands, as it would any other useful or dangerous commodity, and can only consider their influence as a few weeks and a few months, and then to be out of the country, and to be put in a parliament, where (though they appear not) and then a various character of disposition, venality, and corruption, are eternally, and ineffectually brooding, growing, and triumphing; have often distressed the kingdom, and in some degree, have ruined it, and go to the ruin of it. But I will not say more, I will only say that the power which we the people have constituted in our power is arbitrary, in order to the choice of whom, the legislative body of each state is empowered to put out, to their conflicts, some mode of choice, or (to save trouble) may choose themselves, a certain number of electors, and then to choose out of them, one, or two, or by ballot, for two persons, one of whom, at least, shall not be an inhabitant of the same state with themselves. Or in other words, they shall vote for two, one or both of whom they know nothing of. An extraordinary refinement this, on the subject of choice, and of the choice of choice, and the grand conclusion have certainly the honour of being the first inventors; and that for an effect, not too, of so much importance as a president invested with legislative and executive powers, who is to be commander in chief of the army, navy, militia, &c. great reprieve and pardon, have been granted to the people, and to the people, and some and adjourn both houses of congress, be supreme conservators of laws, commission all officers, make treaties, &c. &c. and who is to continue

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CHARTER OF THE

Town of Woodstock.

WHEREAS I JOHN HOPWOOD, of Fayette County, and Commonwealth of Pennsylvania, have surveyed and laid out into convenient lots or parcels, for the purpose of erecting a Town thereon, the quantity of two hundred acres of land, being part of the tract of land on which I now live, situate in Union Township, and County aforesaid, on the great road leading from the Town of Union to Run Cantonment, on the River Potomack; and for the purpose of encouraging the settlement, growth, and prosperity of the said Town, as laid out agreeable to a plan and survey thereof, herewith annexed and recorded, together with this instrument of writing, have determined to grant and confirm to all persons, who shall purchase or become proprietors of any lot or lots in the said Town, and to their heirs and assigns, certain privileges, immunities, and advantages herein after expressed and specified:

NOW this Indenture witnesseth, That for and in consideration of the premises and of the benefits and advantages to be derived from the establishment of the said Town, to myself and my heirs, I the said John Hopwood, for myself and my heirs, do give, grant, sell, convey, to all and every person or persons, who shall purchase or become proprietors or proprietors of any lot or lots in the said Town, and to their heirs and assigns, the following rights, privileges, benefits and advantages, viz. That all and every such person or persons, who shall purchase or become proprietors or proprietors of any lot or lots in the said Town, under the terms and reservations, and on the conditions which shall be contained in the deeds of conveyance for said lots, which shall be executed to them at the proper costs and charges of the purchaser, and the heirs and assigns of such persons, shall forever have and enjoy free liberty and privilege to pass, dig, quarry, and take from all three hundred acres of my lands adjoining the said Town, whatever stones may be necessary and expedient for building on or otherwise improving the lots, or any other lots in the said Town, and also the full and free use and liberty of entering upon the said three hundred acres of land, and of frequently or using any part or parts thereof as pasture, for highways and roads, for the purpose of procuring and carrying away stone for the use aforesaid, to them, their heirs, and assigns, forever.

Further, that all and every such person or persons aforesaid, shall have and enjoy free liberty and privilege to cut, take, and carry away from the said three hundred acres of land all manner of timber, or other wood, which may be useful and necessary to them, for building or otherwise improving upon their lots, or their lots, in the said Town, or for fuel or firewood for their use, in the said Town, and out elsewhere, to them, their heirs and assigns, for and during the space of ten years next ensuing the date of their purchase of said lot or lots, and also the free liberty and privilege of entering upon the said three hundred acres of land, and of frequently or using any part or parts thereof as pasture, for highways and roads, for the purpose of procuring and carrying away timber or other wood, for the use aforesaid, for and during the aforesaid space or term of ten years, from the date of their respective purchases.

And whereas, agreeable to the terms of sale, and by the deeds of conveyance for the aforesaid lots to the purchasers thereof, an annual ground rent of one half a Spanish milled dollar, or one hundred of wheat, will be reserved on each lot of a quarter of an acre. And also by the said terms of sale and deeds of conveyance, it shall be stipulated, that unless the purchaser or purchasers of any of the said lots, or their heirs or assigns, shall improve each lot by building thereon a good and solid dwelling house, of at least twenty four feet in front, and fifteen feet in depth, with a good and sufficient stove or brick chimney thereon, at or before the expiration of five years from the date of their purchase of the same from me, the said John Hopwood, shall be forfeited and re-sold.

I do hereby for myself, my heirs, executors, and administrators, covenant, promise and agree, that all the ground rents which shall become due, and be paid, on the lot in the said Town for the space of twenty years from the date of this Indenture, and also all the monies which shall be due from the re-sale of any lot or lots which shall be forfeited and re-sold, for the space of twenty years from the date of this Indenture, and also one fourth part of the original or last purchase money of all lots in the said Town, which shall be sold by me, shall be paid to

Alexander McClane, Deane Springer, and Joseph Babin, Esquires, or their executors in office, as trustees to collect, receive and hold the same, as a fund for the purpose of building and endowing an academy in the said Town, to be begun whenever a majority of the inhabitants residing in and buying lots in fee simple in the said Town; and the proprietors of improved lots in the same, though not residing therein, shall think the said fund sufficiently large to warrant the undertaking such buildings proper for an academy.

And further, I do hereby grant, bargain and sell, to the inhabitants of the said Town, and to their heirs and assigns forever, the four lots marked and distinguished on the plan of the said Town by the numbers one and two, and numbers eighty and eighty-one, to the said inhabitants, their heirs and assigns forever, for the following uses, intents and purposes, to wit, the lots marked number one and two, for the purpose of erecting thereon a public academy in the said Town, and for no other use, intent or purpose whatever: And the lots marked numbers eighty and eighty-one, for the purpose of erecting thereon a public market place in the said Town, and for no other use, intent or purpose whatever. And also free liberty and privilege of entering upon the aforesaid three hundred acres of land, of digging, quarrying, and taking whatever stone, and of cutting and carrying away whatever timber may be select and necessary for erecting the said academy and market place, and of frequently and using any part of the said three hundred acres of land for highways or roads for the purpose of procuring and carrying away stone and timber necessary for erecting the said academy and market place.

And it is further the intent and meaning of these presents, that if any lot or lots which shall be forfeited for a neglect of improvement as above specified, shall be resold and improved as aforesaid by any subsequent purchaser or purchasers, for the space of twenty years, the said lot or lots, shall revert to me and my heirs as fully and simply as I held the same before the execution of this Indenture.

And whereas there are convenient spots for wells in and near the land laid out for the said Town, I hereby reserve to myself, and my heirs and assigns forever, the free liberty and privilege of cutting and maintaining a race or races, for the use of conveying water to the aforesaid mill race, and also of altering, digging, turning or changing any water course or courses in, or belonging to the above said Town, or any part or parts thereof, with the privilege of maintaining the same, free and clear for the purposes aforesaid, to me, my heirs and assigns forever, any thing in these presents to the contrary thereof in any wise notwithstanding.

In witness whereof, I the said John Hopwood, have to these presents set my hand and interchangably affixed my seal, the eighth day of November, one thousand seven hundred and ninety one.

JOHN HOPWOOD, (SEAL)

Sealed and delivered
in presence of
SAMUEL WOOD,
LEVI MCCLANE.

FAYETTE COUNTY, E.

ON the eighth day of November, 1791, John Hopwood personally came before me, one of the Judges of the Court of Common Pleas for said County, and acknowledged the foregoing instrument of writing as his last and deed, and request, and that it might be recorded as such, together with the plot or draft herewith annexed.

Witness my hand and seal, the same day.

NATHANIEL BREADING, (SEAL)

FAYETTE COUNTY, E.

SEAL. Recorded in the Office for recording Deeds, in and for the said County, in book B, page 170 and 171, &c.
Given under my hand and seal of Office, the 8th day of November, 1791.
LEVI, for ALEXANDER MCCLANE, Recorder.

N. B. The draft or plan of said Town is recorded on one of the above pages, wherein the lots are regularly numbered, for the safety and satisfaction of all parties. J. H.

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DREADFUL

We take the following narrative from the *Piloto de Alcaides*:—"On the 4th inst. a shepherd boy, about 15 years of age, was driving a flock of sheep belonging to a farmer named Hamard, at Delmont-Orne, from a pasture, and sprang upon one of the sheep and immediately strangled it. The boy, instead of fleeing, advanced upon the ferocious animal and endeavored to scare him from his prey. The wolf, however, turned upon the boy and assailed him to the ground. The cries of the victim brought Hamard, his master, to the spot, who was also attacked by the animal, but in a moment was seized and overcome by the insatiable beast; and a third brother came up, at whom the wolf immediately directed his rage. By an extraordinary courage and presence of mind, however, his last combatant not only managed to escape his sanguinary assailant in his arms, but to hold him fast, notwithstanding the numerous wounds he received from the fangs and claws of his prisoner, till several neighbors arrived, and in length succeeded in killing the wolf, a task which required great precaution, for they should insure the unforgotten Pierre Hamard, who sent the animal in his grasp. They were even obliged to break the jaw of the wolf, to separate him from the throat of his antagonist. The wounds of all the four sufferers are very severe, and more particularly those of the boy; but no fears are entertained for their lives."

CHARLOTTE ROBERTSON, per G. D. F. L. W. her agent
"State of Columbia & Texas,"
Department of Texas,
Jurisdiction of Brazoria.

Having read and considered the foregoing petition of Charlotte Robertson widow of Edward Robertson dec'd. praying, among other things, that an administrator be appointed to settle the vacant estate of Edward Robertson, late of this jurisdiction, etc'd.

Now inasmuch as an administration appears on record in this office, it is ordered by this court that the foregoing petitioner give public notice, thro the medium of the paper printed in this town, that unless the contrary appear on or before the 4th Monday of June next, in said estate will be considered as vacant, and the prayer of the petitioner responded to by this court. At which time contestation, if any, will be heard. Given under my hand at my office in the town of Brazoria this 29th day of April 1833.

(Signed) HENRY SMITH Alcalde.

NOTICE

Is hereby given to all whom it may concern. That the following is a copy of a decree now remaining upon the records of the Alcalde's court of the jurisdiction of Brazoria.

CHARLOTTE ROBERTSON, per G. D. F. L. W. her agent
"State of Columbia & Texas,"
Department of Texas,
Jurisdiction of Brazoria.

Now inasmuch as an administration appears on record in this office, it is ordered by this court that the foregoing petitioner give public notice, thro the medium of the paper printed in this town, that unless the contrary appear on or before the 4th Monday of June next, in said estate will be considered as vacant, and the prayer of the petitioner responded to by this court. At which time contestation, if any, will be heard. Given under my hand at my office in the town of Brazoria this 29th day of April 1833.

(Signed) HENRY SMITH Alcalde.

NEW SEAT OF INDUSTRY AND COMMERCE.



FIRST SALE OF LOTS IN THE NEW TOWN OF JACKSON.

The public are notified, that a new town has just been laid off on the eastern shore of the river Brazos, three miles from its mouth. The site commands a full view of the Gulf, and the situation is thought to be the most eligible on the lower portion of this river, as regards its local advantages as well as its favorable position for commerce. Lying about three miles from the Gulf of Mexico, where vessels cross the bar to enter the Brazos, and having only a flat prairie between, the same breeze that wafts a vessel across the bar, will at all times carry her up to the Town of Jackson, where she will have a safe and easy anchorage. It is located on the first high ground that is found in ascending the river, and lies adjoining to the first considerable body of timbered land. It has, likewise, the first fresh water lake that is met with. It was above high water mark at the late overflow, (the place, or at least, the fresh water) was never known to fail, even in the driest season.

The lots and out-lots will embrace the labor which is known as Calvert's or Brown's labor. The dimensions of the lots are 60 by 120 feet; the out-lots contain 5 acres each.

The first sale will take place on Thursday the 1st day of August next, on the premises. The purchasers pledge themselves to prevent any fraud in sales or otherwise, and to hold all reservations or peculiar privileges for themselves, without a credit of six and twelve months, in equal instalments, on all sums not exceeding three hundred dollars; and value and eighteen months, in equal instalments, of all sums over that amount. If purchasers prefer it, they may obtain complete title, without a lien on the property, if good and sufficient personal security be offered; otherwise a bond will be given for a title on final payment, but personal security required in all cases.

JEREMIAH BROWN,
MERIWETHER V. SMITH,
THOMAS E. McKINNY,
Brazoria, June 29th, 1833.



1 JERSEY WAGON & HARNESS.
2 PAIR OF CARTWHEELS.
1 HORSE CART & HARNESS,
For Sale by
EDMUND ANDREWS.
April 30, 1833—30th

50 Bbls. Flour,
40 do. Whiskey,
30 do. Potatoes,
10 Boxes Sperm Candles,
20 do. Soap,
5 H. Segars,
10 Boxes Man. Tobacco,
10 Bbls. Hams,
15 Boxes Raisins,
15 Bbls Pilot Bread,
15 do. Gin,
10 do. Brandy,
10 Bags Coffee
10 Bbls. Mackerel,
4 Boxes Lemons,
5 Kegs Spiced Salmon,
In Store and For Sale by
EDMUND ANDREWS.
April 20, 1833—30th

NOTICE.
ALL persons indebted to Joseph S. Martin, Jr. are requested to make payment to Edmund Andrews, J. S. MARTIN, Jr.
Brazoria, April 23, 1833—31st

WHOLESALE & RETAIL STORE.

(AN ENTIRELY FRESH STOCK.)

McNEEL & WOODSON
HAVE just received, y the schooner Sabina and Bert. and are now opening (in the building originally designed for the Custom-House) in Brazoria, a General Assortment of

DRY GOODS,
GROCERIES,
READY MADE CLOTHING,
SHOES, BOOTS, HATS,
SADDLERY, HARDWARE,
CUTLERY, QUEENSWARE,
CASTINGS, IRON, STEEL,
POWDER, LEAD, SHOT, &c.
Of all which, they design keeping a constant supply, and will sell at wholesale and retail on moderate and accommodating terms.
February 2—20th

WILLIAM E. HOWTH & AUGUSTUS WILLIAMS have entered into Partnership, under the firm of
HOWTH & WILLIAMS.
They offer at the Store lately occupied by Messrs. Howth & Woodcock, a General Assortment of

DESIRABLE GOODS
as can be found in the place, on very liberal terms.
W. E. HOWTH,
AUG. WILLIAMS,
Brazoria, April 20, 1833—30th

NEW GOODS. WILLIAM T. AUSTIN

HAS just received by the Sloop Louisiana, from New-Orleans, an extensive assortment of Fancy and Staple Dry Goods, of the most fashionable style, selected especially for this market—consisting in part of:

Rich London Printed Cambrics
Dark and light Fancy Prints
Printed French Muslins
French Ginghams
Plain and Figured Swiss Muslin
4-4 Bob's, Lace and Edgings
Bosquet and Muslin Insertings
French Satins
Jackson and Cambric Muslins
Fancy Hatteries
Flat, Cap and Bobbedons
White and Black Silk Hose
White and cold Cotton Hose
White, cold and mixed Half Hose
Irish Lincens
Damask Table Dusters
Irish and Russia Seetings
Linen Cambric and Handkerchiefs
Furniture Dimity and Fringe
Fur and cold Boskin Gloves
Shawl and imitation: Back and Side Combs
Artificial Flowers
Linen and Cotton Toss
5-4 & 4-4 Bleached and brown sheetings and shirtings
Perfumery, Stationary
Ready made Clothing
Boots and Shoes
Hardware and Cutlery
Glass and Queensware
Hats and Saddles

GROCERIES AND PROVISIONS
Together with many other goods not enumerated, all of which are offered very cheap.
Brazoria, April 6—20th

NOTICE.
ALL persons indebted to me are requested to settle their accounts with O. H. ALLEN, Esq. in whose hands I have placed my books and accounts for collection.
P. R. SPLANE,
Brazoria, June 1—31st

SEASONABLE GOODS.

THE subscribers have taken the Store lately occupied by C. H. Bennett, and have on hand a GENERAL ASSORTMENT OF
DRY GOODS,
GROCERIES,
READY MADE CLOTHING,
HATS, SHOES, BOOTS,
QUEENSWARE, HARDWARE,
IRON, STEEL,
POWDER, SHOT, LEAD, &c.
Which they offer a accommodating terms.

BRIGHTMAN RICHESON.
Brazoria, Feb. 2—23rd
JOB PRINTING
DONE AT THIS OFFICE.

CONSTANT SUPPLY AND GENERAL ASSORTMENT MERCHANDIZE.

GEORGE HUFF & SON,
KEEP at their STORE IN SAN FELIPE, a regular supply of articles suited to the demands of the country, consisting of

DRY GOODS,
HARDWARE,
HOLLOW WARE,
CUTLERY,
QUEENSWARE,
READY MADE CLOTHING,
FUR AND WOOL HATS,
SHOES, STATIONARY,
GROCERIES, &c.
Each they offer to the citizens of the surrounding country, at reasonable prices, for Cows and Calves, Bees'-wax, Peltries, or Cash.
San Felipe de Austin, }
Nov. 13 1832. } 32nd

NOTICE.
THE TEN ACRE LOT, formerly belonging to Mrs. Eliza Phillips, and known on the map of the Town as Lot No. 2, will be rented to any person that will finish the clearing, and also build the balance of the fence—about 8 acres are cleared, and the two ends of the lot are fenced in. Apply to
L. C. MANSON.
Brazoria, May 4—31st



FOR SALE,
3 FIRST RATE YOKE OF OXEN, & CART, or either of them. Enquire of A. Brigham, Esq. Brazoria, or the subscriber, at his Plantation, 3 miles North of Brazoria.
S. BOWEN.
April 20—30

D. W. ANTHONY, ATTORNEY AT LAW,
WILL give the strictest and most faithful attention to all matters of litigation confided to his management. Letters addressed to him, and persons calling to see him on business, will find him at Brazoria, where he is located permanently.
OCT. 16 1832.

LAW NOTICE.

R. M. WILLIAMSON & E. RODDY, have associated themselves in the PRACTICE OF THE LAW. The former will reside in Brazoria, and the latter in SAN FELIPE DE AUSTIN. Business entrusted to their care, will be punctually attended to.
January 8, 1833.—17th

VELASCO ASSOCIATION

BALL.

In commemoration of the capture of Fort Velasco.
A splendid Anniversary Ball will be given by the Proprietors, on the EVENING OF THE 27th JUNE NEXT, in the Town of Velasco—the participation of which, the friends of the Association, and the public generally, are respectfully invited.
By order of the Association,
L. C. MANSON, Sec.
March 9, 1833—25th

ORATION AT VELASCO.
An Oration will be delivered by R. T. Archer Esq. on the 27th of June, the anniversary of the victory gained at Velasco, by the constitutional forces, in 1832.

NOTICE.

THE public are hereby notified that the Second
PUBLIC SALE OF LOTS IN THE TOWN OF VELASCO, Will take place on the 27th JUNE NEXT, at 12 o'clock, M. ON THE PREMISES. The purchaser must give bond with approved security for the payment of the lot or lots he may purchase at 3, 6 and 12 months. No purchaser of a lot or lots will be allowed to sink a salt well, erect a turnace for making salt, or in any other way make salt, within the limits of said town, without the consent of the Association.
L. C. MANSON, Sec.
Brazoria, March 9—25th

FOR NEW ORLEANS.

The Schooner Helen Mar, has now arrived at Brazoria, and will be despatch from this to the above port.
For freight or passage, having good accommodations, apply to
Wm. T. AUSTIN.
Brazoria, May 20 1833.

DOCTOR PARROTT

TENDERS his services to the citizens of the colony, in the practice of MEDICINE, SURGERY, AND DENTISTRY.
He has located himself at BRAZORIA where he may at all times be found, unless absent on professional business.
OCT. 17 1832.

DOCTOR C. G. COX, tenders his professional services to the citizens of Brazoria and the surrounding country.
Brazoria, April 14, 1832.

DOCTOR

J. A. Phelps

WILL practice Medicine, Surgery, &c. in Texas.

HOTEL AT VELASCO.

THE Velasco Association feeling the importance and necessity of a Hotel of extensive accommodations in the Town of Velasco, have determined to open subscription books for the purpose of effecting that object. They believe that a suitable house with elegant tables, well-stocked, for pleasure and staying, is a desideratum for the country, and that the public convenience, but prove a source of profit to the stockholders. They are aware of the many inconveniences that would draw company to this desirable place—it is notoriously one of the healthiest places in the country. Convalescents, men of pleasure, from all parts of the country would pass much time there, bled by the advantages of sea air, sea bathing, the pleasure of sailing, fishing and sporting, &c. &c. Many persons from New-Orleans and other parts of Louisiana, who now spend their summers at the north, would find it equally healthy and agreeable, nearer and cheaper to visit Velasco. On the arrival of vessels, passengers would doubtless find pleasure in the comforts and convenience of a well-conducted Hotel, and being desirous of visiting other sections of the country, would render the Livery Stable very profitable to the stockholders. It is the intention of the Association to keep the subscription books open until such an amount be subscribed as will be sufficient to erect a building equal in every respect to the best Hotels in the U. S. of the North. A large amount of stock being already taken, and the Association being desirous of erecting the buildings as soon as possible, requests all those who wish to obtain stock, or to favor the plan, to make early application to the Secretary, Messrs. R. T. Archer, or N. Townsend, Esq. San Felipe. Public notice will be given as soon as the contemplated amount be taken, and the stockholders will elect a Committee to draft, publish and superintend the erection of the buildings.
By Order of the Association,
L. C. MANSON, Sec.
Brazoria, March 23, 1833.

NOTICE.

THE subscriber has appointed G. M. Collinsworth, his agent to settle his business, as he will be absent from town most of his time. All persons indebted to the subscriber either by note, or book account, will please call and settle the same immediately as they will be put to cost.
CHARLES H. BENNET
Brazoria, Feb. 9—31st.

COTTON GINS.

REYNOLDS, BYRNE AND Co. New-Orleans, have on hand, and will keep a constant supply of Collins' Cotton Gins, which are warranted to be equal to any made in the United States.
Feb. 2—20—6ms.

TO THE PUBLIC.

WHEREAS my wife Candace has recently, without any proper cause, quit my bed and board, and separated herself from me, all persons are hereby forewarned from trusting her on my account, as I am determined not to pay debts contracted by her.

ISHAM THOMPSON.
May 4, 1833.—31—3rd

CONSTITUTION OF TEXAS.

With or without the Memorial, For Sale at this Office, and at the stores of W. C. White, San Felipe: David Ayres, Montville; and J. W. Moore, Harrisburg.

GEO. D. SHAW, ATTORNEY AT LAW, BRAZORIA.

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THE WEEKLY ARIZONIAN.

VOLUME 1.

TUCSON, ARIZONA, AUGUST 18, 1859.

NUMBER 25.

THE ARIZONIAN,
A WEEKLY PAPER,
DEVOTED TO THE GENERAL INTERESTS
OF ARIZONA.

J. HOWARD WELLS, Editor.

— TERMS: —

Three Dollars per annum, in advance.

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One Square, of 10 lines, or less, one insertion,	\$2 00
" " " " " three "	4 00
" " " " " one quarter,	10 00
" " " " " one year,	30 00

All communications and business letters must be addressed to THE ARIZONIAN, Tucson, Arizona.

THE TOMB OF NAPOLEON.

The Tomb of Napoleon is one of the sights of Paris which a stranger never fails to visit. It stands immediately under the lofty dome of the Church of the Hotel des Invalides, and is more magnificent than the Tomb of St. Peter in the

How GEN. WASHINGTON GOT THE MITTEN.—A correspondent of the Century, in giving some reminiscences of the old country seat called "The Cottage," in Hanover county, Virginia, gives an account of Gen. Washington's suit to and rejection by Mary Cary:

Her father was Wilson Cary, Esq., of Celey's, in the county of Elizabeth, descended from the noble family of Aunsdon, England. His relative, Col. Archibald Cary, of Amptill, in Chesterfield, was at his death, the heir apparent to the earldom. The worthy old gentleman seems, from all we know of him, to have been as proud as the Courcys or the Somersetts, and to have thought his family the noblest in the land. He lived in great state, with chariot and horses, plate, and velvet and embroidery—a worthy of the old school, fully satisfied with the "order of things," and enjoying serenely the good gifts of Providence. His beautiful daughter was a great heiress, and had many suitors—the accident which befell one of them has made her remembered in many books. He was a young man of very high character, a relative of Geo. W. Fairfax, Esq., who lived at Belvoir, on the Potomac;

"Come," he shouted, in a voice of thunder, as his clenched hand was raised high above his white hair, "Come with your bayonets in your hands, instead of your petitions—surround the White House with your legions—I am ready for you! With the people at my back, whom your gold can neither awe nor buy, I will swing you up around the capitol—each one of you on a jiblet as high as Haman's!"

"When I think," says the author, "of that one man standing there at Washington battling against all the powers of bank and panic combined, betrayed by those in whom he trusted—assailed by all that the snake of malice could hiss, or the fiend of falsehood howl—when I think of that one man placing his back against the rock, and folding his arms for the blow, while he uttered the vow, 'I will not swerve one inch from the course I have taken,' I must confess that the records of Rome, nay, the proudest day of Cromwell or Napoleon, cannot furnish an instance of a will like that of Andrew Jackson, when he placed life, and soul, and fame, on the hazard of a die for the people's welfare."

A LION ADVENTURE IN ALGERIA.

I was aroused by something, and felt a pain in my head, and directly afterwards I received a blow on the head, through the side of the tent, which made me think for a moment that I had been struck with an iron bar with claws on the end, which I carried with me in my wagon; but in an instant the idea flashed across my mind that it was a lion which was sniffing at me through the back of the tent. If I remained where I was, without moving, there was the probability of the beast tearing up the tent and dragging me through. On the other hand an attempt to move closer to the fire would probably be detected, and the lion has the same characteristic as the cat, and would, doubtless, have sprang upon me in that case, and have carried me off. While hesitating what to do, the animal, most likely from not being able any longer to feel anything through the wall of the tent, must have turned away, for after what was in fact but a few moments, but which seemed a very long time, there was a terrific shriek, followed by a low, deep growling, then a short and a louder roar!

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LAWS AND REGULATIONS

OF THE MINERS

OF THE GREGORY DIGGINGS DISTRICT.

At a meeting of the miners of Gregory Diggings, on the north fork of Clear creek, E. T., on the evening of the eighth instant, Wilk Deffen was elected president, and Joseph Castro secretary.

First—resolved that this mining district shall be bounded as follows: commencing at the mouth of the north fork of Clear creek, and following the divide between said stream and Kallsten creek, running seven miles to the last named stream to a point known as Miners Camp. Thence South West to the divide between the north fork of Clear creek and the south branch of the same, to the place of beginning.

Second—resolved that no miner shall hold more than one claim except by purchase or recovery, and in case of purchase the same shall be attested by at least two disinterested witnesses, and shall be recorded by the Secretary, and the Secretary shall receive in compensation the fee of one dollar.

Third—resolved that no claim which has or may be made, shall be good and valid, unless stated off with the owner's name, giving the direction, length, width, also the date when said claim was made; and when held by a company, the name of each member shall appear conspicuously.

Fourth—resolved that each miner shall be entitled to hold one mountain claim, one gulch claim and one creek claim, for the purpose of washing; the first be 100 feet long and fifty feet wide, the second 100 feet up and down the river or gulch, and extending fifty feet.

Fifth—resolved that mountain claims shall be worked within 10 days from the time they are taken off, otherwise forfeited.

Sixth—resolved that when members of a company constituted of two or more, shall be at work on one claim of the company, the first shall be considered worked by putting a notice of the same on the claim.

Seventh—resolved that each recovery claim shall be marked as such, and shall be safely kept whether worked or not.

Eighth—resolved that in cases of priority of claims, when honestly carried out, shall be decided.

Ninth—resolved that when parties wishing to use water on the same stream or in river for quartz mining purposes, no person shall use more than one of the water.

Passed at the miners' meet, June eighth, one thousand eight hundred and fifty-nine. **WILK DEFFEN**, President.

JAS. CASTRO, Secretary.

Your Committee on the codification of the Laws of the District beg leave to report that they have examined the resolutions submitted to them since the last copy was posted up, but find them so involved and, in many cases, so incompatible that they hereby report a New Code which they recommend, should be passed, and that the original Code be retained, with these additions.

First—Resolved that for settlement of differences, and for the purpose of preventing disputes, the miners of this District hereby enact: That there shall be elected in this District, by ballot, a President, a recorder of Claims, and a Sheriff, for the term of one year, from this date. That the President, Secretary, and one assistant, to be chosen by the people, be tellers of said election, and that it take place immediately.

The above resolutions were passed on the 9th day of July, one thousand eight hundred and fifty-nine, when Capt. W. Sopris was elected President, C. A. Roberts, recorder; and Charles Peck, Sheriff.

Second—It shall be the duty of the recorder to take charge of, and safely keep, all records heretofore made by the Secretary; and all records made necessary by law, shall be made by him.

Third—All claims may be recorded if the owners see fit—but no claim which is being worked shall be obliged to be recorded.

Fourth—When any miner has a Lead claim which it is impossible to work to advantage this season, either for the want of water or machinery, he may hold the same until the first of June next, by filing a statement of the reasons with the recorder.

Fifth—All water claims must be recorded within ten days from the claim date, or they shall be considered forfeited.

Sixth—All Bills of Sale or Conveyances of Claims, shall be witnessed by at least two disinterested witnesses and recorded.

Seventh—The books of the recorder shall be always open to the inspection of the public, and shall never be taken from the recorder's hands; but any person shall be entitled to copy any record at any reasonable time.

Eighth—All Laws relating to trials of disputed claims, are hereby repealed.

Ninth—When any person is aggrieved in regard to a claim, he shall file with any Commissioner of Justice of the Peace, in his absence, the President of the Miners' Association, a statement of his grounds of complaint, which shall also have the names of the parties complained of, and a prayer that they may be summoned to appear and answer. Thereupon, the Justice (or President) shall issue a summons to the adverse party, to appear and answer, within three days. If he fail to do so, the complaint shall be taken as true, and execution issued. If he appear and answer, the Justice (or President) shall summon a venire of nine persons, from which each party shall strike off one until there remain three, who shall proceed to hear the evidence of the parties, with or without counsel, and try the case. Any juror may be challenged for cause shown either by his own evidence, or the evidence of others.

Should the party losing feel aggrieved by the decision, he may appeal to a jury of twelve men, by paying costs already accrued; which jury shall be selected by the Justice (or President), and their decision shall be final.

Tenth—The Sheriff shall have power to serve notices and executions, and he shall have power to summon parties; parties in possession of property, decided to be by law; summon jurors, and do such service as a Sheriff in any other place may do, and shall be entitled to receive double the legal fees provided by the Statutes of Kansas.

Eleventh—The fees of the recorder shall be one dollar for each claim recorded.

Twelfth—The Justice (or President) shall be entitled to five dollars for presiding at each trial and making out the papers.

Thirteenth—The Jury shall be entitled to one dollar each per day.

Fourteenth—The defeated party in each suit shall be liable for all costs of the suit; and the Justice—or President—shall issue execution for the same, which shall be collected from any property the person so liable may have—excepting tools, bedding, clothing, and necessary provisions for three months.

Fifteenth—In any case either party may call upon the other to give security for costs, or the suit shall be dismissed if plaintiff, or defeated, is defendant.

Sixteenth—Any person may take up, by recording, forty feet front and one hundred deep, for a building lot; but shall not secure the same against being used for mining, if found rich. Should any person work out the ground on which a house is built, he shall forfeit the same.

Seventeenth—Any person or company intending to erect a quartz mill, may select a location two hundred and fifty feet square, which shall be recorded. He may also claim the right to cut a race from any river to bring water to the same, and shall hold the water, not interfering with any vested rights.

Eighteenth—The Preemption Laws established by the citizens of this county, shall be recognized in the mines, but shall not conflict with miners' rights.

Nineteenth—Gulch Claims shall be one hundred feet up and down and fifty feet wide, following the meanderings of the stream, and shall be worked within ten days if water can be obtained; if water is wanting, they may record the same and hold it until water can be obtained. Any time after the first of September, any miner may record his gulch claim and hold it till the first of June.

Twentieth—When any miner holds both a gulch and lead claim, if one be worked, the other may be held without working, by recording the same.

Twenty-first—When Water Companies are engaged in bringing water into any portion of the mines, they shall have the right of way secured to them, and may pass over any claim, road, or other ditch; but shall square themselves in passing, as not to injure the party over whose ground they pass.

Twenty-second—When any Company is formed for the purpose of tunneling for discovery, the men engaged may stake off, record and place notices on the land, two hundred and fifty feet each way from the tunnel, as running as the tunnel is intended to run; after that all minerals discovered in tunneling belong to the company to that extent. Claims already taken are to be respected, but new claims cannot be taken within the limits staked off if work be progressing on the tunnel. If work on the tunnel be stopped for one week at any time, the original claim shall be forfeited, and shall again open to claimants.

Passed at the Miners' Meeting of sixteenth, one thousand eight hundred and fifty-nine.

Attest—C. A. ROBERTS, Recorder. **B. SOPRIS**, President.

*For of
Stiles & Mills
July 2nd 1859*

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